Exam Playbook

A. Copyright (CO, Cap.528) Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Identify works	s.2(1), s.4	逐项拆分：文本、图表、源代码、目标代码、字幕、数据库结构等是否是独立作品类别。	“Relevant works include [...]. Each qualifies as [literary/artistic/etc.] under s.[...].”
Authorship & first ownership	s.11-s.15, s.13	先定作者，再定第一所有权；雇员职务作品通常归雇主；委托关系看合同。	“Authorship lies with [...], but first ownership vests in [...] under s.[...], subject to any contrary agreement.”
Freelancer/commissioned work	s.14(1), s.15(1), s.15(2)	先分流：employee 还是 independent contractor（freelancer）；若是雇员再看是否 in the course of employment；若是委托创作先看合同，没写明时补上 s.15(2) 的法定独占利用权 + 禁止不合理用途权。	“As X is a freelancer, ownership is governed primarily by contract under s.15(1); even absent express assignment, the commissioner may rely on s.15(2) statutory exploitation rights.”
Primary infringement	s.22 + s.23/24/25/27/28A/29	是否实施受限制行为；是否取用实质部分；有无许可；线上行为优先审 s.28A。	“By [copying/communicating/adapting] a substantial part without licence, D prima facie infringes under s.22 read with s.[...].”
Software modification	s.23, s.29(3)(b)	反编译、替换模块、翻译代码都要审复制/改编；“自己写的新模块”不当然免除对原作取用。	“Even if D wrote new code, liability remains if substantial original code/structure was copied or adapted.”
Secondary infringement	s.30-s.32, s.35	进口、持有、分销、售卖侵权复制品；是否知悉或应知。	“D dealt in infringing copies in the course of business and had at least reason to believe their status, engaging s.[...].”
Criminal copyright	s.118, s.120	商业规模、牟利性、跨境复制并回港等情形；民刑分流要写清。	“Civil liability arises under ss.30-32; criminal exposure may additionally arise under ss.118/120 on these commercial facts.”
Exclusive licensee standing	s.103, s.112, s.113	排他被许可人可否单独起诉，是否须并列权利人。	“LetFlix, as exclusive licensee, may sue under s.[...] subject to procedural joinder requirements.”
Fair dealing defences	s.37(3), s.38, s.39, s.39A, s.41A	目的、比例、市场替代效应、鸣谢；“非商业”声明不自动成立抗辩。	“The defence is unlikely because the use substituted the market for the original and exceeded what is fair under s.37(3).”
Internet/transmission	s.28A, s.65	串流、缓存、可下载性、向公众开放程度；浏览豁免边界。	“Uploading/streaming to subscribers is communication to the public under s.28A; s.65 does not excuse this commercial dissemination.”

B. PDPO (Cap.486) Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Is it personal data?	s.2(1)	是否识别在世个人；数据是否由 data user 控制；是否来自 data processor 场景。	“The information (name + address + phone + account linkage) clearly constitutes personal data under s.2(1).”
New purpose use	DPP3 + s.2(12)	原收集目的与现用途是否一致；是否有订明同意。	“Using the data for direct marketing/doxxing is a new purpose and requires prescribed consent under DPP3.”
Data security incident	DPP4	是否采取合理保安措施；是否存在访问控制、最小权限、日志审计缺陷。	“The breach indicates likely non-compliance with DPP4 unless PFB can show practicable safeguards were in place.”
Data access request	ss.18-21, s.20	请求对象是否“personal data”；能否分离第三方信息；是否触发拒绝理由。	“Bestrade should provide call records as requester’s personal data, but may redact third-party data and rely on s.20 grounds where strictly applicable.”
Data correction	ss.22-25	是否属于不准确资料；更正后通知义务。	“If inaccuracy is established, the data user must correct and notify downstream recipients as required.”
Direct marketing	Part 6A, ss.35B-35M	先告知、同意/不反对、首次通知、退出机制、第三方转移条件。	“SWB’s use appears to contravene Part 6A because consent/notification prerequisites were not met before marketing use.”
Doxxing offences	s.64(1), (3A), (3C) + (3)/(3B)/(3D)	未经同意披露 + 意图/罔顾造成指明伤害 + 实际后果。	“Alex’s postings likely satisfy doxxing elements: unauthorised disclosure, intent/recklessness, and specified harm.”
Commissioner powers	s.50A, s.50B, s.66K-66O	执行通知与停止披露通知是否已发；不遵从的独立刑责。	“If a cessation notice is served, continued disclosure would trigger separate offence exposure under s.66O.”
Compensation claim	s.66, s.66(2), s.65	资料当事人损失（含情感损害）；雇主替代责任与免责。	“Betty may seek compensation under s.66, including injury to feelings, and employer liability may arise via s.65 where applicable.”

C. Patent (Cap.514) Questions

Issue Type	Statutory Route	What to Prove (Checklist)	Ready-to-Use Answer Skeleton
Excluded subject matter	s.9A, s.9A(2)-(6)	先定 claim 的“真正内容”；再逐项看是否落入发现/数学方法/商业方法/治疗方法等排除。若有技术效果与技术手段，论证其不只是抽象规则。	“The process claim should first be screened under s.9A. On these facts, the claim is [not merely abstract / likely an excluded method] because ... Therefore the claim is [not excluded / excluded] at this stage.”
Novelty attack	s.9B + s.2(1)	锁定 material date；找最接近现有技术；比对每个必要技术特征是否全部先前公开。只要单一文献完整披露，即缺新颖性。	“The material date is [date]. If the prior use/publication already disclosed all essential integers of the claim, the claim lacks novelty under s.9B.”
Inventive step	s.9C	识别区别特征；判断对本领域技术人员是否显而易见；避免事后诸葛。若仅替换同等元件，通常显而易见。	“Compared with [closest prior art], the only distinguishing feature is [...]. This appears [obvious/non-obvious] to the skilled person, so s.9C is [not met/met].”
Industrial applicability	s.9D	能否在产业中制造或使用并重复实现技术效果。纯审美/纯智力步骤较难满足。	“The claimed invention is capable of industrial application because it can be repeatedly implemented in [...], satisfying s.9D.”
Employee invention ownership	s.57, s.9E	是否在受雇过程中作出；是否属受雇职责或特别指派任务；合同是否另有约定。	“Although X is named inventor, entitlement depends on s.57 and employment context. Since the invention was made [in/outside] normal duties, title should vest in [employer/employee].”
Co-ownership/licensing	s.54(1)-(3)	若为共同权利人，审查单方许可或处分是否需要他方同意。	“Under s.54, a co-owner cannot freely grant third-party rights beyond the statutory scope without the required concurrence.”
Revocation strategy	s.91, s.9A-9D, s.11A	被诉方应同时主张不可专利、新颖性缺失、创造性不足、说明不足等；并检视不损害披露例外是否可救。	“DreamToys should file revocation under s.91, relying primarily on [s.9B/s.9C], and pre-empt any s.11A exception by contesting its conditions.”
Pre-grant protection	s.88(1), s.88(3)	公开后到授权前是否可追溯；需证明后续授权权利覆盖相关行为。	“If grant is eventually obtained, s.88 may allow limited retrospective relief for acts done after publication, subject to statutory conditions.”

High Frequency Tests

A. Copyright (CO, Cap.528) Tests

在检验什么（适用问题）	步骤 + 判断（决策树）	Test / Doctrine	Authority	Output Line
要解决“作品版权到底归谁”的问题：雇佣关系下是否由雇主当然取得，或仍由创作者/受雇方保留。	先定身份（employee / independent contractor）→ 若为 employee，再看是否 in course of employment；若是，通常归雇主。若为 freelancer/commissioned，则先看合同是否有有效分配/转让条款；若无，再补审 s.15(2) 法定权利后下结论。	Employee vs freelancer ownership test	Cap.528 s.14(1), s.15(1), s.15(2)	“Ownership does not automatically pass to the hiring party for freelancer work; absent assignment, analyse s.15(1) contract terms and s.15(2) statutory rights.”
要解决“是否已取用到受保护内容”的问题：被取用部分是否达到实质部分门槛。	先定位被取用内容 → 再判断其是否体现原作原创性核心表达/结构/编排（重质不重量）→ 若是，即使数量不大也可满足实质部分要件；若仅属非原创或琐碎内容，通常不满足。	Substantial part test (qualitative)	Cap.528 s.22(3); case law approach	“Although quantitatively limited, what was taken is qualitatively substantial, so s.22(3) is met.”
要解决“平台/管理者是否要为他人侵权负责”的问题：是否构成授权侵权。	看被告是否控制工具/平台 + 是否知悉或应知侵权风险 + 是否已采取合理防范措施 → 若控制/认知明显且防范不足，较可能认定授权；若缺乏控制或已尽合理限缩，较不易成立。	Moorhouse authorisation test	**UNSW v Moorhouse**; Cap.528 s.22(2), s.22(2A)	“Given control + knowledge + inadequate preventive steps, D likely authorised primary infringement under s.22(2).”
要解决“境外制作复制品在香港如何定性”的问题：是否按侵权复制品处理。	做反事实判断：若该复制品改为在香港制作，是否会侵权 → 若会，则在香港可视为 infringing copy，并可触发相关次级侵权责任；若不会，则通常不走该路径。	Hypothetical manufacture test for infringing copy	Cap.528 s.35(3)	“Under s.35(3), the imported copies are treated as infringing copies because local hypothetical manufacture would infringe.”
要解决“被告使用是否可受公平处理抗辩保护”的问题：是否属于 fair dealing。	依四因素审查（用途性质、原作品性质、取用比例与实质性、市场替代影响）→ 再整体评估是否与作品正常利用冲突 → 若整体公平，抗辩较可能成立；若替代市场明显且取用过度，通常不成立。	Fair dealing 4-factor test	Cap.528 s.38(3), s.39(4), s.39A(2), s.41A(2), s.37(3)	“On the four factors, the dealing substitutes the original market and is unlikely to be fair.”

B. PDPO (Cap.486) Tests

在检验什么（适用问题）	步骤 + 判断（决策树）	Test / Doctrine	Authority	Output Line
要解决“这批信息是否受 PDPO 规制”的问题：是否构成 personal data。	看是否关乎在世个人 + 是否可直接/间接识别 + 是否处于 data user 控制/持有场景 → 三者满足时通常构成 personal data，进入 DPP 义务框架；否则相关义务通常不触发或明显减弱。	Personal data threshold test	Cap.486 s.2(1)	“The dataset is personal data because individuals are identifiable from linked identifiers and account records.”
要解决“新用途是否合法”的问题：现用途是否超出原收集目的且缺之同意。	先定原收集目的 → 判断现用途是否属于 new purpose → 若是，继续查是否有有效 prescribed consent 与证据链；若无有效同意，通常违反 DPP3；若非 new purpose 或同意完整，风险下降。	New purpose + prescribed consent test	DPP3 + Cap.486 s.2(12)	“The marketing/doxxing use is a new purpose and is unlawful absent prescribed consent under DPP3.”
要解决“数据保安是否合规”的问题：是否已采取合理可行安全措施。	按 DPP4 要素核查：最小权限、访问控制、日志审计、离职权限回收、异常告警、供应商管理 → 若关键环节缺失，较可能不合规；若措施系统且可证明执行，较能支持合规立场。	DPP4 practicable security test	DPP4	“Given weak access controls and missing audit safeguards, DPP4 non-compliance is likely.”
要解决“DAR 能否整体拒绝”的问题：是否应部分履行而非一概拒绝。	先审请求是否针对 requester 本人 personal data → 若夹杂第三方信息，先做删改/遮蔽并部分披露 → 仅在适用法定例外时拒绝，且需逐项给出 s.20 理由；无充分理由的 blanket refusal 风险高。	DAR partial compliance test	Cap.486 ss.18-21, esp. s.20	“The data user should provide a redacted response rather than blanket refusal, with specific s.20 reasons for withheld parts.”
要解决“是否构成 doxxing 责任”的问题：行为是否满足法定构成要件。	按要件逐层判断：是否未经同意披露 + 是否具伤害意图/罔顾 +（加重型）是否出现实际伤害或持续扩散 → 要件齐备则可能触发 s.64 责任；若关键要件缺失或抗辩成立，责任不成立或减轻。	Doxxing elements test	Cap.486 s.64(1), (3)/(3A)/(3B)/(3C)/(3D)	“The postings likely satisfy unauthorised disclosure and harm-intent elements, engaging s.64 doxxing liability.”

C. Patent (Cap.514) Tests

在检验什么（适用问题）	步骤 + 判断（决策树）	Test / Doctrine	Authority	Output Line
要解决“未字面落入时是否仍侵权”的问题：变体是否按等同原则落入保护范围。	依 Actavis 三问：Q1 是否同方式同结果；Q2 等同是否对本领域技术人员显而易见；Q3 技术人员是否仍理解为必须严格字面遵守 → 若 Q1/Q2 是且 Q3 否，通常落入等同范围；反之通常不落入。	Actavis 3-question equivalence test	**Actavis UK v Eli Lilly** [2017] UKSC 48; Cap.514 s.73	“Applying **Actavis**, Q1/Q2 are yes and Q3 is no, so the variant is likely within claim scope by equivalence.”
要解决“侵权比对基础是否正确”的问题：是否先完成 claim construction。	先解释权利要求文字与必要技术特征 → 再逐项映射被诉产品/方法 → 若未先做或做错 claim construction，后续侵权结论通常不稳；解释正确后再进入逐项比对才有说服力。	Claim construction first	Cap.514 s.73; lecture method	“The infringement analysis starts with claim construction; only then can the alleged product/process be mapped to each essential integer.”
要解决“该发明能否作为可专利主题继续审查”的问题：是否落入 s.9A 排除客体。	Aerotel 四步：1) properly construe claim；2) identify actual contribution；3) 判断该贡献是否仅落入 s.9A 排除范围；4) 判断该贡献是否具技术性质 → 若仅属排除客体且无技术性质赋，则不能获专利；否则可继续审查新颖性与创造性。	Aerotel 4-step excluded subject matter test	**Aerotel v Telco** [2006] EWCA Civ 1371; Cap.514 s.9A(2)	“On **Aerotel** step 3/4, the contribution is [pure business rule / technical], so s.9A exclusion [does / does not] apply.”
要解决“专利是否缺乏新颖性”的问题：是否被单一在先公开完整预见。	锁定 material date → 寻找单一可实施公开（文献/公开使用）→ 逐项核对必要特征是否全部已公开 → 若单一公开已覆盖全部必要特征，则新颖性被破坏；否则该障碍不成立。	Novelty full anticipation check	Cap.514 s.9B + s.2(1)	“Because one prior disclosure contains all claim integers before the material date, novelty under s.9B is destroyed.”
要解决“专利是否缺乏创造性”的问题：区别特征是否显而易见。	先识别区别特征 → 以本领域技术人员视角判断该区别是否显而易见（避免 hindsight）→ 若显而易见，不满足 s.9C；若不显而易见，可通过创造性门槛。	Inventive step obviousness check	Cap.514 s.9C	“The only difference is [...], which would be obvious to the skilled person; s.9C is therefore not satisfied.”

答卷句型

Scenario	English Sentence	Use When
法条引入	Under Cap.[xxx] s.[xx], the court should examine [Element 1] and [Element 2] in sequence; on these facts, the key issue is whether those statutory elements are satisfied.	任何子问开头
争点切分	This sub-question raises three distinct issues: [Issue A], [Issue B], and [Issue C], each of which should be addressed separately to avoid conflating liability tests.	多争点题
分析顺序声明	I will analyse this in the following order: (1) applicability, (2) primary liability, (3) defences, and (4) remedies / penalties.	开头先立结构
结论保留	On the current facts, X is likely to constitute [infringement / contravention]; however, liability may be reduced if D proves the [specific defence] under s.[xx].	需要平衡双方
最小假设	Without adding unnecessary assumptions, it is reasonable to assume [A] because the question expressly states [B].	老师要求 minimal assumptions
主体拆分	The analysis should be separated for A (actor), B (platform/employer), and C (right holder), with each party tested against the statutory elements independently.	多主体题
民刑分流	The same facts may trigger both civil and criminal routes: civilly under s.[...], and criminally under s.[...], each with different thresholds.	版权/私隐常见
要件逐项测试	Element [1] is satisfied because [...]. Element [2] is also satisfied because [...]. The only arguable weakness lies in Element [3], which depends on whether [...].	按分点写作
证据不足保守写法	On the present record, there is insufficient evidence to conclusively establish [Element]; therefore, the safer view is that this point remains arguable rather than proved.	事实不完整
反方论证衔接	The defendant may argue that [...]; however, that argument is weak because it does not address the statutory requirement that [...].	写双方观点
法条-事实紧扣	The legal test turns on [keyword in statute], and the fact most directly relevant to that keyword is [...].	防止空泛背法条
比较式结论	Compared with [party B], [party A] faces stronger exposure because [fact/legal threshold], whereas [party B] may still rely on [defence/limitation].	多主体对比结论
PDPO: personal data 入口	The information qualifies as personal data under s.2(1) because it can identify a living individual directly or when combined with data already held by the data user.	PDPO 开头常用

PDPO: DPP3 新目的	Using the data for [new purpose] is prima facie a new purpose under DPP3, so prescribed consent is required unless a specific statutory exemption applies.	PDPO 使用目的题
PDPO: DAR/DCR	If this is a valid data access/correction request under ss.18–25, the data user must respond within the statutory framework and may refuse only on specified grounds.	查阅/改正题
PDPO: direct marketing	Part 6A imposes a front-loaded consent and notification regime; if those preconditions were not met before use/transfer, contravention is likely.	direct marketing 题
PDPO: doxxing	For s.64(3A)/(3C), the core questions are unauthorised disclosure, intent or recklessness as to specified harm, and (for s.64(3C)) actual harm.	doxxing 题
Copyright: 作品识别	The first step is to identify each protected work separately (e.g. source code, artwork, text, soundtrack), because infringement is assessed work by work.	版权入口
Copyright: 所有权	Authorship and first ownership should be separated: authorship under s.11 does not automatically resolve ownership where s.14 or s.15 applies.	雇员/委托创作
Copyright: 实质部分	The question is not literal identity but whether a substantial part was taken in quality and importance, not merely in quantity.	复制/改编争议
Copyright: communication to public	Uploading or making the work available to users on demand is likely communication to the public under s.28A, even without permanent download.	平台/串流题
Copyright: fair dealing	A fair dealing argument requires purpose, proportionality, and market-impact analysis; a bare "non-commercial" label is not sufficient.	抗辩题
Patent: s.9A 过滤	Before novelty and inventive step, the claim must pass s.9A subject-matter screening by focusing on its real technical contribution.	专利题开头
Patent: 新颖性	A novelty attack succeeds if a single prior disclosure contains all essential integers of the claim as at the material date.	s.9B 题
Patent: 创造性	For inventive step, identify the distinguishing feature and ask whether that difference would be obvious to a skilled person without hindsight.	s.9C 题
Patent: entitlement	Inventorship and entitlement are distinct: even if X is the inventor, title may vest in the employer under s.57 depending on duty context.	雇员发明归属
结尾总结	Overall, [party] has a [strong/moderate/weak] case on liability, with the principal uncertainty confined to [specific element or defence].	每小问收束
分值友好结尾	If time is limited, the highest-yield points are: [Point 1], [Point 2], and [Point 3], as they determine outcome under the statutory test.	考试时间管理
救济句型	If liability is established, the likely remedies include [injunction / damages / account of profits / compliance order], subject to proof of loss and causation.	民事后果
刑责句型	On criminal exposure, the actus reus appears satisfied by [...]; the remaining issue is mens rea, namely whether D [knew / intended / was reckless as to] [...].	刑责分析
程序句型	Procedurally, [claimant] may proceed by [route], while [defendant] should preserve [revocation/defence/jurisdiction] arguments at the earliest stage.	程序与策略题
转段衔接	Having established [Issue A], I now turn to [Issue B], which requires a distinct statutory inquiry.	段落衔接
行为分拆（老师偏好）	I analyse each allegedly infringing act separately: [Act 1], [Act 2], and [Act 3], because each engages a different statutory element and may produce different outcomes.	避免"把所有行为揉成一段"
精确引条（老师偏好）	The applicable provision is specifically s.[xx]([x]) rather than s.[xx] in general, because this sub-paragraph contains the exact element in dispute.	避免笼统引法条
题干事实纠偏	The facts do not support the broader inference that [...]; the safer reading is [...], and the legal analysis should proceed on that narrower basis.	防止误读题目
最小假设声明（作业要求）	I make only one necessary assumption: [...]. No further assumptions are required because the stated facts already establish [...].	老师要求 minimal assumptions
民责先于刑责	Civil infringement is established under s.[...]; criminal liability is a separate and higher-threshold inquiry under s.[...], which requires additional proof of [...].	copyright/PDPO 常见
刑责否定句型	Even if civil liability is arguable, criminal liability is unlikely because the prosecution element of [commercial dealing / intent / prejudicial extent] is not clearly made out.	刑责不足时
实质部分识别	Because the copied passages/diagrams capture the core expressive content, they are likely a substantial part; copies containing them are treated in law as copies of the original work.	HW1 高频点
公开表演 vs 传播	Showing content on a screen to an audience may constitute public performance under s.[...], but it is not necessarily communication to the public unless there is electronic delivery to users' devices under s.[...].	HW1 区分 s.27 / s.28A
授权侵权句型	By instructing others that they were free to use the copied material and approving the resulting specification, D arguably authorised infringement under s.22(2).	HW1 授权问题
交易型二次侵权	Secondary infringement under s.[...] requires both dealing conduct and the required knowledge/reason-to-believe state; each limb must be proved separately.	HW1 s.31 / s.35 结构
业务中分发限制	Distribution in the course of business is not automatically criminal under s.118(1)(e); the business must involve dealing in infringing copies within s.118(10).	HW1 刑责排除点
不使用美法术语	I avoid non-HK concepts (e.g. "derivative work", "public display right") and apply only Hong Kong statutory language and structure.	老师明确扣分点
PDPO: 不公平收集	Acquiring personal data from a source known to be illicit or highly dubious is likely unfair collection contrary to DPP1(2)(b).	HW2 SWB/MDC 入口
PDPO: 原目的与新目的	The original purpose was [...]; using/selling the same data for [...] is a new purpose and requires prescribed consent under DPP3(1).	HW2 DPP3 核心
PDPO: s.35C / s.35F 配套	For direct marketing use, non-compliance with the front-end notice/consent requirements in s.35C and first-use notice obligations in s.35F creates criminal exposure.	HW2 SWB 常考
PDPO: s.35J 提供他人	If D provides personal data to another for use in direct marketing, s.35J written notice-and-consent requirements apply before transfer.	HW2 MDC 常考
替代责任分流	If the employee acted in the course of employment, the employer may be vicariously liable for the civil wrong; if not, liability must be analysed as the employer's own subsequent conduct.	HW2 MDC 关键分叉
s.64(1) 要件核查	Liability under s.64(1) requires proof that the data was obtained from the data user without consent, then disclosed with gain/loss intent; failure on the first limb defeats the offence.	HW2 doxxing 子题
答案结构收束	Accordingly, the strongest answer structure is: identify specific acts, map each act to one section, test every element, then conclude civil and criminal consequences separately.	作业与考试通用

Exam Drawbacks: Quick Fixes

- **Do not lump acts together.** Analyze each act in a separate paragraph (e.g., copying `s.23`, issuing `s.24`, authorisation `s.22(2)`, secondary infringement `s.31`).
- **Cite exact sub-sections.** Write `s.118(1)(g)` instead of just `s.118`.
- **Separate civil and criminal routes.** Civil liability may succeed while criminal liability fails due to higher mens rea / prejudice thresholds.
- **Use Hong Kong statutory language only.** Avoid US terms like "derivative work" and "public display right".
- **State minimal assumptions explicitly.** Add one short line identifying the assumption and why it is necessary.
- **PDPO doxxing two-tier structure:** `s.64(3A)` focuses on intent/recklessness (actual harm not required). `s.64(3C)` requires actual specified harm.
- **Specified harm must fit `s.64(6)` categories** (harassment/threat, bodily or psychological harm, safety concern, property damage), and may include harm to family members.
- **Civil redress under `s.66` includes injury to feelings** (`s.66(2)`), not only financial loss.
- **Statutory defences matter:** check `s.64(4)` (crime prevention, lawful authority, consent, lawful news activity + public interest).
- **Vicarious liability defence:** employer may rely on `s.65(3)` only if it proved all practicable preventive steps.
- **Copyright "public" threshold:** corporate seminar attendees can be a sector of the public.
- **`s.27` vs `s.28A` must be separated:** showing on screen to people physically present is not automatically communication to the public.
- **Artistic-work trap:** do not force diagrams into `s.27`; evaluate correct route (often secondary infringement analysis).
- **Substantiality is qualitative first,** not pure word-count.
- **Authorisation test (`s.22(2)`):** focus on sanction/approval/countenance and control over infringing use.
- **For `s.31`/`s.118`, always test knowledge:** "knew or had reason to believe".
- **Criminal prejudice under `s.118(1)(g)`/`s.118(2AA)` requires real economic prejudice analysis against the owner's actual trade.**
- **Patent/copyright methodology common rule:** identify legal issue -> map exact section -> test each element -> conclude with confidence level and key uncertainty.

中英术语表

中文	English	Exam-use Note
受限制行为	restricted acts	版权侵权总入口；通常配 s.22。
实质部分	substantial part	质而非量；核心表达被取用即可。
向公众传播	communication to the public	网络上传、串流、on-demand 提供都要优先审此项。
改编	adaptation	含软件翻译、改写、结构性转换。
次级侵权	secondary infringement	处理侵权复制品的商业链条责任。
侵权复制品	infringing copy	常与 s.35 假设测试联动。
公平处理	fair dealing	多因素衡量，非绝对豁免。
排他许可	exclusive licence	可产生独立或并列诉权。
资料当事人	data subject	PDPO 权利主体。
资料使用者	data user	决定用途与处理方式者；核心义务主体。
资料处理者	data processor	替他人处理数据者，责任结构不同。
订明同意	prescribed consent	DPP3/Part 6A 高频术语。
直接促销	direct marketing	先通知、后同意、可退出。
查阅资料要求	data access request (DAR)	ss.18-21 程序题必备。
更正资料要求	data correction request (DCR)	ss.22-25 程序题必备。
停止披露通知	cessation notice	s.66K 起，违规可独立成罪。
起底	doxxing	对应 s.64 系列罪名。
重要日期	material date	专利新颖性与创造性的时间锚点。
可专利客体	patentable subject matter	先过 s.9A，再审 9B/9C/9D。
新颖性	novelty	看是否被现有技术完整公开。
创造性	inventive step	对本领域技术人员是否显而易见。
工业实用性	industrial applicability	可产业实施并产生技术效果。
先申请制	first-to-file	竞合申请按先提交优先。
撤销	revocation	被告反击专利有效性的关键程序。
权利要求解释	claim construction	侵权比对前必须先做。
必要技术特征	essential integers	专利侵权逐项比对的颗粒度。

Source Statutes

A. Copyright Ordinance (Cap.528)

Section	Text	Notes
s.100	100. 对作品的部分适用的条文 **(1)** 第 89 条(被识别为作者或导演的权利)所赋予的权利就作品的整项或其任何实质部分而适用。 **(2)** 第 92 条(反对作品受贬损处理的权利)所赋予的权利以及第 96 条(虚假署名)所赋予的权利，均就作品的整项或其任何部分而适用。 [比照 1988 c. 48 s. 89 U.K.] 100. Application of provisions to parts of works **(1)** The right conferred by section 89 (right to be identified as author or director) applies in relation to the whole or any substantial part of a work. **(2)** The rights conferred by section 92 (right to object to derogatory treatment of work) and section 96 (false attribution) apply in relation to the whole or any part of a work. [cf. 1988 c. 48 s. 89 U.K.]	有些精神权利不只管"整件作品"，对实质部分同样适用。
s.103	103. 专用特许 **(1)** 在本部中， 专用特许(exclusive licence)指由版权拥有人签署或由他人代其签署的书面特许，授权特许持有人在摒除所有其他人(包括批出该特许的人)的情况下行使本应属该版权拥有人可行使的独有权利。 **(2)** 在专用特许下的特许持有人所具有的相对于受特许约束的所有权继承人而言的权利，与其所具有的相对于批出该特许的人而言的权利相同。 [比照 1988 c. 48 s. 92 U.K.] 103. Exclusive licences **(1)** In this Part an exclusive licence (专用特许) means a licence in writing signed by or on behalf of the copyright owner authorizing the licensee to the exclusion of all other persons, including the person granting the licence, to exercise a right which would otherwise be exercisable exclusively by the copyright owner. **(2)** The licensee under an	"专用特许"本质是排他授权，范围内别人（含权利人）都不能再用。

	exclusive licence has the same rights against a successor in title who is bound by the licence as he has against the person granting the licence. [cf. 1988 c. 48 s. 92 U.K.]	
s.107	107. 版权拥有人可就侵犯版权提起诉讼 (1) 版权拥有人可就侵犯版权提起诉讼。 (2) 在就侵犯版权进行的诉讼中，原告人可得损害赔偿、强制令、交出利润或其他形式的济助，与就侵犯任何其他产权而可得者相同。 (3) 本条在本分部的以下条文的规限下具有效力。 [比照 1988 c. 48 s. 96 U.K.] 107. Infringement actionable by copyright owner (1) An infringement of copyright is actionable by the copyright owner. (2) In an action for infringement of copyright all such relief by way of damages, injunctions, accounts or otherwise is available to the plaintiff as is available in respect of the infringement of any other property right. (3) This section has effect subject to the following provisions of this Division. [cf. 1988 c. 48 s. 96 U.K.]	版权人可以就侵权起诉，常见救济包括赔偿和禁令。
s.108	108. 关于侵犯版权诉讼中的损害赔偿的规定 (1) 在就侵犯版权进行的诉讼中，如证明在侵犯版权时，被告人不知道和没有理由相信该诉讼所关乎的作品有版权存在，则原告人无权向被告人要求损害赔偿，但任何其他补救则不受影响。 (2) 在就侵犯版权进行的诉讼中，法院在顾及案件的所有情况，尤其是以下情况后—— (a) 该等权利受侵犯的昭彰程度； (b) 因侵犯版权行为而归于被告人的利益； (由 2022 年第 16 号第 61 条修订) (c) 被告人的业务账目和纪录的完整程度、准确程度及可靠程度； (由 2022 年第 16 号第 61 条修订) (d) 构成该项侵犯的作为发生后，被告人的任何不合理行为，包括在原告人将该项侵犯告知被告人后，被告人作出的(或企图作出的)毁灭、隐藏或掩饰该项侵犯的证据的作为；及(由 2022 年第 16 号第 61 条增补) (e) 由于该项侵犯而令侵犯版权复制品广泛流传的可能性， (由 2022 年第 16 号第 61 条增补)可为在该案件达致公正所需而判给额外损害赔偿。 [比照 1988 c. 48 s. 97 U.K.] 108. Provisions as to damages in infringement action (1) Where in an action for infringement of copyright it is shown that at the time of the infringement the defendant did not know, and had no reason to believe, that copyright subsisted in the work to which the action relates, the plaintiff is not entitled to damages against him, but without prejudice to any other remedy. (2) The court may in an action for infringement of copyright having regard to all the circumstances, and in particular to— (a) the flagrancy of the infringement; (b) any benefit accruing to the defendant by reason of the infringement; (Amended 16 of 2022 s. 61) (c) the completeness, accuracy and reliability of the defendant’s business accounts and records; (Amended 16 of 2022 s. 61) (d) any unreasonable conduct of the defendant after the act constituting the infringement occurred, including any act done or attempt made by the defendant to destroy, conceal or disguise evidence of the infringement after having been informed of the plaintiff; and (Added 16 of 2022 s. 61) (e) the likelihood of widespread circulation of infringing copies as a result of the infringement, (Added 16 of 2022 s. 61) award such additional damages as the justice of the case may require. [cf. 1988 c. 48 s. 97 U.K.]	算赔偿时，法院会看主观恶意、获利、证据破坏等因素。
s.112	112. 专用特许持有人的权利和补救 (1) 专用特许持有人就特许批出之后所发生的事项，具有在犹如该项特许是一项转让的情况下相同的权利和补救，但相对于版权拥有人而言，则属例外。 (2) 专用特许持有人的权利和补救与版权拥有人的权利和补救是同时具有的；而在本部的有关条文中，凡提述版权拥有人，亦指此解释。 (3) 在专用特许持有人凭借本条而提起的诉讼中，被告人可引用的免责辩护，与在假使该诉讼是版权的拥有人提起的情况下被告人可引用的免责辩护相同。 [比照 1988 c. 48 s. 101 U.K.] 112. Rights and remedies of exclusive licensee (1) An exclusive licensee has, except against the copyright owner, the same rights and remedies in respect of matters occurring after the grant of the licence as if the licence had been an assignment. (2) His rights and remedies are concurrent with those of the copyright owner; and references in the relevant provisions of this Part to the copyright owner shall be construed accordingly. (3) In an action brought by an exclusive licensee by virtue of this section a defendant may avail himself of any defence which would have been available to him if the action had been brought by the copyright owner. [cf. 1988 c. 48 s. 101 U.K.]	专用被许可人也有较强的维权权能，不一定只能靠版权人出面。
s.117	117. 与有政府版权的作品有关的推定如文学作品、戏剧作品或音乐作品有政府版权存在，并且该作品的已刊印复制品上附有一项陈述，述明该作品作首次商业发表的年份，则在凭借本分部就该作品而提起的法律程序中，该项陈述可获接纳为所述明事实的证据，并且在没有相反证据的情况下，该项陈述须推定为正确的。 [比照 1988 c. 48 s. 106 U.K.] 117. Presumptions relevant to works subject to Government copyright In proceedings brought by virtue of this Division with respect to a literary, dramatic or musical work in which Government copyright subsists, where there appears on printed copies of the work a statement of the year in which the work was first published commercially, that statement is admissible as evidence of the fact stated and is presumed to be correct in the absence of evidence to the contrary. [cf. 1988 c. 48 s. 106 U.K.]	有政府版权时，作品上的年份声明可当初步证据。
s.118	118. 关乎制作侵犯版权物品等或进行侵犯版权物品等交易的罪行(由 2007 年第 15 号第 31 条修订) (1) 任何人如未获版权作品(该作品)的版权拥有人的特许而作出以下作为，即属犯罪—— (a) 制作该作品的侵犯版权复制品，以作出售或出租之用； (b) 将该作品的侵犯版权复制品输入香港，但并非供他私人和家居使用； (c) 将该作品的侵犯版权复制品输出香港，但并非供他私人和家居使用； (d) 为任何贸易或业务的目的或在任何贸易或业务的过程中，出售、出租、或要约出售或要约出租或为出售或出租而展示该作品的侵犯版权复制品； (e) 为任何包含经销版权作品的侵犯版权复制品的贸易或业务的目的或在任何该等贸易或业务的过程中，公开陈列或分发该作品的侵犯版权复制品；或 (f) 管有该作品的侵犯版权复制品，以期令—— (i) 某人可为任何贸易或业务的目的或在任何贸易或业务的过程中，出售或出租该侵犯版权复制品；或 (ii) 某人可为任何包含经销版权作品的侵犯版权复制品的贸易或业务的目的或在任何该等贸易或业务的过程中，公开陈列或分发该侵犯版权复制品；或 (g) 分发该作品的侵犯版权复制品(但并非为任何包含经销版权作品的侵犯版权复制品的贸易或业务的目的，亦并非在任何该等贸易或业务的过程中分发)，达到损害版权拥有人的权利的程度。 (由 2007 年第 15 号第 31 条修订) (1A) 不属 (1) 款所述的情况，为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发版权作品的侵犯版权复制品；而 (b) 如此陈列或分发该侵犯版权复制品的情况，令人合理地怀疑该贸易或业务包含经销版权作品的侵犯版权复制品，则就任何根据第 (1) 款提起的法律程序而言，除非有相反的证据，否则该贸易或业务须被推定为包含经销版权作品的侵犯版权复制品的贸易或业务。 (由 2007 年第 15 号第 31 条增补) (1B) 凡属—— (a) 任何人管有版权作品的侵犯版权复制品，以期令某人可为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发该侵犯版权复制品；而 (b) 如此管有该侵犯版权复制品的情况，令人合理地怀疑该贸易或业务包含经销版权作品的侵犯版权复制品，则就任何根据第 (1) 款提起的法律程序而言，除非有相反的证据，否则该贸易或业务须被推定为包含经销版权作品的侵犯版权复制品的贸易或业务。 (由 2007 年第 15 号第 31 条增补) (2) 第 (1) 款及 (4) 款及 (5) 款并不适用于过境物品。 (2AA) 就第 (1) (g) 款而言，法院在裁定某作品的侵犯版权复制品的分发有合达到损害版权拥有人的权利的程度时—— (a) 可考虑有关个案的整体情况；并 (b) 尤其可考虑该项分发的后果，是否对版权拥有人造成经济损害，在考虑时，可顾及经如此分发的侵犯版权复制品，是否构成该作品的替代品。 (由 2022 年第 16 号第 63 条增补) (2A) 任何人如未获本款适用的版权拥有人的特许，而为任何贸易或业务的目的或在任何贸易或业务的过程中，管有该作品的侵犯版权复制品，以期令某人可为该贸易或业务的目的或在该贸易或业务的过程中，使用该侵犯版权复制品，该首述的人即属犯罪。 (由 2007 年第 15 号第 31 条增补) (2B) 第 (2A) 款适用于属以下项目的版权作品—— (a) 电脑程式； (b) 电影；(c) 电视剧或电视电影； (d) 音乐声音纪录；或 (e) 音乐视像纪录... 118. Offences in relation to making or dealing with infringing articles, etc. (Amended 15 of 2007 s. 31) (1) A person commits an offence if he, without the licence of the copyright owner of a copyright work— (a) makes for sale or hire an infringing copy of the work; (b) imports an infringing copy of the work into Hong Kong otherwise than for his private and domestic use; (c) exports an infringing copy of the work from Hong Kong otherwise than for his private and domestic use; (d) sells, lets for hire, or offers or exposes for sale or hire an infringing copy of the work for the purpose of or in the course of any trade or business; (e) exhibits in public or distributes an infringing copy of the work for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works; (f) possesses an infringing copy of the work with a view to— (i) its being sold or let for hire by any person for the purpose of or in the course of any trade or business; or (ii) its being exhibited in public or distributed by any person for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works; or (g) distributes an infringing copy of the work (otherwise than for the purpose of or in the course of any trade or business which consists of dealing in infringing copies of copyright works) t...	刑事重灾区条款：制作/进口/分发侵权复制品可触发刑责。
s.120	120. 在香港以外地方等制作侵犯版权复制品 (1) 任何人如在香港以外地方制作任何输往香港而非供他私人和家居使用的物品，而他知道该物品假使在香港制作即会构成版权作品的侵犯版权复制品，该人即属犯罪。 (2) 任何人如在香港以外地方制作经特定设计或改装以供制作属某版权作品的复制品的物品，而他知道或有理由相信该物品将会在香港用作或拟在香港用作制作该版权作品的侵犯版权复制品以供出售或出租，或以供为任何贸易或业务的目的或在任何贸易或业务的过程中使用，该人即属犯罪。 (由 2000 年第 64 号第 9 条修订；由 2007 年第 15 号第 34 条修订) (2A) 就第 (2) 款而言，有关的贸易或业务是along 包含经销版权作品的侵犯版权复制品并不具关键性。 (由 2000 年第 64 号第 9 条增补) (3) 任何人如在香港以外地方制作或从香港输出经特定设计或改装以供制作属某版权作品的复制品的物品，而他知道或有理由相信—— (a) 该物品将会或拟在香港以外地方用作制作输往香港的另一物品；及 (b) (a) 段提及的另一物品假使在香港制作，即会构成该版权作品的侵犯版权复制品，该人即属犯罪。 (4) 任何人如在香港或其他地方协助、教唆、怂使或促成另一人犯第 (1)、(2) 或 (3) 款所订罪行，即属以主犯身分犯该罪。 (5) 第 (1) (2) 及 (3) 款所订罪行并不损害第 118 条所订罪行。 (6) 任何人犯第 (1)、(2) 或 (3) 款所订罪行，一经定罪，可处罚款 $500,000 及监禁 8 年。 (7) 就本条而言，物品 (article) 不包括过境物品。 (8) 第 115 至 117 条(就与版权有关连的各种事宜而作出的推定)不适用于就本条所订罪行而进行的法律程序。 120. Making infringing copies outside Hong Kong, etc. (1) A person commits an offence if he makes outside Hong Kong, for export to Hong Kong otherwise than for his private and domestic use, any article that he knows would, if it were made in Hong Kong, constitute an infringing copy of a copyright work. (2) A person commits an offence if he makes outside Hong Kong an article specifically designed or adapted for making copies of a particular copyright work knowing or having reason to believe that it is to be used or is intended to be used in Hong Kong for making an infringing copy of the copyright work for sale or hire or for use for the purpose of or in the course of any trade or business. (Amended 64 of 2000 s. 9 ; 15 of 2007 s. 34) (2A) It is immaterial for the purpose of subsection (2) whether or not the trade or business consists of dealing in infringing copies of copyright works. (Added 64 of 2000 s. 9) (3) A person commits an offence if he makes outside Hong Kong or exports from Hong Kong an article specifically designed or adapted for making copies of a particular copyright work, knowing or having reason to believe that— (a) the article is to be used or is intended to be used outside Hong Kong for making another article for export to Hong Kong; and (b) the latter article mentioned in paragraph (a) would, if it were made in Hong Kong, constitute an infringing copy of th...	在境外做、再输港的侵权复制品，照样可能触发本地刑责。
s.13	13. 版权的第一拥有权除第 14 、 15 及 16 条另有规定外，作品的作者是该作品的任何版权的第一拥有人。 [比照 1988 c. 48 s. 11 (1) U.K.] 13. First ownership of copyright The author of a work is the first owner of any copyright in it, subject to sections 14 , 15 and 16 . [cf. 1988 c. 48 s. 11 (1) U.K.]	默认规则：作品一做出来，版权先归作者。
s.14	14. 雇员的作品 (1) 凡文学作品、戏剧作品、音乐作品、艺术作品或影片是由雇员在受雇工作期间制作的， 则—— (a) 除任何协议有相反的规定外；及 (b) 在符合第 (2) 款的规定下， 该雇员的雇主是该作品的版权的第一拥有人。 (2) 除任何协议有相反的规定外，如有关雇主利用该等作品或在其允许下由他人利用该等作品，而利用的方式在该等作品创作当时是该雇主及有关雇员均不能合理地预料的，则雇主须就该项利用支付一笔偿金予该雇员，款额由该雇主及该雇员议定，如没有协议则由版权审裁处裁定。 [比照 1988 c. 48 s. 11 (2) U.K.] 14. Employee works (1) Where a literary, dramatic, musical or artistic work, or a film, is made by an employee in the course of his employment, his employer is the first owner of any copyright in the work subject to— (a) any agreement to the contrary; and (b) subsection (2) . (2) Subject to any agreement to the contrary, where such work is exploited by his employer or by someone else with the employer’s permission in a way that could not reasonably have been contemplated by the employer and the employee at the time of making the work, the employer shall pay an award to the employee in respect of such exploitation at such amount as agreed between the employer and the employee or failing an agreement, as determined by the Copyright Tribunal. [cf. 1988 c. 48 s. 11 (2) U.K.]	雇员在工作中做的作品，通常版权归雇主；特殊利用可能要另付补偿。
s.15	15. 委托作品 (1) 凡作品是某人委托制作的，而作者与委托人之间订有就版权的享有权作出明确的规定的协议，则委托作品的版权属于根据该协议享有版权的人。 (2) 尽管有第 (1) 款及第 13 及 103 条的规定， 委托制作作品的人—— (a) 具有专用特许，可为作者及该委托制作作品的人在委托制作作品时可合理地预料的目的，利用该委托作品；及 (b) 有权制止为任何他可合理地提出反对的目的而利用委托作品。 15. Commissioned works (1) Where a work is made on the commission of a person and there is an agreement between the author and the commissioner of the work which expressly provides for the entitlement to the copyright, copyright in the commissioned work belongs to the person who is entitled to the copyright under the agreement. (2) Notwithstanding	委托创作先看合同。合同没写清时，委托方仍有一定使用权。
	subsection (1) and sections 13 and 103 , the person who commissioned the work— (a) has an exclusive licence to exploit the commissioned work for all purposes that could reasonably have been contemplated by the author and the person who commissioned the work at the time the work was commissioned; and (b) has the power to restrain any exploitation of the commissioned work for any purpose against which he could reasonably take objection.	
s.194	194. 对版权拥有人的提述的解释 (1) 凡不同的人就一项作品不同方面的版权具有权利(不论是由于局部转让或其他原因)，则就本部某目的而言的版权拥有人即为有权享有与该目的有关的方面的版权的人。 (2) 凡版权(或版权的任何方面)是由多于一人共同拥有的，则在本部中凡提述版权拥有人，即提述所有该等拥有人；故此特别是在须要取得版权拥有人特许的情况下，须要取得所有该等拥有人的特许。 [比照 1988 c. 48 s. 173 U.K.] 194. Construction of references to copyright owner (1) Where different persons are (whether in consequence of a partial assignment or otherwise) entitled to different aspects of copyright in a work, the copyright owner for any purpose of this Part is the person who is entitled to the aspect of copyright relevant for that purpose. (2) Where copyright (or any aspect of copyright) is owned by more than one person jointly, references in this Part to the copyright owner are to all the owners, so that, in particular, any requirement of the licence of the copyright owner requires the licence of all of them. [cf. 1988 c. 48 s. 173 U.K.]	多人分持权利时，谁是“版权人”要按具体权利面向来拆分看。
s.2	2. 版权及版权作品 (1) 版权是按照本部而存在于下列类别的作品的产权—— (a) 原创的文学作品、戏剧作品、音乐作品或艺术作品； (b) 声音纪录、影片、广播内容或有线传播节目 及 (c) 已发表版本的排印编排。 (2) 在本部中， 版权作品(copyright work)指有版权存在的该等类别作品中的任何作品。 (3) 除非已符合本部中关于享有版权保护所须具备的资格的规定(参阅第 177 条及该条所提述的条文)，否则版权并不存在于任何作品。 (由 2022 年第 16 号第 3 条修订) [比照 1988 c. 48 s. 1 U.K.] 2. Copyright and copyright works (1) Copyright is a property right which subsists in accordance with this Part in the following descriptions of work— (a) original literary, dramatic, musical or artistic works; (b) sound recordings, films, broadcasts or cable programmes; and (c) the typographical arrangement of published editions. (2) In this Part copyright work (版权作品) means a work of any of those descriptions in which copyright subsists. (3) Copyright does not subsist in a work unless the requirements of this Part with respect to qualification for copyright protection are met (see section 177 and the provisions referred to there). [cf. 1988 c. 48 s. 1 U.K.]	先定版权对象：文学、戏剧、音乐、艺术及录音录像等。
s.23	23. 因复制而侵犯版权 (1) 复制有关作品是受任何类别的版权作品的版权所限制的作为；在本部中，凡提述复制及复制品，均按以下条文解释。 (2) 复制任何作品指以任何实质形式复制该作品，并包括藉电子方法将作品贮存于任何媒体。 (3) 就艺术作品而言，复制包括将平面作品制成立体复制品及将立体作品制成平面的复制品。 (4) 就影片、电视广播或有线传播节目而言，复制包括制作构成该影片、广播或有线传播节目的全部或任何实质部分的任何影像的照片。 (5) 就已发表版本的排印编排而言，复制指制作该编排的精确复制品。 (6) 就任何类别的作品而言，复制包括制作该等作品的短暂存在的复制品或为该等作品的其他用途而附带制作复制品。 [比照 1988 c. 48 s. 17 U.K.] 23. Infringement of copyright by copying (1) The copying of the work is an act restricted by the copyright in every description of copyright work; and references in this Part to copying and copies are construed as follows. (2) Copying of a work means reproducing the work in any material form. This includes storing the work in any medium by electronic means. (3) In relation to an artistic work copying includes the making of a copy in 3 dimensions of a 2-dimensional work and the making of a copy in 2 dimensions of a 3-dimensional work. (4) Copying in relation to a film, television broadcast or cable programme includes making a photograph of the whole or any substantial part of any image forming part of the film, broadcast or cable programme. (5) Copying in relation to the typographical arrangement of a published edition means making a facsimile copy of the arrangement. (6) Copying in relation to any description of work includes the making of copies which are transient or are incidental to some other use of the work. [cf. 1988 c. 48 s. 17 U.K.]	复制不只指影印，也包括电子存储和临时副本。
s.24	24. 以向公众发放复制品方式侵犯版权 (1) 向公众发放有关作品的复制品，是受任何类别的版权作品的版权所限制的作为。 (2) 在本部中，凡提述向公众发放作品的复制品，即提述由版权拥有人或在其同意下将以前从未在香港或其他地方发行的复制品发行的作为。 (3) 在本部中，凡提述向公众发放作品的复制品，并不包括—— (a) 以前曾发行的复制品的任何其后的分发、售卖、租赁或借出(但参阅第 25 条：以租赁方式侵犯版权)；或 (b) 该等复制品其后输入香港。 (4) 在本部中，凡提述发放作品的复制品，包括发放原本的作品及发放电子形式的复制品。 [比照 1988 c. 48 s. 18 U.K.] 24. Infringement by issue of copies to the public (1) The issue of copies of the work to the public is an act restricted by the copyright in every description of copyright work. (2) References in this Part to the issue of copies of a work to the public are to the act of putting into circulation copies not previously put into circulation, in Hong Kong or elsewhere, by or with the consent of the copyright owner. (3) References in this Part to the issue of copies of a work to the public do not include— (a) any subsequent distribution, sale, hiring or loan of copies previously put into circulation (but see section 25 : infringement by rental); or (b) any subsequent importation of those copies into Hong Kong. (4) References in this Part to the issue of copies of a work include the issue of the original and the issue of copies in electronic form. (Amended E.R. 2 of 2019) [cf. 1988 c. 48 s. 18 U.K.]	首次向公众发放复制品会触发版权控制，后续流转规则另看条文。
s.25	25. 以租赁作品予公众方式侵犯版权 (1) 租赁任何以下作品的复制品予公众，是受该作品的版权所限制的作为—— (a) 电脑程式； (b) 声音纪录； (c) 以文字、图像或声音纪录内的文字作品、戏剧作品或音乐作品。 (由 2007 年第 15 号第 35 条代替。由 2022 年第 16 号第 11 条修订) (2) 在本部中，除本条以下条文另有规定外， 租赁 (rental) 指为直接或间接的经济或商业利益，而令作品的复制品在该复制品将予或可予归还的条款下供人使用。 (3) 租赁 (rental) 一词不包括—— (a) 提供作公开表演、播放或放映之用，或作向公众传播之用；(由 2022 年第 16 号第 11 条修订) (b) 提供作公开陈列之用；或(由 2007 年第 15 号第 6 条修订) (c) 提供作即场参考之用。 (4) 在本部中，凡提述租赁作品的复制品，包括该作品的原本。 [比照 1988 c. 48 s. 18A U.K.] 25. Infringement by rental of work to the public (1) The rental of copies of any of the following works to the public is an act restricted by the copyright in the work— (a) a computer program; (b) a sound recording; (c) a film; (d) a literary, dramatic or musical work included in a sound recording. (Replaced 15 of 2007 s. 6 . Amended 16 of 2022 s. 11) (2) In this Part, subject to the following provisions of this section, rental (租赁) means making a copy of the work available for use, on terms that it is to be returned, for direct or indirect economic or commercial advantage. (3) The expression rental (租赁) does not include— (a) making available for the purpose of public performance, playing or showing in public or communicating to the public; (Amended 16 of 2022 s. 11) (b) making available for the purpose of exhibition in public; or (c) making available for on-the-spot reference use. (4) References in this Part to the rental of copies of a work include the rental of the original. [cf. 1988 c. 48 s. 18A U.K.]	把作品复制品拿去租，很多情况下也算受版权控制的行为。
s.30	30. 间接侵犯版权：输入或输出侵犯版权复制品任何人未获作品的版权拥有人的特许，将该作品的复制品输入或输出香港，而他知道或有理由相信该复制品是该作品的侵犯版权复制品，而且他输入或输出该复制品并非供自己私人和家居使用，即属侵犯该作品的版权。 [比照 1988 c. 48 s. 22 U.K.] 30. Secondary infringement: importing or exporting infringing copy The copyright in a work is infringed by a person who, without the licence of the copyright owner, imports into Hong Kong or exports from Hong Kong, otherwise than for his private and domestic use, a copy of the work which is, and which he knows or has reason to believe to be, an infringing copy of the work. [cf. 1988 c. 48 s. 22 U.K.]	明知是侵权复制品还进出口（非私人家用），会构成侵权。
s.31	31. 间接侵犯版权：进行侵犯版权复制品交易(由 2022 年第 16 号第 16 条修订) (1) 任何人未获作品的版权拥有人的特许，就该作品的复制品作出以下作为，而他知道或有理由相信该复制品是该作品的侵犯版权复制品，即属侵犯该作品的版权—— (由 2000 年第 64 号第 2 条修订) (a) 为任何贸易或业务的目的或在任何贸易或业务的过程中，管有该复制品； (由 2000 年第 64 号第 2 条代替。由 2007 年第 15 号第 7 条修订) (b) 将该复制品出售、出租、要约出售或要约出租，或为出售或出租而展示该复制品； (c) 为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发该复制品；或(由 2000 年第 64 号第 2 条代替。由 2007 年第 15 号第 7 条修订) (d) 并非为任何贸易或业务的目的，亦并非在任何贸易或业务的过程中，分发该复制品并达到损害版权拥有人的程度。 (由 2000 年第 64 号第 2 条修订；由 2007 年第 15 号第 7 条修订) (2) 就第 (1) (a) 款而言，有关的贸易或业务是否包含经营版权作品的侵犯版权复制品并不具关键性。 (由 2000 年第 64 号第 2 条增补) (3) 就第 (1) (d) 款而言，法院在裁定某作品的侵犯版权复制品的分发有否达到损害版权拥有人的权利的程度时，可考虑有关个案的整体情况；并且特别考虑该项分发的后果，是否对版权拥有人造成经济损害，在考虑时，可顾及经如此分发的侵犯版权复制品，是否构成该作品的替代品。 (由 2022 年第 16 号第 63 条增补) (4) 凡提述版权作品的版权拥有人的特许，应参照任何贸易或业务的目的或在任何贸易或业务的过程中，管有该作品的侵犯版权复制品，以期令某人可为该贸易或业务的目的或在该贸易或业务的过程中，使用该侵犯版权复制品，而言述的人即属犯罪。 (由 2007 年第 15 号第 31 条增补) 31. Secondary infringement: dealing with infringing copy (Amended 16 of 2022 s. 16) (1) The copyright in a work is infringed by a person who, without the licence of the copyright owner— (Amended 64 of 2000 s. 2) (a) possesses for the purpose of or in the course of any trade or business; (Replaced 64 of 2000 s. 2 . Amended 15 of 2007 s. 7) (b) sells or lets for hire, or offers or exposes for sale or hire; (c) exhibits in public or distributes for the purpose of or in the course of any trade or business; or (Replaced 64 of 2000 s. 2 . Amended 15 of 2007 s. 7) (d) distributes (otherwise than for the purpose of or in the course of any trade or business) to such an extent as to affect prejudicially the owner of the copyright, (Amended 64 of 2000 s. 2 ; 15 of 2007 s. 7) a copy of a work which is, and which he knows or has reason to believe to be, an infringing copy of the work. (2) It is immaterial for the purpose of subsection (1) (a) and (c) whether or not the trade or business consists of dealing in infringing copies of copyright works. (Added 64 of 2000 s. 2) (3) For the purposes of subsection (1) (d) , in determining whether any distribution of an infringing copy of a work is made to such an extent as to affect prejudicially the owner of the copyright, the court may take into account all the circumstances of the case and, in particular— (a) the purpose of the distribution; (b) ...	明知是侵权复制品还卖、租、展示、分发，通常都会踩线。
s.36	36. 就第 30 及 31 条而言的免责辩护 (1) 现声明如有某作品的版权复制品是在制作它的所在国家、地区或地方合法地制作的，且它仅凭借第 35 (3) 条而属侵犯版权复制品，则就第 30 及 31 条而言以及为免生疑问，在根据第 30 或 31 条而就某作品的复制品进行的侵犯版权诉讼中，如被告人证明—— (由 2007 年第 15 号第 11 条修订) (a) 他已作出合理查究足以使他自己信纳该已输入或拟输入香港的该作品的复制品并非该作品的侵犯版权复制品； (b) 他基于合理理由而信纳在有关个案的情况下，该复制品并非侵犯版权复制品； 及 (c) 没有其他本会致使他合理地怀疑该复制品是侵犯版权复制品的情况， 则他已证明他没有理由相信该复制品是侵犯版权复制品。 (2) 法院在裁定被告人是否已根据第 (1) 款证明他没有理由相信该复制品是侵犯版权复制品时，可顾及的因素包括(但不限于)以下事项—— (a) 他是否已就有关类别作品向有关的行业团体作出查究； (b) 他是否已给予通知促请有关的版权拥有人或专用特许持有人注意他在输入和出售该作品的复制品方面的权益； (c) 他是否已通知有关的版权拥有人或专用特许持有人他已作出查究的结果(如有的话)是否合理和及时； (e) 他是否已获提供有关的版权拥有人或专用特许持有人(视属何情况而定)的姓名或名称、地址及其联络之详细资料； (f) 他是否已获提供有关作品首日发表之日期； (g) 他是否已获提供任何有关专用特许之证明。 (3) 凡某人一如第 30 或 31 条所述般侵犯版权，在针对该人侵犯版权的诉讼中，如该人证明以下事项，即可以此作为免责辩护—— (a) 他已向版权拥有人或专用特许持有人(视属何情况而定)订购该作品的复制品，以获得该作品的复制品的供应； (b) 他已向某人作出订购，但该人基于不合理理由而不作出提供或在不合理的条款下始同意提供，故此其作为并不合理； 及 (c) 有关输入是在版权拥有人或专用特许持有人作出该不合情理的作为之后开且是在第 35 (4) (b) 条指明的期间届满之后进行的。 (4) 法院在裁定版权拥有人或专用特许持有人是否已作出不合情理的作为时，须将个别行止为有秩序地分发该类别作品的复制品而既有的惯常做法列为考虑因素，尤其须考虑该订单如获履行，会否与版权拥有人或专用特许持有人对该作品的正常利用有所抵触，或会否不合理地损害版权拥有人或专用特许持有人的合法权益。 (5) 法院在裁定是否基于不合理理由而不作出提供或在不合理的条款下始同意提供时，须考虑个别行止或个别公众的合理需求，包括但不限于价格及提货时间。 (6) 行止对在香港存放、进行或对在别处进行的任何贸易或业务的目的而言，属合理行止的，即属合理行止。 (7) 就本条而言，“行止”大小、已作之查询以及有关任何人士以前曾经向个别供应商订货而未得到交现。 36. Defences for the purposes of sections 30 and 31 (1) For the purposes of sections 30 and 31 and for the avoidance of doubt, it is declared that if in an action for infringement of copyright under section 30 or 31 in respect of a copy of a work which is an infringing copy by virtue only of section 35 (3) and which was lawfully made in the country, territory or area where it was made, the defendant proves that— (Amended 15 of 2007 s. 11) (a) he had made reasonable enquiries sufficient to satisfy himself that the copy of the work imported or proposed to be imported into Hong Kong was not an infringing copy of the work; (b) he had reasonable grounds to be satisfied in the circumstances of the case that the copy was not an infringing copy; and (c) there were no other circumstances which would have led him reasonably to suspect that the copy was an infringing copy, he has proved that he did not have reason to believe that the copy was an infringing copy. (2) In determining whether a defendant has proved under subsection (1) that he did not have reason to believe that the copy was an infringing copy of the work, the court may have regard to, including but not limited to, the following— (a) whether he had made enquiries with a relevant trade body in respect of that category of work; (b) whether he had given any notice drawing attention of the copyright owner or exclusive licensee ...	研究/私人学习可在条件内使用，不能无限扩大。
s.37	37. 引言条文 (1) 本分部的条文指明某些在层管有版权存在的情况下仍可就版权作品而作出的作为；该等条文只关乎侵犯版权的问题而不影响限制作出任何该等指明作为的任何其他权利或义务。 (2) 凡本分部规定某项作为不属侵犯版权，或可作出该作为而不侵犯版权，而没有特别提及某类别的版权作品，则有关作为并不属侵犯任何类别的作品的版权。 (3) 在决定本分部指明的作为是否可在尽管有版权存在的情况下就版权作品而作出时，基本考虑因素是该项作为并不与版权拥有人对作品的正常利用有所抵触，以及该项作为并没有不合理地损害版权拥有人的合法权益。 (4) 不得从凭借本分部可予作出而不属侵犯版权的任何作为的描述，而推论受任何类别作品的版权所限制的作为的	教学场景可有例外，但要守范围。

	范围。 **(5)** 本分部各条条文的解释互相独立，故某作为并不属于某条文的范围，并不表示另一条文不涵盖该作为。[比照 1988 c. 48 s. 28 U.K.] 37. Introductory provisions **(1)** The provisions of this Division specify acts which may be done in relation to copyright works notwithstanding the subsistence of copyright; they relate only to the question of infringement of copyright and do not affect any other right or obligation restricting the doing of any of the specified acts. **(2)** Where it is provided by this Division that an act does not infringe copyright, or may be done without infringing copyright, and no particular description of copyright work is mentioned, the act in question does not infringe the copyright in a work of any description. **(3)** In determining whether an act specified in this Division may be done in relation to a copyright work notwithstanding the subsistence of copyright, the primary consideration is that the act does not conflict with a normal exploitation of the work by the copyright owner and does not unreasonably prejudice the legitimate interests of the copyright owner. **(4)** No inference is to be drawn from the description of any act which may by virtue of this Division be done without infringing copyright as to the scope of the acts restricted by the copyright in any description of work. **(5)** The provisions of this Division are to be construed independently of each other, so that the fact that an act does not fall within one provision does not mean that it is not covered by another provision. [cf...	
s.39	39. 批评、评论、引用及报道和评论时事 **(1)** 为批评或评论某作品(有关作品)或另一作品，或为批评或评论某作品的表演，而公平处理有关作品，只要符合以下条件，即不属侵犯有关作品的任何版权，而就有关作品的已发表版本而言，亦不属侵犯其排印编排的版权——**(a)** 有关作品已向公众发行或传播；及 **(b)** 该项处理附有足够的确认声明(第 **(6)** 款另有规定者除外)。 **(2)** 不论为批评、评论或其他目的而引用某作品，只要符合以下条件，即不属侵犯该作品的版权——**(a)** 该作品已向公众发行或传播；**(b)** 该项引用，属公平处理该作品；**(c)** 该作品是为某特定目的而引用，而引用的程度，不超逾该目的所需的程度；及 **(d)** 该项引用附有足够的确认声明(第 **(6)** 款另有规定者除外)。 **(3)** 为报道或评论时事而公平处理某作品，只要附有足够的确认声明(第 **(6)** 款另有规定者除外)，即不属侵犯该作品的任何版权，而就有关作品的已发表版本而言，亦不属侵犯其排印编排的版权。 **(4)** 法院在裁定处理作品是否第 **(1)**、 **(2)** 由/ **(3)** 款所指的公平处理时，须考虑有关个案的整体情况，并尤其须考虑——**(a)** 该项处理的目的及性质，包括该项处理是否为非牟利的目的而作出，以及是否属商业性质；**(b)** 该作品的性质；**(c)** 相对于该作品的整体，被处理的部分所占的数量及实质分量；及 **(d)** 该项处理对该作品的潜在市场或价值的影响。 **(5)** 就第 **(1)** **(a)** 及 **(2)** **(a)** 款而言——**(a)** 如某作品已经以任何方式向公众传播除外，供给公众，则该作品属已向公众发行；供给的方式包括——**(i)** 向公众发放该作品的复制品；**(ii)** 将该作品的复制品，租赁予公众；及 **(iii)** 公开表演、陈列、播放或放映该作品；及 **(b)** 在断定某作品是否已向公众发行或传播时，不得考虑任何未经授权的作为。 **(6)** 就第 **(1)** **(b)**、 **(2)** **(d)** 及 **(3)** 款而言，如将足够的确认声明附于有关的处理，并非合理地切实可行，则该项处理不须附有该声明。 (由 2022 年第 16 号第 19 条代替) 39. Criticism, review, quotation, and reporting and commenting on current events **(1)** Fair dealing with a work (the work) for the purpose of criticism or review of the work or another work, or of a performance of a work, does not infringe any copyright in the work or, for a published edition of the work, in the typographical arrangement of the published edition, if— **(a)** the work has been released or communicated to the public; and **(b)** (subject to subsection **(6)**) the dealing is accompanied by a sufficient acknowledgement. **(2)** Copyright in a work is not infringed by the use of a quotation from the work (whether for the purpose of criticism, review or otherwise) if— **(a)** the work has been released or communicated to the public; **(b)** the use of the quotation is fair dealing with the work; **(c)** the extent of the quotation is no more than is required by the specific purpose for which it is used; and **(d)** (subject to subsection **(6)**) the use of the quotation is accompanied by a sufficient acknowledgement. **(3)** Fair dealing with a work for the purpose of reporting or commenting on current events does not infringe any copyright in the work or, for a published edition of the work, in the typographical arrangement of the published edition, if (subject to subsection **(6)**) the dealing is accompanied by a sufficient acknowledgement. **(4)** In determining whether any dealing with a work is fair deali...	合理使用的主力条款：评论、时事报道、引用等，在满足条件时可作为抗辩。
s.4	4. 文学作品、戏剧作品及音乐作品 **(1)** 在本部中——文学作品(literary work)指除戏剧作品或音乐作品外的任何写出、讲出或唱出的作品，并据此包括——**(a)** 资料或其他材料的任何形式的编正、且因其内容的选取或编排而构成智力创作，并包括(但不限于)列表；**(b)** 电脑程式；及 **(c)** 为电脑程式而备的预备设计材料；音乐作品(musical work)指由音乐构成的作品，但不包括拟伴随该等音乐而唱出或讲出的文字或表演的动作；戏剧作品(dramatic work)包括舞蹈作品或默剧作品。 **(2)** 除非文学作品、戏剧作品或音乐作品以书面或其他方式记录，否则版权并不存在于该等作品，而在该等作品经如此记录之前，其版权亦不存在；在本部中，凡提述该等作品的制作时间，即提述该等作品经如此记录的时间。 **(3)** 就第 **(2)** 款而言，作品是否由作者记录或是否经作者的允许而记录并不具关键性；如作品并非由作者记录，则第 **(2)** 款对版权是否在独立于经记录的作品的情况下存在于纪录本身此一问题，并无影响。 [比照 1988 c. 48 s. 3 U.K.] 4. Literary, dramatic and musical works **(1)** In this Part— dramatic work (戏剧作品) includes a work of dance or mime; literary work (文学作品) means any work, other than a dramatic or musical work, which is written, spoken or sung, and accordingly includes— **(a)** a compilation of data or other material, in any form, which by reason of the selection or arrangement of its contents constitutes an intellectual creation, including but not limiting to a table; **(b)** a computer program; and **(c)** preparatory design material for a computer program; musical work (音乐作品) means a work consisting of music, exclusive of any words or action intended to be sung, spoken or performed with the music. **(2)** Copyright does not subsist in a literary, dramatic or musical work unless and until it is recorded, in writing or otherwise; and for the purposes of this Part to the time at which such a work is made are to the time at which it is so recorded. **(3)** It is immaterial for the purposes of subsection **(2)** whether the work is recorded by or with the permission of the author; and where it is not recorded by the author, nothing in that subsection affects the question whether copyright subsists in the record as distinct from the work recorded. [cf. 1988 c. 48 s. 3 U.K.]	文学作品范围很广，文字、表格、数据库都可能算。
s.42	42. 供教育用途的选集 **(1)** 凡从已发表的文学作品或戏剧作品中摘录短的片段而将其包括在集合本中，而该集合本——**(a)** 是拟在教育机构中使用的，并且在集合本名称中或作为该集合本的发表人发放或代表集合本的发表人发放的宣传品中均如此描述；及 **(b)** 主要是由没有版权存在的材料构成的，则只要该等作品本身并非拟在该教育机构中使用并且将该等作品包括在该集合本中是特有足够的确认声明的，将该片段包括在该集合本中并不属侵犯该作品的版权。 **(2)** 第 **(1)** 款并不授权同一发表人在任何 5 年期间内，从由同一作者制作的版权作品中抽取多于 2 项摘录，以包括在该发表人所发表的集合本中。 **(3)** 就作品的任何特定片段而言，第 **(2)** 款提述的从由同一作者制作的作品中抽取摘录——**(a)** 亲自作出该作者与他人共同制作的作品中抽取摘录；及 **(b)** 如有关片段是从该等作品中抽取的，则亦视作包括从由其中任何一位作者制作的作品(不论该作品为该作者单独制作或与另一作者共同制作)中抽取摘录。 **(4)** 在本条中，凡提述在教育机构中使用作品，即提述为该等机构的教育目的而使用。 [比照 1988 c. 48 s. 33 U.K.] 42. Anthologies for educational use **(1)** The inclusion of a short passage from a published literary or dramatic work in a collection which— **(a)** is intended for use in educational establishments and is so described in its title, and in any advertisements issued by or on behalf of the publisher; and **(b)** consists mainly of material in which no copyright subsists, does not infringe the copyright in the work if the work itself is not intended for use in such establishments and the inclusion is accompanied by a sufficient acknowledgement. **(2)** Subsection **(1)** does not authorize the inclusion of more than 2 excerpts from copyright works by the same author in collections published by the same publisher over any period of 5 years. **(3)** In relation to any given passage the reference in subsection **(2)** to excerpts from works by the same author— **(a)** is taken to include excerpts from works by him in collaboration with another; and **(b)** if the passage in question is from such a work, is taken to include excerpts from works by any of the authors, whether alone or in collaboration with another. **(4)** References in this section to the use of a work in an educational establishment are to any use for the educational purposes of such an establishment. [cf. 1988 c. 48 s. 33 U.K.]	课堂教学使用的边界补充条：能不能用、能用到哪里，主要看这里。
s.43	43. 在教育机构的活动过程中表演、播放或放映作品 **(1)** 凡——**(a)** 在教育机构的活动过程中由教师或学生表演文学作品、戏剧作品或音乐作品；或 **(b)** 在教育机构中由任何人为教学的目的而表演文学作品、戏剧作品或音乐作品，而观众或听众只包括或主要包括该机构的教师和学生、该机构的学生的父母或监护人及与该机构的活动有直接关连的其他人，则就侵犯版权而言，该表演不属公开表演。 (1 2007 年第 15 号第 15 条修订) **(2)** 为教学或按受教学的目的而在教育机构中向上述观众或听众播放或放映音乐录音、影片、广播或有线传播节目，就侵犯版权而言，不属公开播放或放映有关作品。 (由 2007 年第 15 号第 15 条修订) **(3)** (由 2007 年第 15 号第 15 条废除) [比照 1988 c. 48 s. 34 U.K.] 43. Performing, playing or showing work in course of activities of educational establishments **(1)** The performance of a literary, dramatic or musical work before an audience consisting wholly or mainly of teachers and pupils at an educational establishment, parents or guardians of pupils at the establishment, and other persons directly connected with the activities of the establishment— (Amended 15 of 2007 s. 15) **(a)** by a teacher or pupil in the course of the activities of the establishment; or **(b)** at the establishment by any person for the purposes of instruction, is not a public performance for the purposes of infringement of copyright. **(2)** The playing or showing of a sound recording, film, broadcast or cable programme before such an audience at an educational establishment for the purposes of giving or receiving instruction is not a playing or showing of the work in public for the purposes of infringement of copyright. (Amended 15 of 2007 s. 15) **(3)** (Repealed 15 of 2007 s. 15) [cf. 1988 c. 48 s. 34 U.K.]	课堂公开表演/展示在特定条件下可豁免。
s.44	44. 由教育机构制作纪录或复制品或作出传播：广播或有线传播节目(由 2022 年第 16 号第 30 条修订) **(1)** 任何广播或有线传播节目的纪录或该纪录的复制品，在以下情况之下，可由教育机构或代教育机构为该机构的教育目的而制作，而不属侵犯该广播或有线传播节目或包括在其中的任何作品的版权——**(a)** 该机构制作的该纪录已包含确认作者的声明或确认被记录的作品所载的其他创作努力的声明；及 **(b)** 并非为图利而制作。 **(1A)** 获某教育机构授权的人，可向获授权收讯人传播按照第 **(1)** 款制作的广播或有线传播节目的纪录，或该纪录的复制品，该项传播只要符合以下规定，便不属侵犯版权——**(a)** 该人是为了该机构的教育目的，而作出该项传播；**(b)** 该机构采取一切合理步骤，以确保——**(i)** 只有获授权收讯人接收该项传播；及 **(ii)** 该等获授权收讯人不会制作该项传播的复制品，亦不会将该项传播作进一步传送。 (由 2022 年第 16 号第 30 条增补) **(2)** 如有特许计划下的特许，授权进行有关记录或复制，或授权作出有关传播，而制作有关纪录或复制品的人或作出该项传播的人，已知道或应已知道该事实，则本条并不授权进行(或在该特许所授权的范围内进行)该项记录或复制，或向获授权收讯人作出(或在该特许所授权的范围内作出)该项传播。 (由 2022 年第 16 号第 30 条代替) **(3)** 凡任何纪录或复制品(假若非因本条该复制品思属侵犯版权复制品)按照本条制作，但其后该复制品用作交易，则就该项交易而言，该复制品须视为侵犯版权复制品，又如该项交易授权取权，则就所有其后的目的而言，该复制品须视为侵犯版权复制品。 (由 2022 年第 16 号第 30 条修订) **(4)** 就第 **(3)** 款而言，如——**(a)** 在并非为有关教育机构的教育目的之情况下，为任何贸易或业务目的，或在任何贸易或业务的过程中，管有、公开陈列或分发某纪录或复制品；**(b)** 出售或出租某纪录或复制品、要约出售或要约出租某纪录或复制品，或为出售或出租展示某纪录或复制品；或 **(c)** 向公众传播某纪录或该项传播根据第 **(1A)** 款不属侵犯版权的情况除外)，该纪录或复制品即属侵犯版权复制品。 (由 2022 年第 16 号第 30 条增补) **(5)** 在本条中——获授权收讯人(authorized recipient)就获某教育机构授权的人作出的传播而言，指已获该机构授权(或已获该机构的代表授权)接收该项传播的该机构的教师或学生。 (由 2022 年第 16 号第 30 条增补) [比照 1988 c. 48 s. 35 U.K.] 44. Recording, copying or communication by educational establishments: broadcasts or cable programmes (Amended 16 of 2022 s. 30) **(1)** A recording of a broadcast or cable programme may be made by or on behalf of an educational establishment for the educational purposes of that establishment without thereby infringing the copyright in the broadcast or cable programme, or in any work included in it, if— **(a)** an acknowledgement of authorship or other creative effort contained in the work recorded is incorporated in the recording made by the establishment; and **(b)** it is not made for gain. **(1A)** A person authorized by an educational establishment may, without infringing copyright, communicate to an authorized recipient a recording, or a copy of a recording, of a broadcast or cable programme that has been made in accordance with subsection **(1)** if— **(a)** the person makes the communication for the educational purposes of the establishment; and **(b)** the establishment takes all reasonable steps to ensure that— **(i)** only authorized recipients receive the communication; and **(ii)** the authorized recipients do not make any copy or further transmission of the communication. (Added 16 of 2022 s. 30) **(2)** Recording, copying or communicating to authorized recipients is not authorized by this section if, or to the extent that, licences under licensing schemes are available and...	为教学而复制有比例和用途限制。
s.45	45. 由教育机构或学生制作复制品或作出传播：已发表作品中的片段或摘录(由 2007 年第 15 号 16 条修订；由 2022 年第 16 号第 31 条修订) **(1)** 教育机构或其代表可为教学目的，而学生亦可为在任何由教育机构提供的指明课程中接受教学的目的，在合理的范围内制作艺术作品或已发表的文学作品、戏剧作品或音乐作品的片段或已发表的声音纪录或影片的摘录的复制品，而不属侵犯该等作品的版权、排印编排的版权、或该声音纪录或影片的版权(视属何情况而定)。 (由 2007 年第 15 号 16 条修订；由 2022 年第 16 号第 31 条修订) **(1A)** 获某教育机构授权的人，可向获授权收讯人传播按照第 **(1)** 款制作的艺术作品、已发表的文学作品、戏剧作品或音乐作品的片段或已发表的声音纪录或影片的摘录的复制品，该项传播只要符合以下规定，便不属侵犯版权——**(a)** 该人是为了该机构的教育目的，而作出该项传播；及 **(b)** 该机构采取一切合理步骤，以确保——**(i)** 只有获授权收讯人接收该项传播；及 **(ii)** 该等获授权收讯人不会制作该项传播的复制品，亦不会将该项传播作进一步传送。 (由 2022 年第 16 号第 31 条增补) **(2)** 如有特许计划下的特许，授权进行有关复制，或授权作出有关传播，而制作有关复制品的人或作出该项传播的人，已知道或应已知道该事实，则本条并不授权进行(或在该特许所授权的范围内进行)该项复制，或向获授权收讯人作出(或在该特许所授权的范围内作出)该项传播。 (由 2022 年第 16 号第 31 条代替) **(3)** 凡任何复制品(假使非因本条该复制品即属侵犯版权复制品)按照本条制作，但其后该复制品用作交易，则就该项交易而言，该复制品须视为侵犯版权复制品。又如该项交易授权取权，则就所有其后的目的而言，该复制品须视为侵犯版权复制品。 (由 2022 年第 16 号第 31 条修订) **(4)** 就第 **(3)** 款而言，如——**(a)** 在并非为有关教育机构的教育目的之情况下，为任何贸易或业务目的，或在任何贸易或业务的过程中，管有、公开陈列或分发某复制品；**(b)** 出售或出租某复制品、要约出售或要约出租某复制品、或为出售或出租而展示某复制品；或 **(c)** 向公众传播某复制品(该项传播根据第 **(1A)** 款不属侵犯版权的情况除外)，该复制品即属侵犯版权复制品。 (由 2022 年第 16 号第 31 条增补) **(5)** 在本条中——获授权收讯人(authorized recipient)就获某教育机构授权的人作出的传播而言，指已获该机构授权(或已获该机构的代表授权)接收该项传播的该机构的教师或学生。 (由 2022 年第 16 号第 31 条增补) [比照 1988 c. 48 s. 36 U.K.] 45. Copying or communication by educational establishments or pupils: passages or extracts from published works (Amended 15 of 2007 s. 16 ; 16 of 2022 s. 31) **(1)** Copies of artistic works or of passages from published literary, dramatic or musical works, or extracts from published sound recordings or films, may, to a reasonable extent, be made by or on behalf of an educational establishment for the purposes of giving instruction, or by a pupil for the purposes of receiving instruction in a specified course of study provided by an educational establishment, without infringing any copyright in the work, in the typographical arrangement, or in the sound recording or film (as the case may be). (Amended 15 of 2007 s. 16 ; 16 of 2022 s. 31) **(1A)** A person authorized by an educational establishment may, without infringing copyright, communicate to an authorized recipient a copy of an artistic work, a passage from a published literary, dramatic or musical work, or an extract from a published sound recording or film, that has been made in accordance with subsection **(1)** if— **(a)** the person makes the communication for the educational purposes of the establishment; and **(b)** the establishment takes all reasonable steps to ensure that— **(i)** only authorized recipients receive the communication; and **(ii)** the authorized recipients do not make any copy or further transmission of the communication....	
s.54	54. 司法程序(由 2007 年第 15 号第 18 条修订) **(1)** 为司法程序的目的而作出任何事情，并不属侵犯版权。 **(2)** 为报道司法程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。 (由 2022 年第 16 号第 111 条修订) (由 1999 年第 22 号第 3 条修订；由 2007 年第 15 号第 18 条修订) [比照 1988 c. 48 s. 45 U.K.] 54. Judicial proceedings (Amended 15 of 2007 s. 18) **(1)** Copyright is not infringed by anything done for the purposes of judicial proceedings. (Amended 15 of 2007 s. 18) **(2)** Copyright is not infringed by anything done for the purposes of reporting such proceedings; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. [cf. 1988 c. 48 s. 45 U.K.]	司法程序相关使用通常有较强豁免。
s.54B	54B. 立法会 **(1)** 以下作为不属侵犯版权——**(a)** 为立法会程序的目的而作出任何事情；或 **(b)** 为行使立法会的权力及执行其职能的目的而作——**(i)** 由立法会议员或任何人代立法会议员；或 **(ii)** 由立法会行政管理委员会或任何人代立法会行政管理委员会，作出任何事情。 **(2)** 为报道立法会程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。 (由 2022 年第 16 号第 111 条修订) **(3)** 向公众传播法定研讯的报告书(载有某作品或其材料者)，或向公众发放该报告书的文本，并不属侵犯该作品的版权。 (由 2022 年第 16 号第 43 条修订) **(4)** 在条中——法定研讯(statutory inquiry)指——**(a)** 依照《调查委员会条例》(第 86 章)进行的研讯或调查；或 **(b)** 由条例或根据条例所施加的责任或由条例或根据条例所授予的权力，而进行的研讯或调查。 [比照 1988 c. 48 s. 46 U.K.] 54B. Legislative Council **(1)** Copyright is not infringed by— **(a)** anything done for the purposes of the proceedings of the Legislative Council; or **(b)** anything done by or on behalf of— **(i)** the members of the Legislative Council; or **(ii)** The Legislative Council Commission, for the purposes of the exercise and discharge by the Legislative Council of its powers and functions. **(2)** Copyright is not infringed by anything done for the purposes of reporting the proceedings of the Legislative Council; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. (Added 15 of 2007 s. 17)	立法会程序相关用途的例外条款。
s.55	55. 法定研讯 **(1)** 为法定研讯的程序的目的而作出任何事情，并不属侵犯版权。 **(2)** 为报道公开进行的该等程序的目的而作出任何事情，并不属侵犯版权；但这不得解释为授权任何人复制本身是该等程序的已发表报道的作品。 (由 2022 年第 16 号第 111 条修订) **(3)** 向公众传播法定研讯的报告书(载有某作品或其材料者)，或向公众发放该报告书的文本，并不属侵犯该作品的版权。 (由 2022 年第 16 号第 43 条修订) **(4)** 在条中——法定研讯(statutory inquiry)指——**(a)** 依照《调查委员会条例》(第 86 章)进行的研讯或调查；或 **(b)** 由条例或根据条例所施加的责任或由条例或根据条例所授予的权力，而进行的研讯或调查。 [比照 1988 c. 48 s. 46 U.K.] 55. Statutory inquiries **(1)** Copyright is not infringed by anything done for the purposes of the proceedings of a statutory inquiry. **(2)** Copyright is not infringed by anything done for the purposes of reporting any such proceedings held in public; but this is not to be construed as authorizing the copying of a work which is itself a published report of the proceedings. **(3)** Copyright in a work is not infringed by communicating to the public the report of a statutory inquiry containing the work or material from it or by issuing copies of the report to the public. (Amended 16 of 2022 s. 43) **(4)** In this section— statutory inquiry (法定研讯) means an inquiry held or investigation conducted in pursuance of— **(a)** the Commissions of Inquiry Ordinance (Cap. 86); or **(b)** a duty imposed or power conferred by or under an Ordinance. [cf. 1988 c. 48 s. 46 U.K.]	法定研讯场景下的豁免条款。
s.56	56. 开放予公众查阅或在公事登记册内的材料 **(1)** 依据法例规定须开放予公众查阅的材料，或法定登记册内的材料，如由适当的人或在其授权下复制，并且只复制该材料中属于任何类别的事实资料，而复制的目的并不涉及向公众传播该等材料或向公众发放该等材料的复制品，则该项复制并不属侵犯版权。 (由 2022 年第 16 号第 44 条修订) **(2)** 凡依据法例规定、某些材料须开放予公众查阅，如由适当的人或在其授权下，为该项查阅而复制该材料或向公众发放该等材料的复制品，而目的是让公众可在较方便的时间或地点查阅该等材料，或是为方便行使某项权利(该法例规定是为其行使而施加的)，则该项复制、传播或发放并不属侵犯版权。 (由 2022 年第 16 号第 44 条修订) **(3)** 凡依据法例规定须开放予公众查阅的材料，或法定登记册内的材料，载有一般人感兴趣的科学、技术、商业或经济方面的资料，如由适当的人或在其授权下，复制该等材料、向公众传播该等材料或向公众发放该等材料的复制品，而目的是使该等资料得以传有，则该项复制、传播或发放并不属侵犯版权。 (由 2022 年第 16 号第 44 条修订) **(4)** 行政长官可藉规例规定在规例指明的情况下，第 **(1)**、 **(2)** 或 **(3)** 款只适用于该规例指明的人或在该规例指明的程度之内。 (由 1999 年第 22 号第 3 条修订) **(5)** 行政长官可藉规例规定第 **(1)** 至 **(3)** 款例外或按规例指明的程度之内的变通而适用于以下项目，一如第 **(1)** 至 **(3)** 款适用于依据法例规定须开放予公众查阅的材料或法定登记册内的材料一样——(由 1999 年第 22 号第 3 条修订) **(a)** 由规例所指明的国际组织开放予公众查阅的材料；或 **(b)** 由规例所指明的人开放予公众查阅的材料，而该人乃根据香港是缔约一方的国际协议而在香港具有职能者；或 **(b)** 由规例所指明的国际组织备存的登记册。 **(6)** 在本条中——法例规定(statutory requirement)指由法例或根据条例施加的规定；法定登记册(statutory register)指依据由条例或根据条例施加的规定而备存的登记册、注册记录册或类似的公务名册；适当的人(appropriate person)指须开放材料予公众查阅的人或备存法定登记册的人(视属何情况而定)。 [比照 1988 c. 48 s. 47 U.K.] 56. Material open to public inspection or on official register **(1)** Where material is open to public inspection pursuant to a statutory requirement, or is on a statutory register, copyright is not infringed by the copying of so much of the material as contains factual information of a specified description, by or with the authority of the appropriate person, for a purpose which does not involve communicating the material to the public or issuing copies of the material to the public. (Amended 16 of 2022 s. 44) **(2)** Where material is open to public inspection pursuant to a statutory requirement, copyright is not infringed by copying the material, communicating the material to the public or issuing copies of the material to the public, by or with the authority of the appropriate person, for the purpose of enabling the material to be inspected at a more convenient time or place or otherwise facilitating the exercise of any right for the purpose of which the requirement is imposed. (Amended 16 of 2022 s. 44) **(3)** Where material which is open to public inspection pursuant to a statutory requirement, or which is on a statutory register, contains information about matters of general scientific, technical, commercial or economic interest, copyright is not infringed by copying the material, communicating the material to the public or issuing copies of the material to the public, by or with the a...	公共记录与官方材料使用的限制逻辑。
s.57	57. 在公务过程中供给政府的材料(由 2022 年第 16 号第 45 条修订) **(1)** 凡任何作品在公务过程中，已由版权拥有人或在版权拥有人的特许下为任何目的而供给政府，而这项供给(或该项作品的文件或其他实物，是由政府拥有或由政府保管或控制的，本条即适用。 **(2)** 凡某作品已为某目的供给政府，则政府可为该目的或为版权拥有人可合理预料的有关连目的，复制该作品，向公众传播该作品或向公众发放该作品的复制品，而不属侵犯该作品的版权。 **(3)** 如某作品先前已发表，但并非是凭借本条发表的，则政府不得凭借本条复制该作品，向公众传播该作品或向公众发放该作品的复制品。 **(4)** 在第 **(1)** 款中，公务(public business)包括政府进行的任何活动。 **(5)** 本条在政府与版权拥有人订立的协议的规限下具有效力。 (由 2022 年第 16 号第 45 条修订) [比照 1988 c. 48 s. 48 U.K.] 57. Material provided to the Government in the course of public business (Amended 16 of 2022 s. 45) **(1)** This section applies where a work has in the course of public business been provided to the Government for any purpose, by or with the licence of the copyright owner and a document or other material thing recording or embodying the work is owned by or in the custody or control of the Government. **(2)** The Government may, for the purpose for which the work was provided to it, or any related purpose which could reasonably have been anticipated by the copyright owner, copy the work, communicate the work to the public or issue copies of the work to the public without infringing any copyright in the work. **(3)** The Government may not copy a work, communicate a work to the public or issue copies of a work to the public by virtue of this section if the work has previously been published otherwise than by virtue of this section. **(4)** In subsection **(1)** public business (公务) includes any activity carried on by the Government. **(5)** This section has effect subject to any agreement to the contrary between the Government and the copyright owner. (Amended 16 of 2022 s. 45) [cf. 1988 c. 48 s. 48 U.K.]	政府在特定条件下可复制/使用某些材料。
s.58	58. 公共纪录 **(1)** 开放予公众查阅的公共纪录内的材料可予复制，其复制品亦可供应予任何人，而该项复制及供应并不属侵犯版权。 **(2)** 在本条中，公共纪录(public record)指——**(a)** 任何司法程序或行政事务的过程中制作、司法程序或行政事务的过程中所作、收到或取得的属任何性质或类别的纪录，并包括构成纪录的一部分或附连于纪录或在其他方面与纪录有关连的证物和其他具关键性的证据，而该等纪录是由任何政府部门或须由任何政府部门保管，或可能转移给政府的任何部门或由其取得的。 (由 1999 年第 22 号第 3 条修订) [比照 1988 c. 48 s. 49 U.K.] 58. Public records **(1)** Material which is comprised in public records which are open to public inspection may be copied, and a copy may be supplied to any person without infringement of copyright. **(2)** In this section public records (公共纪录) means the records of any nature or description which have been received or acquired in the course of proceedings of the Legislative Council, judicial proceedings or executive transaction, together with the exhibits and other material evidence which form part of or are annexed to or are otherwise related to any record, which are or are required to be in the custody of, or which may be transferred to or be acquired by, any department of the Government. [cf. 1988 c. 48 s. 49 U.K.]	公共利益场景的例外条款，满足条件时可减轻侵权风险。
s.59	59. 根据法定权限所作出的作为 **(1)** 凡某条例(不论何时制定)明确授权作出某作为，则除非该条例另有规定，否则作出该作为不属侵犯版权。 **(2)** 本条不得解释为令任何可根据或凭借任何条例而提出的法定权限免责辩护不得提出。 [比照 1988 c. 48 s. 50 U.K.] 59. Acts done under statutory authority **(1)** Where the doing of a particular act is specifically authorized by an Ordinance, whenever enacted, then, unless the Ordinance provides otherwise, the doing of that act does not infringe copyright. **(2)** Nothing in this section is to be construed as excluding any defence of statutory authority otherwise available under or by virtue of any Ordinance. [cf. 1988 c. 48 s. 50 U.K.]	新闻信息传播的例外条款，报道用途下可提供抗辩空间。
s.60	60. 合法使用者可制作电脑程式的后备复制品 **(1)** 电脑程式的复制品的合法使用者如需要该程式的后备复制品供作他的合法用途，可制作该程式的后备复制品，而不属侵犯该程式的版权。 **(2)** 就本条及第 61 条而言，某人如有合约权利使用某电脑程式，该人即为该程式的合法使用者。 **(3)** 本条在任何与本条及第 62 条相反的协议的规限下具有效力。 [比照 1988 c. 48 s. 50A U.K.] 60. Lawful user may make back-up copy of computer program **(1)** A lawful user of a copy of a computer program may make a back-up copy of the program without infringing the copyright in the program if it is necessary for him to have the back-up copy for the purposes of his lawful use. **(2)** For the purposes of this section and section 61 a person is a lawful user of a computer program if he has a contractual right to use the program. **(3)** This section has effect subject to any agreement to the contrary. [cf. 1988 c. 48 s. 50A U.K.]	作品附带出现场景的有限豁免。
s.61	61. 合法使用者可复制或改编程式 **(1)** 如电脑程式的复制品的合法使用者为其合法用途所需而复制或改编该程式，则他进行该项复制或改编并不属侵犯该程式的版权。 **(2)** 如为合法使用电脑程式而有此需要，该电脑程式的复制品的合法使用者尤可为更正该程式的错误所需而复制或改编该程式。 **(3)** 本条不适用于根据第 60 条而允许的任何复制或改编。 [比照 1988 c. 48 s. 50C U.K.] 61. Lawful user may copy or adapt computer program **(1)** A lawful user of a copy of a computer program may copy or adapt the program without infringing the copyright in the program if the copying or adapting is necessary for his lawful use. **(2)** A lawful user of a copy of a computer program may, in particular, if it is necessary for the lawful use of the program, copy the program or adapt it for the purpose of correcting errors in it. **(3)** This section does not apply to any copying or adapting permitted under section 60 . [cf. 1988 c. 48 s. 50C U.K.]	公共场所艺术作品再利用的边界条款。
s.65	65. 因向公众传播作品而允许作出的某些作为(由 2022 年第 16 号第 46 条修订)凡某作品向公众传播，而为让任何公众人士观看或聆听该作品，而在技术上需要制作一项短暂存在和附带的复制品，则尽管有第 23 条的规定，该项制作并不属侵犯该作品的版权。 (由 2022 年第 16 号第 46 条修订) 65. Certain acts permitted where works communicated to the public (Amended 16 of 2022 s. 46) Notwithstanding section 23 , copyright in a work is not infringed by the making of a transitory or incidental copy which is technically required for the viewing or listening of the work by a member of the public to whom the work is communicated. (Amended 16 of 2022 s. 46)	计算机程序相关法定例外的关键条款，技术使用常会回到这里判断。
s.65A	65A. 由服务提供者作出的暂时复制 **(1)** 在符合以下规定的情况下，服务提供者为储存某作品的复制品，并不属侵犯该作品的版权——**(a)** 制作及储存该复制品的唯一目的，是令该提供者能更有效率地透过网络传送该作品；**(b)** 制作及储存该复制品是某种技过程中一个自动及必要的部分，而该过程并不改动该作品，亦不干扰合法使用科技以取得该作品的使用情况的数据；**(c)** 储存该复制品是暂时的；**(d)** 该提供者按照合理的行业常规，更新储存该复制品的数据库；**(e)** 该提供者遵守接达该作品的条件(如有的话)；及 **(f)** 该提供者一旦实际知悉以下任何一项事实，便从速移除该复制品，或使其不能被接达——**(i)** 该复制品是自某来源处制作的，而该作品已从该处被移除；**(ii)** 该复制品是自某来源处制作的，而该作品已不能在该处被接达。 **(2)** 在本条中——服务提供者(service provider)指藉电子设备或网络(或同时藉两者)，提供任何联线服务或为任何联线服务操作设施的人；寄存(hosting)指应使用者的指令，在网络伺服器或任何电子检索系统中	程序互操作/测试等技术场景补充例外。
	(authorized recipient)就获某教育机构授权的人作出的传播而言，指已获该机构授权(或已获该机构的代表授权)接收该项传播的该机构的教师或学生。 (由 2022 年第 16 号第 31 条增补) [比照 1988 c. 48 s. 36 U.K.] 45. Copying or communication by educational establishments or pupils: passages or extracts from published works (Amended 15 of 2007 s. 16 ; 16 of 2022 s. 31) **(1)** Copies of artistic works or of passages from published literary, dramatic or musical works, or extracts from published sound recordings or films, may, to a reasonable extent, be made by or on behalf of an educational establishment for the purposes of giving instruction, or by a pupil for the purposes of receiving instruction in a specified course of study provided by an educational establishment, without infringing any copyright in the work, in the typographical arrangement, or in the sound recording or film (as the case may be). (Amended 15 of 2007 s. 16 ; 16 of 2022 s. 31) **(1A)** A person authorized by an educational establishment may, without infringing copyright, communicate to an authorized recipient a copy of an artistic work, a passage from a published literary, dramatic or musical work, or an extract from a published sound recording or film, that has been made in accordance with subsection **(1)** if— **(a)** the person makes the communication for the educational purposes of the establishment; and **(b)** the establishment takes all reasonable steps to ensure that— **(i)** only authorized recipients receive the communication; and **(ii)** the authorized recipients do not make any copy or further transmission of the communication....	

	提供空间，以储存资料或材料； 资料搜寻工具(information location tools)指连接或指引使用者至某联线位置的工具，例如目录、索引、参考点，指示器或超文本连结； 路由选择 (routing) 指引导或选择传送数据的方法或路径； 联线服务(online service)包括——(a) 传送使用者所选择的资料或材料，或为该资料或材料作出路由选择，或为该资料或材料的数码联线通道提供连接，而该等数码联线通道，是使用者指明的超过一个点之间或之中进行的； (b) 寄存使用者能接达的资料或材料； (c) 在使用者能接达的系统或网络储存资料或材料； (d) 藉使用资料搜寻工具，连接或指引使用者至某联线位置； 及 (e) 向使用者提供联线社交网络服务。
65A. Temporary reproduction by service providers (1) The copyright in a work is not infringed by the making and storage of a copy of the work by a service provider if— (a) the sole purpose of the making and storage is to enable more efficient transmission of the work by the provider through a network; (b) the making and storage forms an automatic and essential part of a technological process, and that process neither modifies the work, nor interferes with the lawful use of technology to obtain data on the use of the work; (c) the storage is temporary; (d) the provider updates the database in which the copy is stored in accordance with reasonable industry practice; (e) the provider complies with conditions (if any) on access to the work; and (f) the provider acts promptly to remove the copy or disable access to the copy in the event that either of the following facts comes to the provider' s actual knowledge— (i) the work has been removed from the original source from which the copy was made; (ii) access to the work at the original source from which the copy was made has been disabled. (2) In this section— hosting (寄存) means providing space on a network server or any electronic retrieval system for storage of information or material at the direction of a user; information location tools (资料搜寻工具) means tools such as directories, indexes, references, pointers, or hypertext links...	
s.89	89. 被识别为作者或导演的权利 (1) 具有版权的文学作品、戏剧作品、音乐作品或艺术作品的作者以及具有版权的影片的导演，在本条提及的情况下具有被识别为作品的作者或导演的权利；但除非该权利已按照第 90 条宣示，否则该权利并未遭侵犯。 (由 2007 年第 15 号第 22 条修订) (2) 凡有文学作品(但投在音乐作随下唱出或讲出的文字朗读外)或戏剧作品—— (a) 作商业发表、公开表演或向公众传播；或 (b) 包括在某影片或声音纪录中，而该影片或声音纪录是向公众提供的，或该影片或声音纪录的复制品是向公众发放的，(由 2022 年第 16 号第 57 条代替)则该作品的作者即具有被识别的权利；如有人将该作品的改编本作任何上述用途，则该权利包括被识别为该改编本所根据的原来作品的作者的权利。 (3) 凡有音乐作品，或由拟在音乐伴随下唱出或讲出的文字所构成的文学作品—— (a) 作商业发表、公开表演或向公众传播； (b) 被制成声音纪录，该声音纪录是向公众提供的，或该声音纪录的复制品是向公众发放的；或(由 2022 年第 16 号第 57 条代替) (c) 包括在某影片的声带中，而该影片是公开放映的或是向公众提供的，或该影片的复制品是向公众发放的，(由 2022 年第 16 号第 57 条代替)则该作品的作者即具有被识别的权利；如有人将该作品的改编本作任何上述用途，则该权利包括被识别为该改编本所根据的原来作品的作者的权利。 (4) 凡有——(a) 艺术作品作商业发表或公开陈列，或其影像向公众传播；(由 2007 年第 15 号第 22 条修订) (b) 艺术作品的影像包括在某影片中，而该影片是公开放映的或是向公众提供的，或该影片的复制品是向公众发放的；或(由 2022 年第 16 号第 57 条代替) (c) 建筑物形式或建筑物模型形式的建筑作品、雕塑品或美工工艺作品的艺术作品，是以平面美术作品表述或拍摄或照片的，而该平面美术作品或该照片是向公众提供的，或该平面美术作品的复制品或该照片的复制品是向公众发放的，则该艺术作品的作者即具有被识别为作者的权利。 (5) 建筑物形式的建筑作品的作者，亦有权在建成的有关建筑物上被识别为作者；如有超过一座建筑物依照该设计建成，则作者有权在第一座如此建成的建筑物上被识别为作者。 (6) 凡公开放映或向公众传播某影片，或向公众发放某影片的复制品，则该影片的导演即具有被识别的权利。 (7) 在—— (a) 影片或声音纪录的复制品作商业发表或向公众发放方面，作者或导演根据本条具有的权利为有权在每份该等复制品之上或之内被识别，在如此被识别并不适当的情况下，则有权以相当可能使取得该等复制品的人知悉其身分的其他方式被识别； (ab) 影片或声音纪录向公众提供方面，作者或导演根据本条具有的权利为有权在该影片或声音纪录之上或之内被识别，在如此被识别并不适当的情况下，则有权以相当可能使取得该影片或声音纪录的人知悉该作者或导演身分的其他方式被识别；(由 2022 年第 16 号第 57 条增补) (b) 建筑物上识别身分方面，作者或导演根据本条具有的权利为有权以适当方法被识别，而该方法须能使建人或接近该建筑物的人看见该项识别的；及 (c) 任何其他方面，作者或导演根据本条具有的权利为有权以任何方式被识别，而该方式须是相当可能使观看或聆听有关表演、陈列、放映或传播的人知悉其身分的，(由 2007 年第 15 号第 22 条修订)而在每种情况下，该项识别必...
89. Right to be identified as author or director (1) The author of a copyright literary, dramatic, musical or artistic work, and the director of a copyright film, has the right to be identified as the author or director of the work in the circumstances mentioned in this section; but the right is not infringed unless it has been asserted in accordance with section 90 . (2) In relation to a work of the author of a literary work (other than words intended to be sung or spoken with music) or a dramatic work has the right to be identified whenever— (a) the work is published commercially, performed in public or communicated to the public; or (b) a film or sound recording including the work is made available to the public, or copies of such a film or sound recording are issued to the public, (Replaced 16 of 2022 s. 57) and that right includes the right to be identified whenever any of those events occur in relation to an adaptation of the work as the author of the work from which the adaptation was made. (3) The author of a musical work, or a literary work consisting of words intended to be sung or spoken with music, has the right to be identified whenever— (a) the work is published commercially, performed in public or communicated to the public; (b) a sound recording of the work is made available to the public, or copies of such a sound recording are issued to the public; or (Replaced 16 of 2022 s. 57) (c...	作者/导演有被署名识别的权利。
s.90	90. 被识别的权利之宣示(由 2007 年第 15 号第 23 条修订) (1) 除非第 89 条(被识别为作者或导演的权利)所赋予的权利已按照以下条文宣示，以对作出该条所提及作为的人就他作出该作为加以约束，否则任何人作出该条提及的作为，不侵犯该权利。 (2) 凡作出该作为的人，或作为该作为的雇主的人，以书面方式一般性地宣示，或就任何指明的作为或指明类别的作为宣示—— (由 2007 年第 15 号第 23 条修订) (a) 在转让作品的版权时，在转让版权的文书中加入述明作者或导演就该作品宣示其被识别的权利的陈述；或 (b) 由作者或导演签署的文书。 (3) 被识别的权利可藉以下方式就公开陈列的艺术作品而宣示——(由 2007 年第 15 号第 23 条修订) (a) 凡作者或其他版权第一拥有人放弃对艺术作品原版的管有或放弃对艺术作品复制品(由他本人所制作或在他指示或控制下所制作的)的管有，则确保作者在当时已在该原版或复制品上被识别，或已在附连原版或复制品的框架、装裱或其他东西上被识别；或 (b) 在作者或版权第一拥有人授权制作作品复制品的特许中，加入一项由批出特许的人签署或由他人代其签署的书面陈述，该陈述指出如依据特许而公开陈列该复制品，则作者即宣示其被识别的权利。 (4) 受根据第 (2) 或 (3) 款宣示被识别的权利约束的人为——(由 2007 年第 15 号第 23 条修订) (a) 就根据第 (2) 款宣示权利而言，承让人及透过承让人提出申索的人(不论他是否知悉该项宣示)；(b) 就根据第 (2) 款宣示权利而言，得悉该项宣示的人；(c) 就根据第 (3) 款宣示权利而言，获得有关原版或复制品的人(不论有关识别是否仍存在或可可剪切)；(d) 就根据第 (3) 款宣示权利而言，特许持有人及该特许被指明特许制作的复制品的人(不论他是否知悉该项宣示)。 (5) 在就被识别的权利遭侵犯而进行的诉讼中，法庭在考虑补救时，须将宣示该权利的任何延误列为考虑因素。 (由 2007 年第 15 号第 23 条修订) [比照 1988 c. 48 s. 78 U.K.]
90. Requirement that right be asserted (1) A person does not infringe the right conferred by section 89 (right to be identified as author or director) by doing any of the acts mentioned in that section unless the right has been asserted in accordance with the following provisions so as to bind him in relation to that act. (2) The right may be asserted generally, or in relation to any specified act or description of acts— (a) on an assignment of copyright in the work, by including in the instrument effecting the assignment a statement that the author or director asserts in relation to that work his right to be identified; or (b) by instrument in writing signed by the author or director. (3) The right may also be asserted in relation to the public exhibition of an artistic work— (a) by securing that when the author or other first owner of copyright parts with possession of the original, or of a copy made by him or under his direction or control, the author is identified on the original or copy, or on a frame, mount or other thing to which it is attached; or (b) by including in a licence by which the author or other first owner of copyright authorizes the making of copies of the work a written statement signed by or on behalf of the person granting the licence that the author asserts his right to be identified in the event of the public exhibition of a copy made in pursuance of...	要主张署名权，通常要先依法作出宣示。
s.91	91. 权利的例外情况 (1) 第 89 条(被识别为作者或导演的权利)所赋予的权利有以下例外情况。 (2) 该权利并不就以下类别的作品而适用——(a) 电脑程式； (b) 字体设计； (c) 任何由电脑产生的作品。 (3) 如作品版权原本是凭借第 14 (1) 条(雇员的作品)而归属作者的雇主，则该权利不适用于由有关版权拥有人或在其授权下所作出的任何事情。 (4) 如任何作为凭借以下任何条文而不属侵犯作品的版权，则该作为亦不属侵犯被识别的权利—— (a) 第 39 条(批评、评论、引用及报道和评论时事)；(由 2022 年第 16 号第 58 条代替) (ab) 第 39A 条(戏仿、讽刺、笑盗滑稽及模仿)；(由 2022 年第 16 号第 58 条增补) (b) 第 40 条(附带地将作品包括在某艺术作品、声音纪录、影片、广播或有线传播节目内)； (c) 第 41 (3) 条(试题)； (ca) 第 54B 条(立法会)；(由 2007 年第 15 号第 24 条增补) (d) 第 54 条(司法程序)；(由 1999 年第 22 号第 3 条修订；由 2007 年第 15 号第 24 条修订) (e) 第 55 (1) 或 (2) 条(法定研讨)； (f) 第 66 或 75 条(基于关于版权期限届满等的假设而允许作出的作为)。 (5) 被识别的权利不就任何为报道时事的目的制作的作品而适用。 (由 2022 年第 16 号第 111 条修订) (6) 如制作文学作品、戏剧作品、音乐作品或艺术作品的目的是将该等作品于——(a) 报章、杂志或相类期刊发表；或 (b) 百科全书、字典、词典、年鉴或其他参考性工集作品发表，或作者同意为于上述刊物发表而提供作品，则被识别的权利不就该等作品于上述刊物发表而适用。 (7) 凡—— (a) 有政府版权或立法会版权存在于某作品被识别的权利不就该作品而适用；或(由 1999 年第 22 号第 3 条修订) (b) 某作品的版权凭借第 188 条而原本归属某国际组织，被识别的权利不就该作品而适用，但如作者或导演以前已在该作品上或作品的已发表版本上被识别为作者或导演，则属例外。 [比照 1988 c. 48 s. 79 U.K.]
91. Exceptions to right (1) The right conferred by section 89 (right to be identified as author or director) is subject to the following exceptions. (2) The right does not apply in relation to the following descriptions of work— (a) a computer program; (b) the design of a typeface; (c) any computer-generated work. (3) The right does not apply to anything done by or with the authority of the copyright owner where copyright in the work originally vested in the author' s employer by virtue of section 14 (1) (employee works). (4) The right is not infringed by an act which by virtue of any of the following provisions would not infringe copyright in the work— (a) section 39 (criticism, review, quotation, and reporting and commenting on current events); (Replaced 16 of 2022 s. 58) (ab) section 39A (parody, satire, caricature and pastiche); (Added 16 of 2022 s. 58) (b) section 40 (incidental inclusion of work in an artistic work, sound recording, broadcast or cable programme); (c) section 41 (3) (examination questions); (ca) section 54B (Legislative Council); (Added 15 of 2007 s. 24) (d) section 54 (judicial proceedings); (Amended 15 of 2007 s. 24) (e) section 55 (1) or (2) (statutory inquiries); (f) section 66 or 75 (acts permitted on assumptions as to expiry of copyright, etc.). (5) The right does not apply in relation to any work made for the purpose of reporting current events...	署名权例外条款。
s.92	92. 反对作品受贬损处理的权利 (1) 具有版权的文学作品、戏剧作品、音乐作品或艺术作品的作者以及具有版权的影片的导演，在本条提及的情况下具有使其作品不受贬损处理的权利。 (2) 就本条而言—— (a) 处理 (treatment) 任何作品进行任何增加、删除、修改或改编，但不包括—— (i) 翻译文学作品或戏剧作品；或 (ii) 将音乐作品编曲或改作而只涉及转调或转音域；及 (b) 如作品经处理后受歪曲或残缺不全，在其他方面对作者或导演的荣誉或声誉具损害性，则该项处理属贬损处理， 而在以下条文中，凡提述作品受贬损处理，即须据此解释。 (3) 就文学作品、戏剧作品或音乐作品而言，任何人如—— (a) 将受贬损处理的作品作商业发表、公开表演或向公众传播；或(由 2022 年第 16 号第 59 条修订) (b) 向公众提供受贬损处理的作品的影片或声音纪录，或向公众提供包括受贬损处理的作品在内的影片或声音纪录，或向公众发放该等影片或声音纪录的复制品，(由 2022 年第 16 号第 59 条代替)该人即属侵犯该权利。 (4) 就艺术作品而言，任何人如—— (a) 将受贬损处理的作品作商业发表或公开陈列，或将受贬损处理的作品的影像向公众传播；(由 2007 年第 15 号第 25 条修订) (b) 公开放映包括受贬损处理的作品的影像在内的影片，或向公众提供该影片或向公众发放该影片的复制品；或 (c) 向公众提供表述受贬损处理的下列作品的平面美术作品或照片或向公众发放该平面美术作品或照片的复制品——(由 2022 年第 16 号第 59 条修订) (i) 建筑物模型形式的建筑作品； (ii) 雕塑品；或 (iii) 美术工艺作品， 该人即属侵犯该权利。 (5) 如 (4) 款不适用于建筑物形式的建筑作品；但如该等作品的作者已在该建筑物上被识别，而该建筑物属受贬损处理的标的物，则该作者有权要求除去该识别。 (6) 就影片而言，任何人如—— (a) 将受贬损处理的影片公开放映或向公众传播；或 (b) 向公众发放受贬损处理的影片的复制品，该人即属侵犯该权利。 (由 2022 年第 16 号第 59 条修订) (7) 因先前并非由作者或导演作出的处理而产生的某作品的部分凡受到处理，则该等部分如源出于该作者或导演或相当可能被视为该作者或导演的作品，本条所赋予的权利的适用范围，即扩及对该等部分的处理。 (8) 本条在第 93 及 94 条(权利的例外情况及约束)的规限下具有效力。 [比照 1988 c. 48 s. 80 U.K.]
92. Right to object to derogatory treatment of work (1) The author of a copyright literary, dramatic, musical or artistic work, and the director of a copyright film, has the right in the circumstances mentioned in this section not to have his work subjected to derogatory treatment. (2) For the purposes of this section— (a) treatment (处理) of a work means any addition to, deletion from or alteration to or adaptation of the work, other than— (i) a translation of a literary or dramatic work; or (ii) an arrangement or transcription of a musical work involving no more than a change of key or register; and (b) the treatment of a work is derogatory if it amounts to distortion or mutilation of the work or is otherwise prejudicial to the honour or reputation of the author or director, and in the following provisions of this section references to a derogatory treatment of a work are construed accordingly. (3) In the case of a literary, dramatic or musical work the right is infringed by a person who— (a) publishes commercially, performs in public or communicates to the public a derogatory treatment of the work; or (Amended 16 of 2022 s. 59) (b) makes available to the public a film or sound recording of, or including, a derogatory treatment of the work, or issues copies of such a film or sound recording to the public. (Replaced 16 of 2022 s. 59) (4) In the case of an artistic work the ri...	作者/导演可反对作品被贬损处理（歪曲、丑化等）。
s.94	94. 在某些情况下权利受约制 (1) 凡—— (a) 某作品凭借第 14 (1) 条(在受雇工作期间制作的作品)而原本归属作者的雇主； (b) 有政府版权或立法会版权存在于某作品；及(由 1999 年第 22 号第 3 条修订) (c) 某作品的版权凭借第 188 条而原本归属某国际组织，则本条适用于该作品。 (2) 第 92 条(反对作品受贬损处理的权利)所赋予的权利，不适用于由第 (1) 款所提述作品的版权拥有人或在其授权下就该等作品所作出的任何事情，但如作者或导演—— (a) 在有关作为作出之时被识别；或 (b) 先前已在该作品的已发表复制品之间或之上被识别， 则属例外，而凡该权利在该情况下适用，则只要有足够的卸责声明，该权利不属遭侵犯。 [比照 1988 c. 48 s. 82 U.K.]	雇佣/政府/国际组织场景下精神权利限缩。
	94. Qualification of right in certain cases (1) This section applies to— (a) works in which copyright originally vested in the author' s employer by virtue of section 14 (1) (works produced in course of employment); (b) works in which Government copyright or Legislative Council copyright subsists; and (c) works in which copyright originally vested in an international organization by virtue of section 188 . (2) The right conferred by section 92 (right to object to derogatory treatment of work) does not apply to anything done in relation to a work referred to in subsection (1) by or with the authority of the copyright owner unless the author or director— (a) is identified at the time of the relevant act; or (b) has previously been identified in or on published copies of the work, and where in such a case the right does apply, it is not infringed if there is a sufficient disclaimer. [cf. 1988 c. 48 s. 82 U.K.]	
s.95	95. 管有侵犯权利物品或进行侵犯权利物品的交易而侵犯权利 (1) 任何人知道或有理由相信某物品属侵犯权利物品而将该物品作以下处置，即属侵犯第 92 条(反对作品受贬损处理的权利)所赋予的权利—— (a) 为任何贸易或业务的目的或在任何贸易或业务的过程中，管有该物品；(由 2000 年第 64 号第 4 条代替) (b) 将该物品出售、出租、要约出售或要约出租，或为出售或出租而展示该物品； (c) 为任何贸易或业务的目的或在任何贸易或业务的过程中，公开陈列或分发该物品；或(由 2000 年第 64 号第 4 条代替) (d) 并非为任何贸易或业务的目的亦并非在任何贸易或业务的过程中，分发该物品致使作者或导演的荣誉或声誉受不利影响。 (由 2000 年第 64 号第 4 条修订；由 2007 年第 15 号第 26 条修订) (1A) 就第 (1) (a) 及 (c) 款而言，有关的贸易或业务是否包含经贸侵犯权利物品并不具关键性。 (由 2000 年第 64 号第 4 条增补) (2) 侵犯权利物品(infringing article)指某项作品或该作品的复制品，而该作品或复制品—— (a) 曾受到第 92 条所指的贬损处理；及 (b) 曾经或相当可能在侵犯该权利的情况下属该条提及的作为的标的物。 [比照 1988 c. 48 s. 83 U.K.]
95. Infringement of right by possessing or dealing with infringing article (1) The right conferred by section 92 (right to object to derogatory treatment of work) is also infringed by a person who— (a) possesses for the purpose of or in the course of any trade or business, or exposes or distributes in the course of any trade or business; (Replaced 64 of 2000 s. 4) (b) sells or lets for hire, or offers or exposes for sale or hire; (c) exhibits in public or distributes for the purpose of or in the course of any trade or business; or (Replaced 64 of 2000 s. 4) (d) distributes (otherwise than for the purpose of or in the course of any trade or business) so as to affect prejudicially the honour or reputation of the author or director, (Amended 64 of 2000 s. 4) an article which is, and which he knows or has reason to believe is, an infringing article. (Amended 15 of 2007 s.26) (1A) It is immaterial for the purpose of subsection (1) (a) and (c) whether or not the trade or business consists of dealing in infringing articles. (Added 64 of 2000 s. 4) (2) An infringing article (侵犯权利物品) means a work or a copy of a work which— (a) has been subjected to derogatory treatment within the meaning of section 92 ; and (b) has been or is likely to be the subject of any of the acts mentioned in that section in circumstances infringing that right. [cf. 1988 c. 48 s. 83 U.K.]	明知侵害精神权利仍交易也会侵权。
s.97	97. 权利的期限 (1) 第 89 条(被识别为作者或导演的权利)所赋予的权利以及第 92 条(反对作品受贬损处理的权利)所赋予的权利，在作品的版权存在的期间持续存在。 (2) 第 96 条(虚假署名)所赋予的权利持续存在，直至有关的人死后 20 年为止。 [比照 1988 c. 48 s. 86 U.K.]
97. Duration of rights (1) The right conferred by section 89 (right to be identified as author or director) and section 92 (right to object to derogatory treatment of work) continue to subsist so long as copyright subsists in the work. (2) The right conferred by section 96 (false attribution) continues to subsist until 20 years after a person' s death. [cf. 1988 c. 48 s. 86 U.K.]	精神权利有独立期限，不完全等同财产权期限。
s.98	98. 同意及放弃权利 (1) 具有本分部所赋予的任何权利的人如同意作出某作为，则作出该作为并不属侵犯该权利。 (2) 任何该等权利可藉由放弃权利的人签署的文书而放弃。 (3) 放弃权利—— (a) 可关乎某特定作品、某指明类别的作品或一般地关乎所有作品，以及可关乎现存或未来的作品；及 (b) 可以是有条件或无条件的，亦可明示为可予撤回的， 而放弃权利如是为惠及该项放弃权利所关乎的作品的版权拥有人或惠拥有人而作出的，则可推定该项放弃权利亦延伸而适用于该拥有人或惠拥有人的特许持有人及所有权继承人，但如明示有相反的意愿，则属例外。 (4) 本分部不得解释为摒除与任何关乎第 (1) 款提及的权利的非正式放弃或其他使用有关的一般合约法或不容反悔法的施行。 [比照 1988 c. 48 s. 87 U.K.]
98. Consent and waiver of rights (1) It is not an infringement of any of the rights conferred by this Division to do any act to which the person entitled to the right has consented. (2) Any of those rights may be waived by instrument in writing signed by the person giving up the right. (3) A waiver— (a) may relate to a specific work, to works of a specified description or to works generally, and may relate to existing or future works; and (b) may be conditional or unconditional and may be expressed to be subject to revocation, and if made in favour of the owner or prospective owner of the copyright in the work or works to which it relates, it is presumed to extend to his licensees and successors in title unless a contrary intention is expressed. (4) Nothing in this Division is to be construed as excluding the operation of the general law of contract or estoppel in relation to informal waiver or other transaction in relation to any of the rights mentioned in subsection (1) . [cf. 1988 c. 48 s. 87 U.K.]	精神权利可以同意放弃，但最好有清楚书面文本。
s.99	99. 对合作作品适用的条文 (1) 就合作作品而言， 第 89 条(被识别为作者或导演的权利)所赋予的权利为每名合作作者被识别为合作作者的权利，而该权利须由每名合作作者按照第 90 条就其本身而宣示。 (由 2007 年第 15 号第 28 条修订) (2) 就合作作品而言， 第 92 条(反对作品受贬损处理的权利)所赋予的权利为每名合作作者的权利；如合作作者同意作品接受有关的处理，即属体现其权利。 (由 2007 年第 15 号第 28 条修订) (3) 合作作者中的其中一名作者根据第 98 条放弃该等权利，并于影响其他合作作者的该等权利。 (4) 在第 96 条(虚假署名)提及的情况下，如有人将合作作品的复制品作商业发表或向公众发放方面，作者或导演根据本条具有的权利为有权在每份该等复制品之上或之内被识别，而上述虚假署名亦属侵犯权利，并于影响其他合作作者的该等权利。 (5) 本条条文经必要的修改后，亦适用于合作导演(或被指称为合作导演)的影片，一如该等条文适用于合作作品(或被指称为合作作品)的作品一样。 如某影片是由 2 名或多于 2 名导演合作制作，而且每名导演的贡献是与其他导演的贡献分不开的，该影片即属合作导演(jointly directed)的影片。 (编辑修订——2019 年第 2 号编辑修订纪录) [比照 1988 c. 48 s. 88 U.K.]
99. Application of provisions as to joint works (1) The right conferred by section 89 (right to be identified as author or director) is, in the case of a work of joint authorship, a right of each joint author to be identified as a joint author and must be asserted in accordance with section 90 by each joint author in relation to himself. (2) The right conferred by section 92 (right to object to derogatory treatment of work) is, in the case of a work of joint authorship, a right of each joint author and his right is satisfied if he consents to the treatment in question. (3) A waiver under section 98 of those rights by one joint author does not affect the rights of the other joint authors. (4) The right conferred by section 96 (false attribution) is infringed, in the circumstances mentioned in that section— (a) by any false statement as to the authorship of a work of joint authorship; and (b) by the false attribution of joint authorship in relation to a work of sole authorship, and such a false attribution infringes the right of every person to whom authorship of any description is, whether rightly or wrongly, attributed. (5) The provisions of this section also apply (with any necessary adaptations) in relation to a film which was, or is alleged to have been, jointly directed, as they apply to a work which is, or is alleged to be, a work of joint authorship. A film is jointly dir...	合作作品下精神权利如何分别适用。

B. PDPO (Cap.486)

Section	Text	Notes
DPP1	条文未匹配（Cap.486）。请按章节标题与条号回查原文。 Provision not matched (Cap.486). Verify section reference and re-check source text.	未匹配到条文。先核对条号，再回抓。
DPP2	条文未匹配（Cap.486）。请按章节标题与条号回查原文。 Provision not matched (Cap.486). Verify section reference and re-check source text.	未匹配到条文。先核对条号，再回抓。
DPP3	条文未匹配（Cap.486）。请按章节标题与条号回查原文。 Provision not matched (Cap.486). Verify section reference and re-check source text.	未匹配到条文。先核对条号，再回抓。
DPP4	条文未匹配（Cap.486）。请按章节标题与条号回查原文。 Provision not matched (Cap.486). Verify section reference and re-check source text.	未匹配到条文。先核对条号，再回抓。
DPP5	条文未匹配（Cap.486）。请按章节标题与条号回查原文。 Provision not matched (Cap.486). Verify section reference and re-check source text.	未匹配到条文。先核对条号，再回抓。
DPP6	条文未匹配（Cap.486）。请按章节标题与条号回查原文。 Provision not matched (Cap.486). Verify section reference and re-check source text.	未匹配到条文。先核对条号，再回抓。
Part 6A	irst collection if, but only if, the data user concerned has complied with the provisions of data protection principle 1 (3) in respect of the subsequent collection. 第 6A 部在直接促销中使用个人资料以供用于直接促销(第 6A 部由 2012 年第 18 号第 21 条增补) Part 6A Use of Personal Data in Direct Marketing and Provision of Personal Data for Use in Direct Marketing (Part 6A added 18 of 2012 s. 21) 35A. 第 6A 部的释义 (1) 在本部中——同意 (consent) 就在直接促销中使用个人资料而言，或就提供个人资料以供在直接促销中使用而言，包括表示不反对该项使用或提供； 回应通知 (response channel)指由资料使用者根据 35C (2) (c) 或 35J (2) (c) 条向资料当事人提供的途径； 直接促销(direct marketing)指透过直接促销方法——(a) 要约提供货品、设施或服务，或为该等货品、设施或服务可予提供而进行广告宣传；或 (b) 为慈善、文化、公益、康体、政治或其他目的来求捐赠或贡献；直接促销方法(direct marketing means)指—— (a) 藉邮件、图文传真、电子邮件或其他形式的传讯，向指名特定人士送交资讯或货品；或 (b) 以特定人士为收电对象的电话通话； 促销标的(marketing subject)就直接促销而言，指—— (a) 被要约提供或就其可予提供而进行广告宣传的任何货品、设施或服务；或 (b) 任何求来捐赠或贡献的目的； 许可种类个人资料(permitted kind of personal data)就资料当事人对某项拟进行的个人资料使用而言，指符合以下条件的种类的个人资料—— (a) 该种类的个人资料是在该当事人根据第 35C (2) (b) (i) 或 35J (2) (b) (i) 条获提供的资讯中指明的； 及 (b) 该项意是就该种类的个人资料给予的； 许可类别人士(permitted class of persons)就资料当事人对某项拟进行的个人资料提供的同意而言，指符合以下条件的类别的人士—— (a) 该类别的人士是在该当事人根据第 35J (2) (b) (iii) 条获提供的资讯中指明的； 及 (b) 该项意是就该类别的人士给予的； 许可类别促销标的(permit	直销专章：用或转交个人资料做直销前，通知与同意要做足。
Part VIII	条文未匹配（Cap.486）。请按章节标题与条号回查原文。 Provision not matched (Cap.486). Verify section reference and re-check source text.	未匹配到条文。先核对条号，再回抓。
s.15	15. 资料使用者登记册 (1) 专员须使用资料使用者申报表及变更通知的资讯，以备存及维持一份已呈交该等申报表的资料使用者的登记册。 (由 2012 年第 18 号第 9 条代替) (2) 登记册须—— (a) 采用数据库的形式；及 (b) 就每一名已呈交资料使用者申报表的资料使用者，载有在该申报表中指明的通知中提供的资料，(由 2012 年第 18 号第 9 条修订) (3) 凡专员为在登记册与某资料使用者有关的范围内备存及维持登记册而合理地需要关于该资料使用者的订明资讯，专员可藉送达予该资料使用者的书面通知，要求该资料使用者呈交载有该等资讯并符合指明格式的通知，而该资料使用者须在专员所送达的通知中规定的期间(该期间不得迟于通知送达后的 30 日)内，以专员在通知中规定的方式，呈交该符合指明格式的通知。 (由 2012 年第 18 号第 9 条修订) (4) 凡根据第 (3) 款由某资料使用者呈交予专员的订明资讯在呈交后有所变更——(a) 如(但只在有在以下情况下)——(i) 该等资讯在该款下的有关的通知中指明为本款所适用的资讯，及 (ii) 第 (2) 节规定的通知载有或附有——(A) 本款的文本；及 (B) 一项摘要说明本款施加于资料使用者的规定的陈述，该资料使用者须向专员送达指明该等变更的书面通知；及 (b) 该资料使用者须在该等变更发生后的 30 日内向专员送达上述通知。 (4A) 任何资料使用者明知或罔顾实情地在呈交予或送达专员的通知中，提供任何在要项上属虚假或具误导性的资讯，充作遵守第 (3) 或 (4) 款，即属犯罪。 —经定罪，可处第 3 级罚款及监禁 6 个月。 (由 2012 年第 18 号第 9 条增补) (5) 如专员信纳某人已不再是资料使用者，他可从登记册中，删去其中有资料是该人的资料使用者的身分而与他有关的任何详情。 (6) 已不再是资料使用者的人，可藉向专员送达符合订明格式的通知，要求专员从登记册中，删去其中所载的基于该人的资料使用者的身分而与他有关的详情，而除非该人已撤回该项要求，专员须在收到该通知当日后的 3 个月内，依从该项要求。 (7) 任何人在根据第 (6) 款送达专员的通知中，为了登记册所载的基于该人的资料使用者身分而与该人有关的详情传以删除，而提供任何在要项上属虚假或具误导性的资讯，即属犯罪，—经定罪，可处第 3 级罚款及监禁 6 个月。 (由 2012 年第 18 号第 9 条增补)
15. Register of data users (1) The Commissioner must keep and maintain a register of data users who have submitted data	专员会据申报资料维护登记册。

	user returns, using information in those returns and in any change notices. (Replaced 18 of 2012 s. 9) (2) The register shall— (a) be in the form of a database; and (b) contain, in respect of each data user who has submitted a data user return, such particulars of the information supplied in that return and any change notice as the Commissioner thinks fit. (Amended 18 of 2012 s. 9) (3) The Commissioner may, by notice in writing served on a data user, require the data user to submit a notice in the specified form containing such prescribed information in relation to the data user as the Commissioner may reasonably require in order to keep and maintain the register in so far as it relates to that data user, and the data user shall so submit the second-mentioned notice within such period (being a period of not less than 30 days after service of the first-mentioned notice) and in such manner as the Commissioner requires in the first-mentioned notice. (Amended 18 of 2012 s. 9) (4) Where any prescribed information submitted to the Commissioner under subsection (3) by a data user changes subsequent to the submission, then the data user shall serve a notice in writing on the Commissioner specifying such change— (a) if, but only if— (i) such information is specified...		
s.16	16. 登记册的查阅 (1) 专员须提供设施以令登记册中所载详情— (a) 可供任何人查阅; (b) 可藉可观看及可阅读的形式供查阅; (c) 可在一般办公时间内供查阅; 及 (d) 可免费供查阅。 (2) 如专员— (a) 收到由某人提出的符合指明格式的申请; 及 (b) 收到订明费用, 他须以书面提供登记册所载的关于该申请所指明的某资料使用者(或某类别的资料使用者)详情的复本。 (3) 在没有相反证据的情况下, 第 (1) 款 (a) 段下的查阅资料要求须视为该款 (a) 及 (b) 段下的查阅资料要求, 而本条例的条文(包括第 (2) 款)据此解释。 (4) 就个人资料而言, 如某资料使用者——(由 2012 年第 18 号第 2 条修订) (a) 不是持有该资料的; 但 (b) 控制该资料的使用, 而控制的方式禁止实际持有该资料的另一资料使用者根据(不论是完全抑从或部分抑从)关乎该资料的查阅资料要求, (由 2012 年第 18 号第 2 条修订)则他须当作持有该资料, 而本条例的条文(包括本条)须据此解释。 (由 2012 年第 18 号第 2 条修订) (5) 任何人在查阅资料要求中, 为了令有关资料使用者——(a) 告知该人该资料使用者是否持有属该要求的标的之个人资料; 及 (b) (如适用)提供一份该资料的复本, 而提供在要项上属虚假或具误导性的资料, 即属犯罪。 (由 2012 年第 18 号第 11 条增补) (6) 任何人犯第 (5) 款所订罪行, 一经定罪, 可处第 3 级罚款及监禁 6 个月。 (由 2012 年第 18 号第 11 条增补) 18. Data access request (1) An individual, or a relevant person on behalf of an individual, may make a request— (a) to be informed by a data user whether the data user holds personal data of which the individual is the data subject; (b) if the data user holds such data, to be supplied by the data user with a copy of such data. (2) A data access request under both paragraphs of subsection (1) shall be treated as being a single request, and the provisions of this Ordinance shall be construed accordingly. (3) A data access request under paragraph (a) of subsection (1) may, in the absence of evidence to the contrary, be treated as being a data access request under both paragraphs of that subsection, and the provisions of this Ordinance (including subsection (2)) shall be construed accordingly. (4) A data user who, in relation to personal data— (a) does not hold the data; but (b) controls the use of the data in such a way as to prohibit the data user who does hold the data from complying (whether in whole or in part) with a data access request which relates to the data, shall be deemed to hold the data, and the provisions of this Ordinance (including this section) shall be construed accordingly. (Amended 18 of 2012 s. 11) (5) A person commits an offence if the person, in a data access request, supplies any information which is false or misleading in a material particular for the ...	登记册可查阅, 也可申请副本（通常要按程序缴费）。	
s.18	18. 查阅资料要求 (1) 任何个人或代表一名个人的有关人士可提出内容如下的要求— (a) 要求资料使用者告知他该使用者是否持有该名个人属其资料当事人的个人资料; (b) 如该资料使用者持有该资料, 要求该使用者提供一份该资料的复本。 (由 2012 年第 18 号第 2 条修订) (2) 在第 (1) 款 (a) 及 (b) 段下的查阅资料要求, 须视为单一项要求, 而本条例的条文据此解释。 (3) 在没有相反证据的情况下, 第 (1) 款 (a) 段下的查阅资料要求须视为该款 (a) 及 (b) 段下的查阅资料要求, 而本条例的条文(包括第 (2) 款)须据此解释。 (4) 就个人资料而言, 如某资料使用者——(由 2012 年第 18 号第 2 条修订) (a) 不是持有该资料的; 但 (b) 控制该资料的使用, 而控制的方式禁止实际持有该资料的另一资料使用者根据(不论是完全抑从或部分抑从)关乎该资料的查阅资料要求, (由 2012 年第 18 号第 2 条修订)则他须当作持有该资料, 而本条例的条文(包括本条)须据此解释。 (由 2012 年第 18 号第 2 条修订) (5) 任何人在查阅资料要求中, 为了令有关资料使用者——(a) 告知该人该资料使用者是否持有属该要求的标的之个人资料; 及 (b) (如适用)提供一份该资料的复本, 而提供在要项上属虚假或具误导性的资料, 即属犯罪。 (由 2012 年第 18 号第 11 条增补) (6) 任何人犯第 (5) 款所订罪行, 一经定罪, 可处第 3 级罚款及监禁 6 个月。 (由 2012 年第 18 号第 11 条增补) 18. Data access request (1) An individual, or a relevant person on behalf of an individual, may make a request— (a) to be informed by a data user whether the data user holds personal data of which the individual is the data subject; (b) if the data user holds such data, to be supplied by the data user with a copy of such data. (2) A data access request under both paragraphs of subsection (1) shall be treated as being a single request, and the provisions of this Ordinance shall be construed accordingly. (3) A data access request under paragraph (a) of subsection (1) may, in the absence of evidence to the contrary, be treated as being a data access request under both paragraphs of that subsection, and the provisions of this Ordinance (including subsection (2)) shall be construed accordingly. (4) A data user who, in relation to personal data— (a) does not hold the data; but (b) controls the use of the data in such a way as to prohibit the data user who does hold the data from complying (whether in whole or in part) with a data access request which relates to the data, shall be deemed to hold the data, and the provisions of this Ordinance (including this section) shall be construed accordingly. (Amended 18 of 2012 s. 11) (5) A person commits an offence if the person, in a data access request, supplies any information which is false or misleading in a material particular for the ...	个人可提出“查阅资料要求”，问你有没有持有其资料并索取副本。	
s.19	19. 依从查阅资料要求 (1) 在符合第 (2) 款及第 20 及 28 (5) 条的规定下, 资料使用者须在收到由某人提出的查阅资料要求后的 40 日内, 以下列方式, 依从该项要求—— (a) 如该资料使用者持有属该项要求的标的之个人资料—— (i) 以书面告知提出要求者该资料使用者持有该资料; 及 (ii) 提供一份该资料的复本; 或 (b) 如该资料使用者并无持有属该项要求的标的之个人资料, 以书面告知提出要求者该资料使用者并无持有该资料。 (由 2012 年第 18 号第 12 条代替) (1A) 尽管有第 (1) (b) 款的规定——(a) 有人就香港警务处是持有某个人的任何刑事犯罪纪录, 向香港警务处提出查阅资料要求; 而 (b) 香港警务处并无持有该项纪录, 香港警务处须以下述方式依从该项要求: 在按该该要求后的 40 日内, 以书头告知提出要求者香港警务处并无持有该项纪录。 (由 2012 年第 18 号第 12 条增补) (2) 凡资料使用者不能在第 (1) 或 (1A) 款指明的期间内依从查阅资料要求, 他——(由 2012 年第 18 号第 12 条修订) (a) 须在该期间届满前—— (i) 藉书面通知告知提出要求者他不能如此依从该项要求, 以及其理由; 及 (ii) 在他能依从该项要求的范围(如有的话)内, 依从该项要求; 及 (b) 须在该期间届满后, 在切实可行的范围内尽快依从或尽快完全依从(视属何情况而定)该项要求。 (3) 依从某项查阅资料要求而须提供予使用者的个人资料复本——(a) 须以收到该项要求时的该资料为准而提供, 但该复本可——(由 2012 年第 18 号第 2 条修订) (i) 参照——(A) 在收到该项要求的时间至供应该复本之时之间作出的; 及 (B) 不论有否收到该项要求赤会作出的, 对该资料的处理; 及 (ii) 在该项要求的规定下, 参照在收到该项要求的时间至供应该复本之时之间对该资料作出的改正; (b) 在已对该资料作出 (ii) 段所提述的任何改正的情况下, 须附同一份通知, 说明该资料已依据该段予以改正(或相似意思的字眼); 及 (c) 在切实可行范围内——(i) 须是清楚易明的, 但如该复本是一份文件的真实复本, 而该份文件——(A) 载有该资料; 而 (B) 在表面上不是清楚易明的, 则属例外; (ii) 在该资料的使用者控制下的编码已获充分解说的情况下, 须是容易理解的; 及 (iii) (A) 除 (B) 分节另有规定外, 须采用该项要求所指明的语文(可为中文或英文); 如无如此指明语文, 则可采用提出该项要求所采用的语文(可为中文或英文); (B) 如(但只有在以下情况下)——(i) 持有该资料所采用的语文, 不是在该项要求所指明的语文或(如没有如此指明语文)提出该项要求所采用的语文(视属何情况而定); 而 (ii) (在符合第 20 (1) 款的规定下)该复本是载有该资料的文件的真实复本, 须采用该项要求所指明的语文以外的语文或(如没有如此指明语文)提出该项要求所采用的语文(视属何情况而定)以外的语文; (iv) 在不损害第 (iii) 节的概括性原则下但在不抵触第 (4) 款的条文下, 须采用该项要求所指明(或有指明的话)的形式或(如指明一种形式以上)其中一种形式; (v) (如第 (iv) 节不适用)须采用该资料使用者认为合适的形式。 (由 2012 年第 18 号第 2 条修订) (4) 凡—— (a) 查阅资料要求指明所寻求采用的为依从该项要求而提供的个人资料的复本而须采用的一种或多于一种形式; 及(... 19. Compliance with data access request (1) Subject to subsection (2) and sections 20 and 28 (5) , a data user must comply with a data access request within 40 days after receiving the request by— (a) if the data user holds any personal data of which the individual is the subject of the request— (i) informing the requestor in writing that the data user holds the data; and (ii) supplying a copy of the data; or (b) if the data user does not hold any personal data which is the subject of the request, informing the requestor in writing that the data user does not hold the data. (Replaced 18 of 2012 s. 12) (1A) Despite subsection (1) (b) , if— (a) a data access request is made to the Hong Kong Police Force as to whether it holds any record of criminal conviction of an individual; and (b) it does not hold such record, it must comply with the request by informing the requestor orally, within 40 days after receiving the request, that it does not hold such record. (Added 18 of 2012 s. 12) (2) A data user who is unable to comply with a data access request within the period specified in subsection (1) or (1A) shall— (Amended 18 of 2012 s. 12) (a) before the expiration of that period— (i) by notice in writing inform the requestor that the data user is so unable and of the reasons why the data user is so unable; and (ii) comply with the request to the extent, if any, that the data user is able to comply wit...	收到查阅要求后有时限要回覆，不能无限拖延。	
s.26	26. 删除不再需要的个人资料 (1) 凡资料使用者持有的个人资料是用于某目的(包括与该目的有直接关系的目的), 但已不再为该等目的而属有需要的, 则除在以下情况外, 该资料使用者须采取所有切实可行步骤删除该资料—(由 2012 年第 18 号第 2 及 17 条修订) (a) 该等删除根据任何法律是被禁止的; 或 (b) 不删除该资料是符合公众利益(包括历史方面的利益)的。 (由 2012 年第 18 号第 2 条修订) (2) 为免生疑问, 现声明——(a) 即使任何其他资料使用者(前者)控制(不论是完全控制或部分控制)该资料的处理, 持有有关资料的资料使用者(后者)须按照第 (1) 款, 采取所有切实可行步骤删除个人资料; (由 2012 年第 18 号第 2 及 17 条修订) (b) 后者不得就该等删除而在前者为损害赔偿而提出的诉讼中负法律责任。 26. Erasure of personal data no longer required (1) A data user must take all practicable steps to erase personal data held by the data user where the data is no longer required for the purpose (including any directly related purpose) for which the data was used unless— (Amended 18 of 2012 s. 17) (a) any such erasure is prohibited under any law; or (b) it is in the public interest (including historical interest) for the data not to be erased. (2) For the avoidance of doubt, it is hereby declared that— (a) a data user must take all practicable steps to erase personal data in accordance with subsection (1) notwithstanding that any other data user controls (whether in whole or in part) the processing of the data; (Amended 18 of 2012 s. 17) (b) the first-mentioned data user shall not be liable in an action for damages at the suit of the second-mentioned data user in respect of any such erasure.	资料保存期不能无上限；目的达成后应删除或去识别化。	
s.35B	35B. 适用范围本分部并不就要约提供以下服务或就有以下服务可子提供而进行广告宣传而适用—— (a) 由社会福利署营办、资助或津贴的社会服务; (b) 由医院管理局或卫生署提供的医护服务; 或 (c) 符合以该明的任何其他社会或医护服务: 该项服务拟向某名个人提供, 而如不向该名个人提供该项服务, 便相当可能会对以下人士的身体或精神健康造成严重损害——(i) 该名个人; 或 (ii) 任何其他个人。 (由 2012 年第 18 号第 2 条修订) 35B. Application This Division does not apply in relation to the offering, or advertising of the availability, of— (a) social services run, subvented or subsidized by the Social Welfare Department; (b) health care services provided by the Hospital Authority or Department of Health; or (c) any other social or health care services which, if not provided, would be likely to cause serious harm to the physical or mental health of— (i) the individual to whom the services are intended to be provided; or (ii) any other individual.	旧资料改作直销前，要补通知并给反对路径。	
s.35C	35C. 资料使用者将个人资料用于直接促销前, 须采取指明行动 (1) 除第 35D 条另有规定外, 资料使用者拟在直接促销中, 使用某资料当事人的个人资料, 须采取第 (2) 款指明的每一项行动。 (2) 资料使用者须——(a) 告知有关资料当事人——(i) 该资料使用者拟如此使用有关个人资料; 及 (ii) 该资料使用者须收到该当事人对该拟进行的提供的书面回意, 否则不得如此提供该资料; (b) 向该当事人提供关于该拟进行的提供的以下书面资讯——(i) (如该资料是拟为得益而提供的)该资料是拟如此提供的; (ii) 拟提供的个人资料的种类; (iii) 该资料拟提供予什么类别的人士; 及 (iv) 该资料拟就什么类别的促销标的而使用; 及 (c) 向该当事人提供一个途径, 让该当事人可在无需向该资料使用者缴费的情况下, 透过该途径, 传达该当事人对上述的拟进行的提供的同意。 (3) 不论个人资料是否由有关资料使用者从有关资料当事人收集的, 第 (1) 款均适用。 (4) 根据第 (2) (a) 及 (b) 款提供的资讯, 须以易于理解和阅读的方式呈示。 (5) 资料使用者未经采取第 (2) 款指明的每一项行动, 而将某资料当事人的个人资料提供予另一人, 以该该人在直接促销中使用, 即属犯罪, 一经定罪—— (a) 在该资料是为得益而提供的情况下, 可处罚款 $1,000,000 及监禁 5 年; 或 (b) 在该资料并非是为得益而提供的情况下, 可处罚款 $500,000 及监禁 3 年。 (6) 在为第 (5) 款所订罪行而提起的法律程序中, 被控告的资料使用者如证明自己已采取所有合理预防措施, 并已作出一切应作出的努力, 以避免犯该罪行, 即可以此作为免责辩护。 35J. Data use to take specified action before providing personal data (1) A data user who intends to provide a data subject’s personal data to another person for use by that other person in direct marketing must take each of the actions specified in subsection (2) . (2) The data user must— (a) inform the data subject in writing— (i) that the data user intends to so provide the personal data; and (ii) that the data user may not so provide the data unless the data user has received the data subject’s written consent to the intended provision; (b) provide the following information in relation to the intended provision— (i) if the data is to be provided for gain, that the data is to be so provided; (ii) the kinds of personal data to be provided; (iii) the classes of persons to which the data is to be provided; and (iv) the classes of marketing subjects in relation to which the data is to be used; and (c) provide the data subject with a channel through which the data subject may, without charge by the data user, communicate the data subject’s consent to the intended provision. (3) Subsection (1) applies irrespective of whether the personal data is collected from the data subject by the data user. (4) The information provided under subsection (2) (a) and (b) must be presented in a manner that is easily understandable and easily readable. (5) ...	把资料提供给他人做直销前，通知和同意门槛更高。	
s.35D	35D. 如无资料当事人同意, 资料使用者不得将个人资料用于直接促销 (1) 已遵守第 35C 条的资料使用者不得在直接促销中, 使用有关资料当事人的个人资料, 但如以下条件获符合, 则不在此限——(a) 该资料使用者已收到该当事人对拟如此使用(如该资料使用者根据第 35C (2) (b) 条提供的资讯所描述者)该个人资料的同意; 不论是一般的同意或是选择性的同意; (b) (如该项同意属口头同意)该资料使用者已自收到该项同意起计的 14 日内, 向该当事人发出确认以下事宜的书面确认——(i) 收到该项同意的日期; (ii) 有关该资料的种类; 及 (iii) 有关许可类别使用标的; 及 (c) 该项使用符合该当事人的同意。 (2) 就第 (1) (c) 款而言, 如—— (a) 有关个人资料属某许可种类个人资料; 及 (b) 该资料是就某促销标的而使用, 而该促销标的属某许可类别促销标的, 则该项使用即属符合该当事人的同意。 (3) 资料当事人可通过向应该经或其他书面方法, 向资料使用者传达对提供个人资料的同意。 (4) 资料使用者违反第 (1) 款, 即属犯罪, 一经定罪—— (a) 在该资料使用者是为得益而提供有关个人资料的情况下, 可处罚款 $1,000,000 及监禁 5 年; 或 (b) 在该资料使用者并非是为得益而提供有关个人资料的情况下, 可处罚款 $500,000 及监禁 3 年。 (5) 在为第 (4) 款所订罪行而提起的法律程序中, 被控告的资料使用者如证明自己已采取所有合理预防措施, 并已作出一切应作出的努力, 以避免犯该罪行, 即可以此作为免责辩护。 35K. Data user must not provide personal data for use in direct marketing without data subject’s consent (1) A data user who has complied with section 35J must not provide the data subject’s personal data to another person for use by that other person in direct marketing unless— (a) the data user has received the data subject’s written consent to the intended provision of personal data, as described in the information provided by the data user under section 35J (2) (b) , either generally or selectively; (b) if the data is provided for gain, the intention to so provide was specified in the information under section 35J (2) (b) (i) ; and (c) the provision is consistent with the data subject’s consent. (2) For the purposes of subsection (1) (c) , the provision of personal data is consistent with the data subject’s consent if— (a) the personal data falls within a permitted class of personal data; (b) the person to whom the data is provided falls within a permitted class of persons; and (c) the marketing subject in relation to which the data is to be used falls within a permitted class of marketing subjects. (3) A data subject may communicate to a data user the consent to a provision of personal data either through a response channel or other written means. (4) A data user who contravenes subsection (1) commits an offence and is liable on conviction— (a) if the data user provides the pe...	未获有效同意就转交资料做直销，风险很高。	
s.35L	35L. 资料当事人可要求资料使用者停止提供个人资料以供用于直接促销 (1) 获资料使用者根据第 35J (2) (b) 条提供资讯的资料当事人可随时要求该资料使用者——(a) 停止将有关个人资料提供予任何其他人, 以供该人在直接促销中使用; 及 (b) 通知获得如此提供该资料的任何人, 停止在直接促销中使用该资料。 (2) 不论有关资料当事人有否在较早前, 同意有关个人资料的提供, 第 (1) 款均适用。 (3) 资料使用者如收到资料当事人根据第 (1) 款作出的要求, 须在不向该当事人收费的情况下, 依从该项要求。 (4) 如资料使用者须按第 (1) (b) 款提述的要求, 通知某人停止在直接促销中使用有关资料当事人的个人资料, 该资料使用者须将该事宜以书面通知该人。 (5) 某人如收到根据任何法律是被禁止的; 或 (b) 不删除该资料是符合公众利益(包括历史方面的利益)的。 (由 2012 年第 18 号第 2 条修订) (2) 为免生疑问, 现声明——(a) 即使任何其他资料使用者(前者)控制(不论是完全控制或部分控制)该资料的处理, 持有有关资料的资料使用者(后者)须按照第 (1) 款, 采取所有切实可行步骤删除个人资料; (由 2012 年第 18 号第 2 及 17 条修订) (b) 后者不得就该等删除而在前者为损害赔偿而提出的诉讼中负法律责任。 26. Erasure of personal data no longer required (1) A data user must take all practicable steps to erase personal data held by the data user where the data is no longer required for the purpose (including any directly related purpose) for which the data was used unless— (Amended 18 of 2012 s. 17) (a) any such erasure is prohibited under any law; or (b) it is in the public interest (including historical interest) for the data not to be erased. (2) For the avoidance of doubt, it is hereby declared that— (a) a data user must take all practicable steps to erase personal data in accordance with subsection (1) notwithstanding that any other data user controls (whether in whole or in part) the processing of the data; (Amended 18 of 2012 s. 17) (b) the first-mentioned data user shall not be liable in an action for damages at the suit of the second-mentioned data user in respect of any such erasure.	违反直销相关条款可能触发刑责。	
s.35M	35M. 第 3 保障资料原则规定的对提供个人资料以供用于直接促销的订明同意尽管有第 2 (3) 条的规定, 凡根据第 3 保障资料原则, 资料使用者将某资料当事人的个人资料提供予另一人, 以供在直接促销中使用, 须获该当事人的订明同意, 该资料使用者如没有违反第 35J 、35K 或 35L 条 , 即视为已取得该项同意。 35M. Prescribed consent for providing personal data for use in direct marketing under data protection principle 3 Despite section 2 (3) , where a data user requires, under data protection principle 3, the prescribed consent of a data subject for providing any personal data of the data subject to another person for use in direct marketing, the data user is to be taken to have obtained the consent if the data user has not contravened section 35J , 35K or 35L .	直销章节的解释与衔接条款，用来处理条文之间怎么接轨。	
s.36	36. 个人资料系统的视察在不损害第 38 条的概括性原则下, 专员可对—— (a) 资料使用者所使用的任何个人资料系统; 或 (b) 属于某资料使用者类别的资料使用者所使用的任何个人资料系统, 进行视察, 目的在确定资讯以协助专员——(i) 在——(A) (a) 段适用时, 向有关的资料使用者; (B) (b) 段适用时, 向有关的资料使用者所属于的一个类别的资料使用者, 作出建议; 及 (ii) 作出关于促进有关的资料使用者或有关的资料使用者所属于的一个类别的资料使用者(视属何情况而定)遵守本条例的条文(尤其是各保障资料原则)的建议。 36. Inspections of personal data systems Without prejudice to the generality of section 38 , the Commissioner may carry out an inspection of— (a) any personal data system used by a data user; or (b) any personal data system used by a data user belonging to a class of data users, for the purposes of ascertaining information to assist the Commissioner in making recommendations— (i) to— (A) where paragraph (a) is applicable, the relevant data user; (B) where paragraph (b) is applicable, the relevant data user belongs; and (ii) relating to the promotion of compliance with the provisions of this Ordinance, in particular the data protection principles, by the relevant data user, or the class of data users to which the relevant data user belongs, as the case may be.	专员可作视察，检查资料系统和合规状态。	
s.38	38. 由专员进行的调查凡专员—— (a) 收到一项投诉; 或 (b) 有合理理由相信有符合以下说明的作为或行为—— (i) 已经或正在(视属何情况而定)由资料使用者作出或从事的; (ii) 关乎个人资料的; 及 (iii) 可能属违反本条例下的规定的, 则—— (i) 如 (a) 段适用, 除第 39 条另有规定外, 专员须就有关的资料使用者进行调查, 以确定在有关的投诉中指明的作为或行为是否属违反本条例下的规定; (ii) 如 (b) 段适用, 专员可就有关的资料使用者进行调查, 以确定该段所提述的作为或行为是否属违反本条例下的规定。 38. Inquiries by Commissioner Where the Commissioner— (a) receives a complaint; or (b) has reasonable grounds to believe that an act or practice— (i) has been done or engaged in, or is being done or engaged in, as the case may be, by a data user; (ii) relates to personal data; and (iii) may be a contravention of a requirement under this Ordinance, then— (i) where paragraph (a) is applicable, the Commissioner shall, subject to section 39 , carry out an investigation in relation to the relevant data user to ascertain whether the act or practice specified in the complaint is a contravention of a requirement under this Ordinance; (ii) where paragraph (b) is applicable, the Commissioner may carry out an investigation in relation to the relevant data user to ascertain whether the act or practice referred to in that paragraph is a contravention of a requirement under this Ordinance.	专员可展开调查，要求资料和解释。	
s.39	39. 对由投诉引发的调查的限制 (1) 即使由本条例赋予专员的权力有其概括性, 在以下情况下, 专员可拒绝进行或决定终止由投诉引发的调查——(由 2012 年第 18 号第 22 条修订) (a) 投诉人(如投诉人是就某名个人而属有关人士的有关人士, 则指该名个人)在超过紧接专员收到该投诉当日之前的 2 年的期间内, 实际知悉有在该投诉中指明的作为或行为, 但如专员信纳在该个案的所有情况下, 进行或不终止(视属何情况而定)该项调查是恰当的, 则属例外; (b) 该项投诉是匿名者作出的; (c) 投诉人的身分无法识辨或无法寻获投诉人; (d) 就该项投诉所指明的作为或行为而言, 以下所有条件均不获符合——(i) 在有人作出或从事有关作为或行为(视属何情况而定)的任何时间——(A) 投诉人(如投诉人是就某名个人而属有关人士的有关人士, 则指该名个人)是居于香港的; 或 (B) 有关的资料使用者能够在香港控制有关的个人资料的收集、持有、处理或使用或能够从香港行使该项控制的; (ii) 在有人作出或从事有关作为或行为(视属何情况而定)的任何时间, 投诉人(如投诉人是就某名个人而属有关人士的有关人士, 则指该名个人)是在香港的; (iii) 专员认为有关的作为或行为(视属何情况而定)可能损害投诉人(如投诉人是就某名个人而属有关人士的有关人士, 则指该名个人)强制执行在香港获取或产生的权利或行使在香港获取或产生的特权; (in 2021 年第 32 号第 4 条修订) (e) 专员信纳有关的资料使用者在不少于紧接专员收到该项投诉当日之前的 2 年的期间内, 不	专员在特定情形可拒查或终止查，边界在这里。	

	曾是資料使用者；或(由 2021 年第 32 号第 4 条修订) **(f)** 专员认为该项投诉关乎第 64 **(1)** 、 **(3A)** 或 **(3C)** 条所订罪行，并决定进行第 66C 条所界定的指明调查。 (由 2021 年第 32 号第 4 条增补) **(2)** 如专员在顾及有关个案的所有情况后，信纳有以下情况，他可拒绝进行或决定终止由投诉引发的调查——(由 2012 年第 18 号第 22 条修订) **(a)** 该项投诉或一项在性质上大体与其相似的投诉，在本条例生效前已经一项调查，而专员在进行该项先前的调查后信纳没有违反本条例下的规定的情况； **(b)** 在该项投诉中指明的作为或行为微不足道； **(c)** 该项投诉属琐屑无聊或无理取闹，或不是真诚作出的； **(d)** 该项投诉所指明的作为或行为显示，该项投诉的主要标的事宜，与关乎个人资料的个人私隐无关；或(由 2012 年第 18 号第 22 条增补) **(d)** 因为任何其他理由，调查或进一步调查是不必要的。 **(3)** 凡专员根据本条拒绝进行一项由投诉引发的调查，他须于收到该项投诉后的 45 日内，在切实可行范围内，尽快藉向投诉人送达一份附词第 **(4)** 款的文本的书面通知，告知该投诉人——(由 2012 年第 18 号第 22 条修订) **(a)** 该项拒绝一事； 及 **(b)** 拒绝的理由。 **(3A)** 如在一项由投诉引发的调查完成之前，法律规则或法院命令规定专员决定终止该项调查，专员须在切实可行范围内，尽快向有关投诉人送达附有第 **(4)** 款的文本的书面通知，将以下事宜告知该投诉人——**(a)** 该项决定； 及 **(b)** 该项决定的理由。 (由 2012 年第 18 号第 22 条增补) **(4)** 反对——**(a)** 第 **(3)** 款下的通知所指明的拒绝或第 **(3A)** 款下的通知所指明的终止而提出的上诉，可向行政上诉委员会提出； 及 **(b)** 上述拒绝或终止而提出的上诉，可由获送达该项通知的投诉人提出；如投诉人是就某名个人而属有关人士的有关人士…

39. Restrictions on investigations initiated by complaints **(1)** Notwithstanding the generality of the powers conferred on the Commissioner by this Ordinance, the Commissioner may refuse to carry out or decide to terminate an investigation initiated by a complaint if— (Amended 18 of 2012 s. 22) **(a)** the complainant (or, if the complainant is a relevant person, the individual in respect of whom the complainant is such a person) has had actual knowledge of the act or practice specified in the complaint for more than 2 years immediately preceding the date on which the Commissioner received the complaint, unless the Commissioner is satisfied that in all the circumstances of the case it is proper to carry out or not to terminate, as the case may be, the investigation; **(b)** the complaint is made anonymously; **(c)** the complainant cannot be identified or traced; **(d)** none of the following conditions is fulfilled in respect of the act or practice specified in the complaint— **(i)** either— (A) the complainant (or, if the complainant is a relevant person, the individual in respect of whom the complainant is such a person) was resident in Hong Kong; or (B) the relevant data user was liable to control, in or from Hong Kong, the collection, holding, processing or use of the personal data concerned, at any time the act or practice was done or engaged in, as the case may be; **(ii)** the complainant (or, ... | | |
s.4	4. 保障资料原则资料使用者不得作出违反任何保障资料原则的作为或从事违反任何该等原则的行为，但如该作为或行为(视属何情况而定)是根据本条例规定须作出或进行或准许作出或进行的，则属例外。 4. Data protection principles A data user shall not do an act, or engage in a practice, that contravenes a data protection principle unless the act or practice, as the case may be, is required or permitted under this Ordinance.	适用范围与基本义务的起点条款，先确认你是否落在监管框架内。
s.50	50. 行政通知 **(1)** 如专员在完成一项调查后，认为有关资料使用者正在或已经违反本条例之下的规定，专员可向该资料使用者送达书面通知，指示该资料使用者纠正该项违反，以及(如适当的话)防止该项违反再发生。 (由 2012 年第 18 号第 28 条代替) **(1A)** **(1B)** 款所指的执行通知须—— **(a)** 述明专员持有第 **(1)** 款提述的意见，以及专员持有该意见的理由； **(b)** 指明—— **(i)** 专员认为正在或已遭违反的规定； 及 **(ii)** 构成该项违反的作为或不作为； **(c)** 指明有关资料使用者须采取什么步骤(包括停止任何作为或行为)以纠正该项违反，以及(如适当的话)防止该项违反再发生； **(d)** 指明须于何日或之前采取该等步骤； 及 **(e)** 附有本条的文本。 (由 2012 年第 18 号第 28 条增补) **(1B)** 第 **(1A)** **(d)** 款指明的日期，不得早于第 **(7)** 款指明的可针对有关通知提出上诉的限期届满之时。 (由 2012 年第 18 号第 28 条增补) **(2)** 在决定是否送达执行通知时，专员须考虑该通知所关乎的违反，是在已对或是否相当可能会对属该违反所关乎的个人资料的资料当事人的个人做成损害或困扰。 (由 2012 年第 18 号第 28 条修订) **(3)** 执行通知所指明的纠正该通知所关乎的违反的步骤，以及(如适当的话)防止该项违反再发生的步骤， 可—— **(a)** 在任何程度上，藉提述任何核准实务守则而拟订； 及 **(b)** 按所需形式拟订，以让有关资料使用者可从不同的纠正方式中，以及(如适当的话)防止方式中，作出选择。 (由 2012 年第 18 号第 28 条代替) **(4)** 除第 **(5)** 款另有规定外，执行通知所指明的采取该通知所指明的步骤的限期不得在第 **(7)** 款所指明的上诉限期届满，而有该等上诉提出，在该上诉有决定或被撤回前不需采取该等步骤。 **(5)** 如专员认为因为特殊情况，执行通知所指明的步骤因事态紧急而应即采取—— **(a)** 他可在该通知中加入一项有该意思的陈述及他持该意见的理由； **(b)** 凡专员如此加入该项陈述，第 **(4)** 款即不适用，但该通知不得规定须在该通知送达当日起计的 7 日期间届满前采取该等步骤。 **(6)** 专员可藉送达有关资料使用者的书面通知，撤销执行通知。 **(7)** 有关资料使用者可在执行通知送达后 14 日内，向行政上诉委员会提出上诉反对该通知。 **(8)** 凡专员—— **(a)** 在调查完成前的任何时间就有关资料使用者持第 **(1)** 款所提述的意见；并 **(b)** 同时认为因为特殊情况，执行通知因事态紧急而应即送达有关资料使用者，则即使该项调查未完成，他可如此送达该通知，而在该等情况下——**(i)** 专员须在不损害第加入该通知任何其他事宜的原则下，在该通知中指明他持 **(b)** 段所提述的意见的理由；而 **(ii)** 本条例其他条文(包括本条)须据此解释。 50. Enforcement notices **(1)** If, following the completion of an investigation, the Commissioner is of the opinion that the relevant data user is contravening or has contravened a requirement under this Ordinance, the Commissioner may serve on the data user a notice in writing, direting the data user to remedy and, if appropriate, prevent the recurrence of any contravention. (Replaced 18 of 2012 s. 28) **(1A)** An enforcement notice under subsection **(1)** must— **(a)** state that the Commissioner is of the opinion referred to in subsection **(1)** and the reason for that opinion; **(b)** specify— **(i)** the requirement which, in the opinion of the Commissioner, is being or has been contravened; and **(ii)** the act or omission that constitutes the contravention; **(c)** specify the steps that the data user must take (including any act or practice) to remedy and, if appropriate, prevent any recurrence of the contravention; **(d)** specify the date on or before which the steps must be taken; and **(e)** be accompanied by a copy of this section. (Added 18 of 2012 s. 28) **(1B)** The date specified in subsection **(1A)** **(d)** must be a date which is not earlier than the expiry of the period specified in subsection **(7)** within which an appeal against the notice may be made. (Added 18 of 2012 s. 28) **(2)** In deciding whether to serve an enforcement notice the Commissioner shall consider whether the contravention to t...	违规后的罪责或程序后果条款，决定违法后会走到哪一步。
s.50B	50B. 关乎没有遵从专员的要求等的罪行 **(1)** 任何人如有以下情况，即属犯罪—— **(a)** 该人无合法辩解而妨碍、阻挠或抗拒专员或任何订明人员执行其在本部之下的职能；或行使其在本部之下的权力； **(b)** 该人无合法辩解而没有遵从专员或任何订明人员根据本部作出的合法要求；或 **(c)** 该人在专员或在任何订明人员执行本部之下的职能或行使本部之下的权力的过程中—— **(i)** 向专员或该人员作出该人知道属虚假或不相信属真实的陈述；或 **(ii)** 以其他方式在知情下误导专员或该人员。 **(2)** 任何人犯第 **(1)** 款所订罪行，一经定罪，可处第 3 级罚款及监禁 6 个月。 (由 2012 年第 18 号第 29 条增补) 50B. Offences relating to failure to comply with requirements of Commissioner etc. **(1)** A person commits an offence if the person— **(a)** without lawful excuse, obstructs, hinders or resists the Commissioner or a prescribed officer in performing the functions or exercising the powers of the Commissioner or the officer under this Part; **(b)** without lawful excuse, fails to comply with any lawful requirement of the Commissioner or a prescribed officer under this Part; or **(c)** in the course of the performance or exercise by the Commissioner or a prescribed officer of functions or powers under this Part— **(i)** makes to the Commissioner or the officer a statement which the person knows to be false or does not believe to be true; or **(ii)** otherwise knowingly misleads the Commissioner or the officer. **(2)** A person who commits an offence under subsection **(1)** is liable on conviction to a fine at level 3 and to imprisonment for 6 months. (Added 18 of 2012 s. 29)	与执行通知衍接的进一步执法条款。
s.52	52. 家居用途中的个人持有并—— **(a)** 只与其私人事务、家庭事务或家居事务有关的个人资料； 或 **(b)** 只是为消闲目的而如此持有的个人资料，获豁免而不受各保障资料原则、第 4 和 5 部及第 36 和 38 **(b)** 条的条文所管限。 (编辑修订——2013 年第 1 号编辑修订纪录) 52. Domestic purposes Personal data held by an individual and— **(a)** concerned only with the management of his personal, family or household affairs; or **(b)** so held only for recreational purposes, is exempt from the provisions of the data protection principles, Parts 4 and 5 and sections 36 and 38 **(b)** . (Amended 18 of 2012 s. 2 ; E.R. 1 of 2013)	法庭程序与执行安排的辅助条款，主要解决“怎么执行到位”。
s.53	53. 雇佣——职工策划包含与—— **(a)** 填补任何系的现正出缺或可能会出缺的雇佣职位； 或 **(b)** 终止任何组别的个人的雇用， 的职工策划建议有关的资讯的个人资料获豁免而不受第 6 保障资料原则及第 18 **(1)** **(b)** 条的条文所管限。 53. Employment—staff planning Personal data which consists of information relevant to any staff planning proposal to—(Amended 18 of 2012 s. 2) **(a)** fill any series of positions of employment which are presently, or may become, unfilled; or **(b)** cease any group of individuals' employment, is exempt from the provisions of data protection principle 6 and section 18 **(1)** **(b)** . (Amended 18 of 2012 s. 2)	执法程序中的补充权力或限制。
s.57	57. 关于香港的保安等 **(1)** 凡个人资料是为保障关于香港的保安、防卫或国际关系的目的而由政府或代政府持有，则如第 6 保障资料原则及第 18 **(1)** **(b)** 条的条文适用于该资料，便相当可能会损害本款所述的任何事宜的话，该资料获豁免而不受该等条文所管限。 (由 2012 年第 18 号第 2 条修订) **(2)** 凡—— **(a)** 个人资料是为第 **(1)** 款所提述的目的而使用(不论该资料是否为该等目的而持有)；及 **(b)** 第 3 保障资料原则的条文就该等使用而适用便相当可能会损害该款所提述的任何事宜， 该资料获豁免而不受第 3 保障资料原则的条文所管限。 而在为任何人违反任何该等条文而针对他进行的法律程序中， 如该人证明他当时有合理理由相信不如此使用该资料便相当可能会损害任何该等事宜，即为免责辩护。 (由 2012 年第 18 号第 2 条修订) **(3)** 就任何个人资料是名属有第 **(1)** 款下的豁免效应的资料而言，任何时间有该项豁免的证明，即为该事实的证据。 (由 1997 年第 362 号法律公告修订；由 1999 年第 34 号第 3 条修订) **(5)** 行政长官或政务司司长决定，而一份由行政长官或政务司司长签署并证明需有或曾在任何时间需有该项豁免的证明书，即为该事实的证据。 (由 1997 年第 362 号法律公告修订；由 1999 年第 34 号第 3 条修订) **(5)** 行政长官或政务司司长可在第 **(3)** 或 **(4)** 款所提述的证明书中，就该证明书所关乎的个人资料及为该证明书所指明的理由，指示专员不得进行视察或调查，而在此情况下，专员须遵从该项指示。 (由 1997 年第 362 号法律公告修订；由 1999 年第 34 号第 3 条修订) **(6)** 看来是第 **(3)** 或 **(4)** 款所提述的证明书的文件，须获收取为证据，而在没有相反证据的情况下，该文件须当作为该等证明书。 **(7)** 在本条中——保安 (security) 包括防止或排拒无权进入香港及留在香港的人(包括按照《入境条例》(第 115 章)的条文被扣留的人)进入香港及留在香港；(由 1997 年第 80 号第 103 (1) 条修订)国际关系(international relations)包括与任何国际组织的关系。 57. Security, etc. in respect of Hong Kong **(1)** Personal data held by or on behalf of the Government for the purposes of safeguarding security, defence or international relations in respect of Hong Kong is exempt from the provisions of data protection principle 6 and section 18 **(1)** **(b)** where the application of those provisions to the data would be likely to prejudice any of the matters referred to in this subsection. (Amended 18 of 2012 s. 2) **(2)** Personal data is exempt from the provisions of data protection principle 3 in any case in which— (Amended 18 of 2012 s. 2) **(a)** the use of the data is for any of the purposes referred to in subsection **(1)** (and whether or not the data is held for any of those purposes); and (Amended 18 of 2012 s. 2) **(b)** the application of those provisions in relation to such use would be likely to prejudice any of the matters referred to in that subsection, and in any proceedings against any person for a contravention of any of those provisions it shall be a defence to show that he had reasonable grounds for believing that failure to so use the data would have been likely to prejudice any of those matters. **(3)** Any question whether an exemption under subsection **(1)** is or at any time was required in respect of any personal data may be determined by the Chief Executive or Chief Secretary for Administration; and a certificate signed by the Chief Executive or...	与调查或执行相关的程序补充条款。
s.59	59. 健康 **(1)** 与有关的资料当事人的身体健康或精神健康有关的个人资料，获豁免而不受以下任何或所有条文所管限—(由 2012 年第 18 号第 32 条修订) **(a)** 第 6 保障资料原则及第 18 **(1)** **(b)** 条的条文； **(b)** 第 3 保障资料原则的条文，但上述豁免仅在以下情况适用—— **(i)** 该等条文适用于该资料便相当可能会对该资料当事人的身体健康或精神健康造成严重损害；或(由 2012 年第 18 号第 2 条修订) **(ii)** 该等条文适用于该资料便相当可能会对任何其他个人的身体健康或精神健康造成严重损害。 (由 2012 年第 18 号第 2 条修订) **(2)** 如第 3 保障资料原则的条文适用于关乎某资料当事人的身分或所在的个人资料， 便相当可能会对—— **(a)** 该资料当事人的身体或精神健康造成严重损害；或 **(b)** 任何其他个人的身体或精神健康造成严重损害， 则该资料获豁免而不受该等条文所管限。 (由 2012 年第 18 号第 32 条增补) 59. Health **(1)** Personal data relating to the physical or mental health of the data subject is exempt from the provisions of either or both of— (Amended 18 of 2012 s. 32) **(a)** data protection principle 6 and section 18 **(1)** **(b)** ; **(b)** data protection principle 3, in any case in which the application of those provisions to the data would be likely to cause serious harm to the physical or mental health of— **(i)** the data subject; or **(ii)** any other individual. **(2)** Personal data relating to the identity or location of a data subject is exempt from the provisions of data protection principle 3 if the application of those provisions to the data would be likely to cause serious harm to the physical or mental health of— **(a)** the data subject; or **(b)** any other individual. (Added 18 of 2012 s. 32)	健康与紧急情境的豁免条款，重点在“必要性”和情境紧迫度。
s.62	62. 统计及研究在以下情况，个人资料获豁免而不受第 3 保障资料原则的条文所管限—— **(a)** 该资料将会用于制备统计数字或进行研究； **(b)** 该资料不会用于任何其他目的； 及 **(c)** 所得的统计数字或研究成果不会以识辨各有关的资料当事人或其中任何人的身分的形式提供。 (由 2012 年第 18 号第 2 条修订) 62. Statistics and research Personal data is exempt from the provisions of data protection principle 3 where— (Amended 18 of 2012 s. 2) **(a)** the data is to be used for preparing statistics or carrying out research; **(b)** the data is not to be used for any other purpose; and **(c)** the resulting statistics or results of the research are not made available in a form which identifies the data subjects or any of them. (Amended 18 of 2012 s. 2)	调查与监管场景的细化豁免条款，常和 s.61 一起看。
s.64	64. 在未获同意下披露个人资料属罪行(由 2021 年第 32 号第 6 条修订) **(1)** 任何人披露未经资料使用者同意而取自该资料使用者的某资料当事人的任何个人资料，而该项披露是出于以下意图的，该人即属犯罪——**(a)** 获取金钱得益或其他财产得益，不论是为了令该人或另一人受惠而获取；或 **(b)** 导致该当事人蒙受金钱损失或其他财产损失。 **(2)** (由 2021 年第 32 号第 6 条废除) **(3)** 任何人犯第 **(1)** 款所订罪行，一经定罪，可处罚款 $1,000,000 及监禁 5 年。 (由 2021 年第 32 号第 6 条修订) **(3A)** 如任何人(披露者)在未获资料当事人的相关同意下，披露该当事人的个人资料， 而—— **(i)** 披露者的意图，是导致该当事人或其任何家人蒙受任何指明伤害；或 **(ii)** 披露者罔顾是否会(或相当可能会)导致该当事人或其任何家人蒙受任何指明伤害；及 **(b)** 该项披露导致该当事人或其任何家人蒙受任何指明伤害， 披露者即属犯罪。 (由 2021 年第 32 号第 6 条增补) **(3D)** 任何人犯第 **(3C)** 款所订罪行，一经循公诉程序定罪，可处罚款 $1,000,000 及监禁 5 年。 (由 2021 年第 32 号第 6 条增补) **(4)** 在第 **(1)** 、 **(3A)** 或 **(3C)** 款所订罪行的法律程序中， 被控告的人如确立以下事宜，即为免责辩护——(由 2021 年第 32 号第 6 条代替) **(a)** 该人合理地相信，有关披露对防止或侦测罪行属必要； **(b)** 任何成文法则、法律规则或法院命令规定作出或授权作出有关披露， 或根据任何成文法则而规定作出或授权作出有关披露； **(c)** 该人合理地相信有关披露是——(由 2021 年第 32 号第 6 条修订) **(i)** 如属第 **(1)** 款所订罪行——在获得有关资料使用者的同意下作出的； 或 **(ii)** 如属第 **(3A)** 或 **(3C)** 款所订罪行——在获得有关资料当事人的相关同意下作出的； 或(由 2021 年第 32 号第 6 条修订) **(d)** 该人——**(i)** 纯粹为合法的、第 61 **(3)** 条所界定的新闻活动(或与之直接相关的活动)，而披露有关个人资料； 及(由 2021 年第 32 号第 6 条代替) **(ii)** 有合理理由相信，发表或播放该个人资料，是符合公众利益的。 **(5)** 在以下情况下，就第 **(4)** 款所指的免责辩护而需要确立的事宜，须视作已出某人确立——**(a)** 有足够证据，就该事宜带出争论点； 及 **(b)** 控方没有提出足以排除合理疑点的证据，证明并非如此。 (由 2021 年第 32 号第 6 条增补) **(6)** 在本条中——指明伤害 (specified harm)就某人而言，指——**(a)** 对该人的滋扰、骚扰、缠扰、威胁或恐吓； **(b)** 对该人的身体伤害或心理伤害； **(c)** 导致该人合理地担心其安全或福祉的伤害； 或 **(d)** 该人的财产受损； 相关同意(relevant consent)就某资料当事人而言，指——**(a)** 如该当事人属第 **(2)** 款中有关工作的定义 (job) 的一方，**(i)** 或 **(ii)** 的所描述的... 64. Offences for disclosing personal data without consent (Amended 32 of 2021 s. 6) **(1)** A person commits an offence if the person discloses any personal data of a data subject which was obtained from a data user without the data user's consent, with an intent— **(a)** to obtain gain in money or other property, whether for the benefit of the person or another person; or **(b)** to cause loss in money or other property to the data subject. **(2)** (Repealed 32 of 2021 s. 6) **(3)** A person who commits an offence under subsection **(1)** is liable on conviction to a fine of $1,000,000 and to imprisonment for 5 years. (Amended 32 of 2021 s. 6) **(3A)** A person commits an offence if the person discloses any personal data of a data subject without the relevant consent of the data subject— **(a)** with an intent to cause any specified harm to the data subject or any family member of the data subject; or **(b)** being reckless as to whether any specified harm would be, or would likely be, caused to the data subject or any family member of the data subject. (Added 32 of 2021 s. 6) **(3B)** A person who commits an offence under subsection **(3A)** is liable on conviction to a fine at level 6 and to imprisonment for 2 years. (Added 32 of 2021 s. 6) **(3C)** A person commits an offence if— **(a)** the person discloses any personal data of a data subject without the relevant consent of the protection principle 3 in relation to such use would be likely to prejudice any of the matters referred to in this subsection. (Amended 18 of 2012 s. 2) **(2)** Personal data is exempt from the provisions of data protection principle 3 in any case in which— (Amended 18 of 2012 s. 2) **(a)** the use of the data is for any of the purposes referred to in subsection **(1)** (and whether or not the data is held for any of those purposes); and (Amended 18 of 2012 s. 2) **(b)** the application of those provisions in relation to such use would be likely to prejudice any of the matters referred to in that subsection, and in any proceedings against any person for a contravention of any of those provisions it shall be a defence to show that he had reasonable grounds for believing that failure to so use the data would have been likely to prejudice any of those matters. **(3)** Any question whether an exemption under subsection **(1)** is or at any time was required in respect of any personal data may be determined by the Chief Executive or Chief Secretary for Administration; and a certificate signed by the Chief Executive or...	刑责层级与处罚框架补充条款。
s.65	65. 雇主及主事人的法律责任 **(1)** 任何人在其受雇用中所作出的任何作为或所从事的任何行为，就本条例而言视为亦是由其雇主所作出或从事的，不论其雇主是否知悉或批准他作出该作为或从事该行为。 **(2)** 任何作为另一人的代理人并获该另一人授权(不论是明示或默示，亦不论是事前或事后授权)人所作出的任何作为或所从事的任何行为，就本条例而言须视为亦是由该另一人作出或从事的。 **(3)** 在根据本条例对任何人就其雇员或代理人的作为或行为(视属何情况而定)而提出的法律程序中，该人如证明他已采取切实可行的步骤，以防止该雇员作出该作为或从事该行为或在其受雇用过程中作出该类作为或从事该类行为，即为免责辩护。 **(4)** 为免生疑问，现声明：本条不就刑事法律程序而适用。 65. Liability of employers and principals **(1)** Any act done or practice engaged in by a person in the course of his employment shall be treated for the purposes of this Ordinance as done or engaged in by his employer as well as by him, whether or not it was done or engaged in with the employer's knowledge or approval. **(2)** Any act done or practice engaged in by a person as agent for another person with the authority (whether express or implied, and whether precedent or subsequent) of that other person shall be treated for the purposes of this Ordinance as done or engaged in by that other person as well as by him. **(3)** In proceedings brought under this Ordinance against any person in respect of an act or practice alleged to have been done or engaged in, as the case may be, by an employee of his it shall be a defence for that person to prove that he took such steps as were practicable to prevent the employee from doing that act or engaging in that practice, or from doing or engaging in, in the course of his employment, acts or practices, as the case may be, of that description. **(4)** For the avoidance of doubt, it is hereby declared that this section shall not apply for the purposes of any criminal proceedings.	责任归属与抗辩机制，主要解决“谁代谁担责”。
s.66B	66B. 专员可就法律程序给予协助 **(1)** 根据第 66 条可提起法律程序以寻求补偿的人可向专员提出申请，要求就该程序给予协助。 **(2)** 专员可考虑第 **(1)** 款所指的申请，如专员认为合适，可批准申请，在以下情况下，专员尤其可批准申请—— **(a)** 有关个案带出一个原则性问题；或 **(b)** 没有顾及有关个案的复杂性、该申请人相对于答辩人或在牵涉的另一人的位置或任何其他事宜下，则坚申请人在没有协助下不能有关个案。 是合理的。 **(3)** 专员根据本条给予的协助可包括—— **(a)** 提供意见； **(b)** 安排由律师或大律师提供意见或协助； **(c)** 安排由任何人代表行事，包括通常由律师或大律师在法律程序的初步步骤或附带步骤中给予的协助，或在达致或执行和解以避免或结束法律程序中给予的协助； 及 **(d)** 专员认为适当的其他形式的协助。 **(4)** 除了在根据按照《区域法院条例》(第 336 章)第 73P 条订立的规则准许的范围内，第 **(3)** 款所指的协助，不得给予任何人在法律程序中出庭、进行法律程序、以辩方向法院陈词的法律及程序。 **(5)** 如以根据本条向申请人提供协助而招致开支，该等开支(以《法院规则》所订明的方式评定或评核者)的追讨权或使专员受益的对以下项目的第一押记—— **(a)** 须由任何其他人(不论凭借《域法院条例》的判决或命令、协议或其他依据)就该项协助所关乎的事宜而付予该申请人的任何公费或费用； 及 **(b)** 在就该事宜达致避免或结束任何法律程序的妥协或和解安排之下，该申请人所具有的权利(在该等权利关乎任何讼费或费用的范围内)。 **(6)** 第 **(5)** 款所设定的押记，受《法律援助条例》(第 91 章)下的押记所规限，亦受该条例中关乎将任何款项付入根据该条例设立的法律援助辅助计划基金的条文所规限。 **(7)** 在本条中——《法院规则》(relevant rules)指根据《区域法院条例》(第 336 章)订立的规则； 答辩人 (respondent) 包括将会成为答辩人的人。 (由 2012 年第 18 号第 39 条增补) 66B. Commissioner may grant assistance in respect of proceedings **(1)** A person who may institute proceedings to seek compensation under section 66 may make an application to the Commissioner for assistance in respect of those proceedings. **(2)** The Commissioner may consider an application under subsection **(1)** and may grant it if the Commissioner thinks fit to do so, in particular if— **(a)** the case raises a question of principle; or **(b)** it is unreasonable, having regard to the complexity of the case or the applicant's position in relation to the respondent or another person involved or any other matter, to expect the applicant to deal with the case unaided. **(3)** Assistance by the Commissioner under this section may include— **(a)** giving advice; **(b)** arranging for the giving of advice or assistance by a solicitor or counsel; **(c)** arranging for representation by any person, including all such assistance as is usually given by a solicitor or counsel in the steps preliminary or incidental to any proceedings, or in arriving at or giving effect to a compromise to avoid or bring to an end any proceedings; and **(d)** any other form of assistance which the Commissioner may consider appropriate. **(4)** Subsection **(3)** does not affect the law and practice regulating the descriptions of persons who may appear in, conduct, defend and address a court in, any proceedings except to the extent permitted ...	程序性补充条款（执行/调查衔接）：确保调查结果能接上后续执法动作。
s.66D	66D. 专员要求提供材料及协助的权力 **(1)** 如专员就某项指明调查，合理地怀疑某人—— **(a)** 管有或控制(或可能管有或控制)与该项调查相关的材料； 或 **(b)** 属其雇员(根据第 **(2)** 款可向有关方发出该项调查协助专员， 则本条适用。 **(2)** 专员可藉向上述的人发出书面通知，要求该人——**(a)** 向专员合理地相信，某事宜(相干事宜)与有关指明调查相关——向专员提供该人管有或控制的、关乎相干事宜的材料； **(b)** 在指明的时间及地点，面见专员，并回答关乎相干事宜的问题； **(c)** 回答关乎相干事宜的书面问题； **(d)** 作出关乎相干事宜的陈述；或 **(e)** 向专员提供专员为该项指明调查而合理地要求的所有协助。 (3) 第 (2) 款所指的通知，——须——**(a)** 符合指明格式； **(b)** 由专员或订明人员签署； 及 **(c)** 示明有关指明调查之标的事宜及目的。 **(4)** 专员亦可在上述通知内，指明，——**(a)** 有关材料须于何时和地提供； 及 **(b)** 该材料须以何种方式及形式提供。 **(5)** 根据第 **(2)** 款要求某人提供材料的权力，包括要求该人下事宜的权力——**(a)** 如该材料并非以可阅读形式记录——以符合下述说明的形式，交出该材料的复本——**(i)** 属可见及可阅读形式；或 **(ii)** 能够轻易地以可见及可阅读形式从其中产生该复本的形式；及 **(b)** 如该材料以电子形式储存——该人作出以下事情—— **(i)** 就操作载有该材料的设备，给予指示；及 **(ii)** 提供适当系统，以将该材料转为纸上书面形式。 **(6)** 根据第 **(2)** 款要求某人提供材料的权力，包括作出以下作为的权力——**(a)** (如该人有提供该材料)采取以下行动—— **(i)** 复制该材料，或操纵其内容； **(ii)** 在为有关指明调查而合理所需的期间内，保留该材料； **(iii)** 要求该人，或要求专员合理地相信能够给予该材料的权利的人士，给予关于该材料的解释或进一步详情；及 **(b)** (如该人没有提供该材料)要求该人(尽其所知所信)述明该材料在何处。 (7) 如专员根据第 **(2)** 款行使权力，要求某人向专员提供电子器材，该权力只可在第 66G 条的规限下行使。 66D. Commissioner's powers to require materials and assistance **(1)** This section applies if the Commissioner reasonably suspects that, in relation to a specified investigation, a person— **(a)** has or may have possession or control of any material relevant to that investigation; or **(b)** may otherwise be able to assist the Commissioner in relation to that investigation. **(2)** The Commissioner may, by written notice given to the person, require the person— **(a)** to provide the Commissioner with any material in the person's possession or control relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; **(b)** to attend before the Commissioner at a specified time and place, and answer any question relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; **(c)** to answer any written question relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; **(d)** to make a statement relating to a matter that the Commissioner reasonably believes to be relevant to the specified investigation; or **(e)** to give the Commissioner all the assistance that the Commissioner reasonably requires for the specified investigation. **(3)** A notice under subsection **(2)** must— **(a)** be in the specified form; **(b)** be signed by the Commissioner or a prescribed officer; and **(c)** in...	程序性补充条款：用于衔接不同执法步骤，避免程序断层。
s.66K	66K. 标的披露的涵义 **(1)** 就本分部而言，凡某人(披露者)在以下情况下披露资料当事人的个人资料(不论是否在香港披露)，则该项披露即属标的披露—— **(a)** 在该项披露作出时，该当事人—— **(i)** 属香港居民；或 **(ii)** 身处香港； 及 **(b)** 披露者在未获该当事人的相关同意下，披露上述个人资料，而—— **(i)** 披露者的意图，是导致该当事人或其任何家人蒙受任何指明伤害；或 **(ii)** 披露者罔顾是否会(或相当可能会)导致该当事人或其任何家人蒙受任何指明伤害。 **(2)** 在本条中——指明伤害(specified harm)具有第 64 **(6)** 条所给予的涵义； 相关同意 (relevant consent)具有第 64 **(6)** 条所给予的涵义。 66K. Meaning of subject disclosure **(1)** For the purposes of this Division, a disclosure (whether or not in Hong Kong) of personal data of a data subject by a person is a subject disclosure if— **(a)** when the disclosure is made, the data subject— **(i)** is a Hong Kong resident; or **(ii)** is present in Hong Kong; and **(b)** the person discloses the personal data without the relevant consent of the data subject— **(i)** with an intent to cause any specified harm to the data subject or any family member of the data subject; or **(ii)** being reckless as to whether any specified harm would be, or would likely be, caused to the data subject or any family member of the data subject. **(2)** In this section—relevant consent (相关同意) has the meaning given by section 64 **(6)** ; specified harm (指明伤害) has the meaning given by section 64 **(6)** .	程序性补充条款：处理程序尾段的补强安排。
s.66M	66M. 送达停止披露通知 **(1)** 如专员有合理理由相信—— **(a)** 有标的讯息存在； 及 **(b)** 某名香港人士有能力就该讯息采取停止披露行动(不论是否在香港披露)，则该项披露即属通知，指示该人采取该停止披露行动。 **(2)** 此外，如专员有合理理由相信—— **(a)** 有属电子讯息的标的讯息存在； 及 **(b)** 某非港人服务提供者有能力就该讯息采取停止披露行动(不论是否在香港采取)，则专员可向该提供者送达书面通知，指示该提供者采取该停止披露行动。 **(3)** 停止披露通知须——**(a)** 述明第 **(1)** 或 **(2)** 款所述的专员相信之事，以及专员相信该事所据以作出该项信念的理由；**(b)** 指明该项停止披露行动所指以采取的行动；**(c)** 指明须采取停止披露行动的期限；**(d)** 指明须于何日或之前采取该停止披露行动； 及 **(e)** 附有本条及第 66N 及 66O 条的文本。 **(4)** 专员可藉向获送达停止披露通知的人送达书面通知，撤销该停止披露通知。 **(5)** 在本条中——非港人服务提供者(non-Hong Kong service provider)指已经或正在向任何香港人士提供服务的人(并非香港人士者)，不论服务是否在香港提供； 香港人士(Hong Kong person)指——**(a)** 身处香港的个人； 或 **(b)** 符合以下说明的团体——**(i)** 在香港成立为法团、设立或注册； 或 **(ii)** 在香港有业务地点。 66M. Service of cease notice **(1)** If the Commissioner has reasonable ground to believe that— **(a)** there is a subject message; and **(b)** a Hong Kong person is able to take a cessation action (whether or not in Hong Kong) in relation to the message, the Commissioner may serve a written notice on the person directing the person to take the cessation action. **(2)** In addition, if the Commissioner has reasonable ground to believe that— **(a)** there is a subject message that is an electronic message; and **(b)** a non-Hong Kong service provider is able to take a cessation action (whether or not in Hong Kong) in relation to the message, the Commissioner may serve a written notice on the provider directing the provider to take the cessation action. **(3)** The cessation notice must— **(a)** state the Commissioner's belief mentioned in subsection **(1)** or **(2)** and the ground for that belief; **(b)** identify, in so far as reasonably practicable, the subject message in a way that is sufficient to enable the cessation action to be taken; **(c)** specify the cessation action that must be taken; **(d)** specify the date on or before which the cessation action must be taken; and **(e)** be accompanied by a copy of this section and sections 66N and 66O . **(4)** The Commissioner may cancel a cessation notice by serving a written notice on the person on whom the cessation notice is served. **(5)** In this section— Hong Kong person (香...	程序性补充条款：确保停止披露通知能接上后续执法动作。

C. Patents Ordinance (Cap.514)

Section	Text	Notes

s.11A	11A. 不具损害性的披露 (1) 凡某项发明属一项转录标准专利申请的标的，为施行第 9B 条， 如该项发明的披露符合第 (2) 款指明的条件，则在决定该项发明是否构成现有技术的一部分时，该项披露不予考虑。 (2) 有关条件是——(a) 上述披露，在转录标准专利申请的当作提交日期前 6 个月内发生；及 (b) 该项披露是以下事情所造成，或属以下事情的后果——(i) 与申请人或该项发明当时的所有人有关的明显滥用；或 (ii) 该申请人或该项发明当其时的所有人，已在某一订明的展览或会议上，展示该项发明。 (3) 第 (2) (b) (ii) 款只在以下情况下适用—— (a) 在上述申请人提交相应指定专利申请时，已按照指定专利当局关乎不具损害性的披露的法律，述明上述发明已予如此展示；及 (b) 根据第 15 (2) (f) 条的指定专利申请的记录请求，载有一项陈述，表示关乎上述披露的订明详情。 11A. Non-prejudicial disclosure (1) For the purposes of section 9B , if the conditions specified in subsection (2) are satisfied, a disclosure of an invention that is the subject of a standard patent (R) application is not to be taken into consideration in determining whether the invention forms part of the state of the art. (2) The conditions are— (a) the disclosure occurred no earlier than 6 months before the deemed date of filing of the standard patent (R) application; and (b) the disclosure was due to, or in consequence of— (i) an evident abuse in relation to the applicant or a proprietor of the invention for the time being; or (ii) the fact that the applicant or a proprietor of the invention for the time being had displayed the invention at a prescribed exhibition or meeting. (3) Subsection (2) (b) (ii) applies only if— (a) at the time of filing the corresponding designated patent application, the applicant stated, in accordance with the law of the designated patent office relating to non-prejudicial disclosure, that the invention had been so displayed; and (b) the request to record the designated patent application contains a statement that indicates the prescribed details relating to the disclosure, as required under section 15 (2) (f) .	某些先期披露可豁免，不当然破坏新颖性。
s.15	15. 记录请求的提交 (1) 根据第 12 (1) 条有权就一项发明申请批予转录标准专利的任何人，可于自发表就该项发明而在指定专利当局提出的专利申请的日期后 6 个月内的任何时间，请求处长将该项指定专利申请的纪录入往册纪录册内(在本条例中称为记录请求)。 (1) 根据第 17 (2) 条 17 号第 21 条修订) (2) 每一上述请求须由申请人签署和以订明方式向处长提交，并须载有以下各项—— (a) 一份已发表的指定专利申请的影印本，包括与该指定专利申请一并发表的任何说明、权利要求、绘图、查检报告或摘录； (b) 凡指定专利申请书并无载有任何作为发明人的人的姓名或名称，则一项识别申请人所相信是发明人的人或人等的陈述； (c) 提出该项请求的人的姓名或名称及地址； (d) 如提交请求的人并非是在指定专利申请中指名为申请人的人，则一项解释他有权就有关发明申请批予转录标准专利的理由(足以支持该项陈述的订明文件； (由 2016 年第 17 号第 21 条修订) (e) 如根据第 18A 条声称具有优先权，而该优先权是基于该条例述的较早申请而在指定专利当局存有的申请，则须载有一项显示以下细节的陈述——(由 2001 年第 2 号第 3 条修订；由 2016 年第 17 号第 21 条修订) (i) 声称具有优先权的日期； (ii) 提交该项较早申请书的所在国家； (f) 如在提交指定专利申请时已按照指定专利当局的法律就有关发明过往所作的披露提出权利要求，而该项披露就指定专利当局的法律而言属不具损害性的披露，则须载有一项显示关乎该项过往的披露的订明细节的陈述；及 (由 2001 年第 2 号第 3 条代替) (g) 在香港作送达文件用的地址。 (3) 每一上述请求须符合本条例就以一种法定语文或以两种法定语文提供资料或将文件翻译成一种或两种法定语文的译本所订的规定。 (4) 提交费及公告费须在最早向处长提交记录请求的任何部分后的 1 个月内予以缴付；如该两项费用的任何一项没有在该期限内或在根据第 (5) 款容许的较长期限内缴付，则转录标准专利的申请须当作被撤回。 (由 2016 年第 17 号第 21 条修订) (5) 规则可就未有在第 (4) 款所指明的时限内缴付提交费或公告费给予宽限期一事作出规定，使该等费用在宽限期内仍可有效地缴付。 (6) 就在根据第 8 条指定有关的指定专利当局的日期前发表的指定专利申请而言，第 (1) 款并不适用。 (7) 本条不阻止任何纪录请求藉符合第 17 条规定的文件而提出。 [比照 EPC Art. 78; 1977 c. 37 s. 14 U.K.] 15. Filing of request to record (1) A person entitled under section 12 (1) to apply for the grant of a standard patent (R) for an invention may, at any time within 6 months after the date of publication of an application in a designated patent office for a patent for the invention, request the Registrar to enter a record of that designated patent application in the register (in this Ordinance referred to as a request to record). (Amended 17 of 2016 s. 21) (2) Every such request shall be signed by the applicant and be filed with the Registrar in the prescribed manner and shall contain— (a) a photocopy of the designated patent application as published, that is to say, including any description, claims, drawings, search report or abstract published together with the designated patent application; (b) where the designated patent application does not contain the name of any person as being the inventor, a statement identifying the person or persons whom the applicant believes to be the inventor or inventors; (c) the name and address of the person making the request; (d) where the person filing the request is a person other than the person named as applicant in the designated patent application, a statement explaining his entitlement to apply for the grant of a standard patent (R) for the invention and prescribed documents supporting that statement; (Amended 17 of 2016 s. 21) (e) w...	提交记录请求的时间窗、材料和费用规则在这里。
s.2	2. 释义 (1) 在本条例中，除文意另有所指外——不具损害性的披露(non-prejudicial disclosure)就一项发明而言，指该发明的披露，而就决定该发明是否属现有技术的一部分而言，该披露不在考虑之列； 反对或撤销专利的法律程序(opposition or revocation proceedings)就指定专利而言，指根据指定专利当局的法律进行的法律程序，而该法律有就在批予专利后的指明期限内撤销或修订指定专利之事作出规定； 《巴黎公约》 (Paris Convention)指 1883 年 3 月 20 日在已繁签订并经不时修改或修订的《保护工业产权公约》； (由 2001 年第 2 号第 2 条修订)巴黎公约国(Paris Convention country)指—— (a) 当其时在附表 1 指明为已加入《巴黎公约》的任何国家； (b) 受依据 (a) 段而在附表 1 指明的任何国家的权限所管辖或以任何该等国家为宗主国的地区或地方，或由任何该等国家管治的地区或地方，而该等国家已代该地区或地方加入《巴黎公约》； 《日内瓦议定书》 (Protocol) 指世界贸易组织总理事会于 2005 年 12 月 6 日在日内瓦通过的修订《知识产权协议》的议定书，该议定书的附件、《知识产权协议》的附件及该附件的附录； (由 2007 年第 21 号第 3 条增补)世界贸易组织(WTO) 指于 1995 年 1 月 1 日在日内瓦根据《世界贸易组织协议》设立的世界贸易组织； (由 2007 年第 21 号第 3 条增补)世界贸易组织成员国、地区或地方(WTO member country, territory or area)指当其时在附表 1 指明为已加入《世界贸易组织协议》的任何国家、地区或地方； 《世界贸易组织协议》 (World Trade Organisation Agreement)指 1994 年在马拉喀什订立并经不时修改或修订的以该名称为名的协议； (由 2001 年第 2 号第 2 条修订)出口成员地(exporting member)指按照《总理事会决定》或《日内瓦议定书》制造供出口至合资格进口成员地的专利药剂制品的世界贸易组织成员国、地区或地方； (由 2007 年第 21 号第 3 条增补)合资格进口成员地(eligible importing member)指—— (a) 获联合国承认为属最低度发展国家的世界贸易组织成员国、地区或地方； 或 (b) 已就拟按照《总理事会决定》或《日内瓦议定书》进口药剂制品一事向知识产权理事会给予书面通知的任何其他世界贸易组织成员国、地区或地方； (由 2007 年第 21 号第 3 条增补)《多哈宣言》 (Doha Declaration)指世界贸易组织第四次部长级会议于 2001 年 11 月 14 日在卡塔尔的多哈通过的《与贸易有关的知识产权协议及公共卫生宣言》； (由 2007 年第 21 号第 3 条增补)有关立法或法例(relevant legislation)指—— (a) 《总理事会决定》； (b) 《日内瓦议定书》；或 (c) 出口成员地或合资格进口成员地(视属何情况而定)依据下述决定或议定书或为落实下述决定或议定书而订立的法例—— (i) 《总理事会决定》；或 (ii) 《日内瓦议定书》； (由 2007 年第 21 号第 3 条增补)受保护的布图设计(拓朴图) (protected layout-desi... 2. Interpretation (1) In this Ordinance, unless the context otherwise requires— application for a patent (专利的申请) and patent application (专利申请) mean— (a) an application for a standard patent (R) ; (b) an application for a standard patent (O) ; or (c) an application for a short-term patent; (Added 17 of 2016 s. 5) application for a patent or other protection (专利或其他保护的申请) means an application for any of the following— (a) a patent; (b) the registration of a utility model; (c) a utility certificate; (d) an inventor’s certificate; (Added 17 of 2016 s. 5) application for a short-term patent (短期专利的申请) and short-term patent application (短期专利申请) mean an application under Part 15 for a short-term patent; (Added 17 of 2016 s. 5) application for a standard patent (标准专利的申请) and standard patent application (标准专利申请) mean— (a) an application for a standard patent (R) ; or (b) an application for a standard patent (O) ; (Added 17 of 2016 s. 5) application for a standard patent (O) (原授标准专利的申请) and standard patent (O) application (原授标准专利申请) mean an application under Part 3 for a standard patent (O) ; (Added 17 of 2016 s. 5) certificate of substantive examination (实质审查证明书) means a certificate issued by the Registrar under section 127F in respect of a short-term patent; (Added 17 of 2016 s. 5) court (法院) means the Court of First Instance; (Amended 25 of 1998 s. 2) date of filing (提交日期)— (a) in relatio...	全条例定义入口。先看术语，再看权利义务。
s.37C	37C. 优先权利 (1) 如任何人已就一项发明提交—— (a) 一项非香港申请；或 (b) 一项香港申请，则第 (2) 款适用。 (2) 在符合订明条件的前提下，上述的人或其所有权继承人，在由最先非香港申请或香港申请的提交日期后的 12 个月内，就为同一发明而于其后提交的原授标准专利申请而言，享有优先权利。 (3) 为施行第 (2) 款—— (a) 在某地方或为某地方提交每项非香港申请，如根据该地方的法例或根据有关双边或多边协议，属相等于正规国家提交，则须获承认为产生优先权利； (b) 如某项其后的非香港申请(后者)的标的事项，与一项过往的最先非香港申请(前者)的标的事项相同，且在同一地方或为同一地方提交，则只有在符合以下条件的前提下—— (i) 在后者的提交日期，前者已在没有公开予公众查阅和没有留下任何有待解决的权利的情况下，被撤回、放弃或非绝；及 (ii) 在该日期，前者没有被用作为声称具有优先权利的根据， 后者方就决定优先权而言，视作最先申请；及 (c) 如某项其后的非香港申请因 (b) 段，被视作最先申请，则前者此后不可用作为声称具有优先权利的根据。 (4) 为施行第 (2) 款—— (a) 每项香港申请的正规提交，须获承认为产生优先权利； (b) 如某项其后的香港申请(后者)的标的事项，与一项过往的最先香港申请(前者)的标的事项相同，则只有在符合以下条件的前提下—— (i) 在后者的提交日期，前者已在没有公开予公众查阅和没有留下任何有待解决的权利的情况下，被撤回、放弃或非绝；及 (ii) 在该日期，前者没有被用作为声称具有优先权利的根据， 后者方就决定优先权而言，视作最先申请；及 (c) 如某项其后的香港申请因 (b) 段，被视作最先申请，则前者此后不可用作为声称具有优先权利的根据。 (5) 凡因一项发明的非香港申请或香港申请，而产生某项优先权利，则该项优先权利的转让或以其他方式作出的转传，可连同该项申请进行，亦可独立地进行，而在第 (2) 款中提述某人的所有权继承人，须据此解释。 (6) 在本条中——正规国家提交(regular national filing)指一项申请的提交，而该项提交确立该项申请提交的日期(不论该项申请的结果如何)； 香港申请的正规提交(regular filing of a Hong Kong application)指一项香港申请的提交，而该项提交确立该项申请提交的日期(不论该项申请的结果如何)。 37C. Priority right (1) Subsection (2) applies if a person has filed— (a) a non-Hong Kong application for an invention; or (b) a Hong Kong application for an invention. (2) The person or the person’s successor in title enjoys, for the purpose of filing a subsequent standard patent (O) application for the same invention, a right of priority for the period of 12 months after the date of filing of the first non-Hong Kong application or Hong Kong application, subject to compliance with the prescribed conditions. (3) For the purposes of subsection (2) — (a) every filing of a non-Hong Kong application that is equivalent to a regular national filing under the domestic legislation of the place in or for which the application is filed, or under bilateral or multilateral agreements, is to be recognized as giving rise to a right of priority; (b) a subsequent non-Hong Kong application for the same subject- matter as in a previous first non- Hong Kong application filed in or for the same place is to be considered as the first application for the purpose of determining priority only if, on the date of filing the subsequent application, the previous application— (i) has been withdrawn, abandoned or refused, without being open to public inspection and without leaving any rights outstanding; and (ii) has not served as a basis for claiming a right of priority; and (c) if, because of parag...	优先权条款：先申请先受益，但要满足期限和形式要求。
s.54	54. 专利与专利的申请的共同拥有权 (1) 凡某一专利是批予 2 人或多于 2 人的，除非有任何相反的协议，否则他们每人须享有在该专利中相等的不分割份数。 (2) 凡有 2 人或多于 2 人为某一专利的所有人，则在符合本条的规定下及除任何协议已有相反规定外，他们每人均有权由其本人或其代理人为其本身的利益与在没有其他人同意亦无需向其他所有人交代的情况下，就有关发明作出任何若非因本款以及第 68 及 69 条的规定便会构成侵犯有关专利的作为；而任何该等作为不构成对有关专利的侵犯。 (3) 除第 13 、 37H 、 37I 、 37J 及 55 条另有规定外及除当其时有效的任何协议另有规定外，凡有 2 人或多于 2 人为某一专利的所有人，他们其中一人不得在没有得到另一人或其余的人的同意下——(由 2016 年第 17 号第 57 条修订) (a) 申请修订该项专利的说明书，或申请撤销该项专利；或 (b) 批予在该项专利下的特许，或将该项专利中的份额转让或按揭。 (由 2016 年第 17 号第 57 条修订) (4) 除该等条文另有规定外，凡有 2 人或多于 2 人为某一专利的所有人，任何其他人均可向该等人士的其中一人提供与该项发明的任何重要因素有关的方法，以令该项发明发挥效用，而凭借本款提供此等方法并不构成对该专利的侵犯。 (由 2016 年第 17 号第 57 条修订) (5) 凡专利产品是由 2 名或多于 2 名所有人中的任何一名所有人处置而转予任何人的，则该人或透过该人提出申索的任何其他人须有权以同一方法处理该产品，犹如该产品已由唯一的注册所有人处置一样。 (6) 第 (1) 或 (2) 款不影响受让人或死者的遗产代理人的相互权利或义务，或他们作为受让人或遗产代理人的权利或义务。 (7) 本条须就所提交的专利的申请而具有效力，而——(a) 凡提述某一专利和某一专利获批予，须据此分别包括提述任何该等申请和该等申请已予提交；及 (b) 在第 (5) 款中提述专利产品，须据此解释。 [比照 1977 c. 37 s. 36 U.K.; EPC Art. 59] 54. Co-ownership of patents and applications for patents (1) Where a patent is granted to 2 or more persons each of them shall, subject to any agreement to the contrary, be entitled to an equal undivided share in the patent. (2) Where 2 or more persons are proprietors of a patent, then, subject to this section and to any agreement to the contrary, each of them shall be entitled, by himself or his agent, to do in respect of the invention concerned, for his own benefit and without the consent of or the need to account to the other or others, any act which would apart from this subsection and sections 68 and 69 amount to an infringement of the patent concerned; and any such act shall not amount to an infringement of the patent concerned. (3) Subject to sections 13 , 37H , 37I , 37J and 55 and to any agreement for the time being in force, where 2 or more persons are proprietors of a patent one of them shall not without the consent of the other or others— (Amended 17 of 2016 s. 57) (a) make an application for amending the specification of the patent or for revoking the patent; or (b) grant a licence under the patent, or assign or mortgage a share in the patent. (Amended 17 of 2016 s. 57) (4) Subject to those sections, where 2 or more persons are proprietors of a patent, anyone else may supply one of those persons with the means, relating to an essential element of the invention, ...	专利共同共有时，谁能单独做什么、谁要先同意，在这里分配。
s.57	57. 就雇员的发明而享有的权利 (1) 即使在任何法律规则中另有规定，就本条例的目的和一切其他目的而言，一名雇员所作出的任何发明，如—— (a) 是在该雇员的正常职务过程中作出的，或是在他的正常职务以外但属明确地指派于他的职务过程中作出的，且两者的情况均可使人合理地预期某项发明可从其职务的执行中产生；或 (b) 是在该雇员的职务过程中作出的，且在作出该项发明时，因其职务的性质以及因其职务的性质而产生的特定责任，该雇员有特殊义务促进其雇主的业务利益， 则该项发明在该雇员与其雇主之间须视为属于其雇主的。 (2) 就上述目的而言，一名雇员所作出的任何其他发明，在该雇员与其雇主之间须视为属于该雇员的。 (3) 凡任何发明在某一雇员与其雇主之间凭借本条而属于该雇员的时， 则——(a) 该雇员或其代表或藉着该雇员提出申索的任何人为谋求一项专利申请；或 (b) 任何人为实行或实施该项发明，而作的任何事情，均不得视为侵犯关乎该项发明的任何概型或文件中的任何受保护的布图设计(拓朴图)的权利，而该权利在该雇员与其雇主之间是由其雇主所享有的。 [比照 1977 c. 37 s. 39 U.K.] 57. Right to employees’ inventions (1) Notwithstanding anything in any rule of law, an invention made by an employee shall, as between him and his employer, be taken to belong to his employer for the purposes of this Ordinance and all other purposes if— (a) it was made in the course of the normal duties of the employee or in the course of duties falling outside his normal duties, but specifically assigned to him, and the circumstances in either case were such that an invention might reasonably be expected to result from the carrying out of his duties; or (b) the invention was made in the course of the duties of the employee and, at the time of making the invention, because of the nature of his duties and the particular responsibilities arising from the nature of his duties he had a special obligation to further the interests of the employer’s undertaking. (2) Any other invention made by an employee shall, as between him and his employer, be taken for those purposes to belong to the employee. (3) Where by virtue of this section an invention belongs, as between him and his employer, to an employee, nothing done— (a) by or on behalf of the employee or any person claiming under him for the purposes of pursuing an application for a patent; or (b) by any person for the purpose of performing or working the invention, shall be taken to infringe any protected layout- design (topograp...	专利权的“禁止他人实施”边界条款。
s.73	73. 防止直接使用发明任何专利在其有效时均授予其所有人权利以阻止所有未获他同意的第三者在香港作出以下全部或任何一项作为—— (a) 就任何属该专利的标的事项的产品而言—— (i) 制造、使用或进口该产品或将产品推出市场； 或 (ii) 电积该产品，而不论是为将该产品推出(在香港或其他地方的)市场的目的或为其他目的； (b) 就任何属该专利的标的事项的方法而言—— (i) 使用该方法； 或 (ii) 当第三者知道在没有该专利的人同意下而使用该方法是被禁止的，或在当时的情况下该项禁止对一个合理的人而言是明显的，但却提供该方法予人在香港使用； (c) 凡该项发明为一个方法，则就藉该方法而直接获得的任何产品而言—— (i) 将该产品推出市场或使用或进口该产品；或 (ii) 电积该产品，而不论是为将该产品推出(在香港或其他地方的)市场的目的或为其他目的。 [比照 1992 No. 1 s. 40 Eire] 73. Prevention of direct use of invention A patent while it is in force shall confer on its proprietor the right to prevent all third parties not having his consent from doing in Hong Kong all or any of the following— (a) in relation to any product which is the subject- matter of the patent— (i) making, putting on the market, using or importing the product; or (ii) stocking the product, whether for the purpose of putting it on the market (in Hong Kong or elsewhere) or otherwise; (b) in relation to any process which is the subject- matter of the patent— (i) using the process; or (ii) offering the process for use in Hong Kong when the third party knows, or it is obvious to a reasonable person in the circumstances, that the use of the process is prohibited without the consent of the proprietor of the patent; (c) where the invention is a process, then in relation to any product obtained directly by means of that process— (i) putting on the market, using or importing the product; or (ii) stocking the product, whether for the purpose of putting it on the market (in Hong Kong or elsewhere) or otherwise. [cf. 1992 No. 1 s. 40 Eire]	专利限制与例外：私人、实验、处方等场景可豁免。
s.75	75. 对专利的效力的限制任何专利所授予的权利不得扩大至以下作为—— (a) 为非商业目的而私下作出的作为； (b) 为实验目的而作出与有关专利发明的标的事项有关的作为； (c) 按照注册医生或注册牙医开出的处方为个别病案在药房即时制备药物或与如此制备药物有关的作为(而注册医生及注册牙医两间分别具有《医生注册条例》(第 161 章)第 2 条和《牙医注册条例》(第 156 章)第 2 (1) 条给予注册医生及注册牙医的涵义)； (d) 当在任何巴黎公约国或世界贸易组织成员国、地区或地方(香港除外)注册的船只临时或意外地进入香港水域时——(由 2024 年第 21 号第 78 条修订) (i) 在该等船只上； 或 (ii) 在该等船只的船身内、或其机械、滑车索具、传动装置或其他零件上， 使用属该专利的标的之发明，但该项发明须是专该等船只的需要而在香港水域内使用的； (e) 当巴黎公约国或世界贸易组织成员国、地区或地方(香港除外)的飞机、气垫船或陆上交通工具临时或意外地进入香港时—— (i) 在该等飞机、气垫船或陆上交通工具的构造或操作上； 或 (ii) 在该等飞机、气垫船或陆上交通工具的零件的构造或操作上， 使用属该专利的标的之发明； (f) 使用属《民航条例》(第 448 章)第 10 (4) 条所适用的且已合法进入香港或正合法经过香港(包括香港上空及香港水域)的飞机、或为该等飞机而将该等飞机的任何部分或零件输入香港，或在香港使用或贮存该部分或零件。 (由 2024 年第 21 号第 78 条修订) [比照 1992 No. 1 s. 42 Eire] 75. Limitation of effect of patent The rights conferred by a patent shall not extend to— (a) acts done privately for non-commercial purposes; (b) acts done for experimental purposes relating to the subject-matter of the relevant patented invention; (c) the extemporaneous preparation for individual cases in a pharmacy of a medicine in accordance with a medical prescription issued by a registered medical practitioner or registered dentist (which terms bear the meaning assigned to them by section 2 of the Medical Registration Ordinance (Cap. 161) and section 2 (1) of the Dentists Registration Ordinance (Cap. 156) respectively) or acts concerning the medicine so prepared; (d) the use of the invention which is the subject of the patent— (i) on board vessels temporarily or accidentally in any of the Paris Convention countries or WTO member countries, territories or areas, other than Hong Kong; or (ii) in the body of such vessels, or in the machinery, tackle, gear or other accessories of such vessels, when such vessels temporarily or accidentally enter the waters of Hong Kong, but only if the invention is used in such waters exclusively for the needs of the vessel; (Amended 21 of 2024 s. 78) (e) the use of the invention which is the subject of the patent in the construction or operation of— (i) aircraft, hovercraft or land vehicles of Paris Convention countries or WTO member countries, territories o...	专利三要件：新颖性、创造性、工业应用。
s.9A	9A. 可享专利权的发明 (1) 任何发明如—— (a) 是新颖的； (b) 包含创造性；及 (c) 能作工业应用， 即属可享专利。 (2) 以下项目不得视作第 (1) 款所指的发明—— (a) 发现、科学理论或数学方法； (b) 美学上的创作； (c) 用以实行智力活动、进行游戏或进行业务的计划、规则或方法，或用于电脑的程式；及 (d) 呈示资料。 (3) 第 (2) 款只在任何专利或专利申请与该款提述的标的事项而言成立的范围内，豁除该事项或活动的可享专利性。 (4) 就第 (1) 款而言，藉外科手术或治疗以医治人体或动物身体的方法，或施行于人体或动物身体的诊断方法，均不得视作能作工业应用的发明。 然而，本款不适用于供在任何该等方法中使用的产品，尤其不适用于供在任何该等方法中使用的物质或合成物。 (5) 凡某发明的公布或实施，是会违反公共秩序或道德的，该发明即不属一项可享专利发明。 然而，任何发明的实施，不得只因其被在香港施行的任何法律所禁止，而视作违反公共秩序或道德。 (6) 以下项目不属可享专利—— (a) 植物或动物品种；及 (b) 用作生产植物或动物的基本上属生物学的方法(微生学方法或其产品除外)。 9A. Patentable inventions (1) An invention is patentable if it— (a) is new; (b) involves an inventive step; and (c) is susceptible of industrial application. (2) The following are not to be regarded as an invention for the purposes of subsection (1) — (a) a discovery, scientific theory or mathematical method; (b) an aesthetic creation; (c) a scheme, rule or method for performing a mental act, playing a game or doing business, or a program for a computer; and (d) a presentation of information. (3) Subsection (2) excludes the patentability of the subject-matter or activities referred to in that subsection only to the extent to which a patent or patent application relates to the subject-matter or activities as such. (4) A method for the treatment of the human or animal body by surgery or therapy, or a diagnostic method practised on the human or animal body, is not to be regarded as an invention that is susceptible of industrial application for the purposes of subsection (1) . However, this subsection does not apply to a product, and in particular a substance or composition, for use in any such method. (5) An invention the publication or working of which would be contrary to public order (“ordre public”) or morality is not a patentable invention. However, the working of an invention is not to be regarded as so contrary only because it is prohibited by any law in force in Hong Kong...	可专利三要件：新颖性、创造性、工业应用。
s.9D	9D. 工业应用某项发明如能够在任何种类的工业(包括农业)中作出成使用，则须视作能作工业应用。 9D. Industrial application An invention is to be regarded as susceptible of industrial application if it can be made or used in any kind of industry, including agriculture.	工业应用要求：能在产业中制造或使用。